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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL and REGULAR MEETINGS

February 10, 2026

WEBVTT

1
00:00:29.780 --> 00:00:30.820
Boardroom: K.

2
00:00:31.510 --> 00:00:39.160
Boardroom: Hi, everyone. I'm calling to order the special Berkeley City Council meeting. Today is Tuesday, February 10th.

3
00:00:39.500 --> 00:00:41.110
Boardroom: 2026.

4
00:00:41.250 --> 00:00:44.060
Boardroom: It is 5.02, and…

5
00:00:44.450 --> 00:00:48.739
Boardroom: Are you gonna take the roll from the front? Okay, Clerk, please take the roll.

6
00:00:48.930 --> 00:00:52.390
Boardroom: Okay, Councilmember Kasarwani is currently absent.

7
00:00:52.980 --> 00:00:54.740
Boardroom: Councilmember Taplin?

8
00:00:54.740 --> 00:00:55.560
Terry Taplin: Presidents?

9
00:00:56.180 --> 00:01:03.050
Boardroom: Councilmember Bartlett is currently absent. Councilmember Tregob? Present. O'Keefe? I'm here.

10
00:01:03.480 --> 00:01:06.229
Boardroom: Councilmember Blackaby is currently absent.

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11
00:01:08.610 --> 00:01:11.759
Boardroom: Parra? Here. Humbert? Present.

12
00:01:12.740 --> 00:01:13.540
Boardroom: Yishi.

13
00:01:14.330 --> 00:01:18.460
Boardroom: Quorum is present. Sure. Wendy, will you turn down the room volume?

14
00:01:24.930 --> 00:01:28.609
Boardroom: So that… maybe that… that sounds a lot better. Yes, okay.

15
00:01:31.450 --> 00:01:42.419
Boardroom: Okay, moving on to item number 1, 2026 City Council Referral Prioritization Results Using Rewaited Range Voting, RRV.

16
00:01:42.940 --> 00:01:45.160
Boardroom: And I will pass it over to you, Mr. City Clerk.

17
00:01:45.790 --> 00:01:52.299
Boardroom: Thank you, Mayor. Good evening, Mayor and Council Members. My name is Mark Newmanville. I'm the City Clerk for the City of Berkeley.

18
00:01:52.400 --> 00:01:59.710
Boardroom: And I'm reporting to you on Part 2 of the City Council Referral Prioritization Process.

19
00:02:00.650 --> 00:02:01.690
Boardroom: We'll just take a moment.

20
00:02:01.810 --> 00:02:04.349
Boardroom: Here, bring up the PowerPoint.

21
00:02:05.520 --> 00:02:06.500
Boardroom: It's very short.

22
00:02:19.320 --> 00:02:19.990
Boardroom: Okay.

23

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00:02:22.370 --> 00:02:33.400
Boardroom: So… Today, is part two of the process. On January 27th, we did part one, where we

24
00:02:33.940 --> 00:02:40.659
Boardroom: Looked at the raw scores that were assigned to all the referrals by the mayor and council members, and we also

25
00:02:41.120 --> 00:02:45.149
Boardroom: voted to remove 14 referrals from the list.

26
00:02:46.140 --> 00:03:00.649
Boardroom: For the remaining 39 referrals, we used the ranked choice… I'm sorry, not ranked choice voting… re-weighted range voting algorithm to, to rank those referrals based on the scores.

27
00:03:00.780 --> 00:03:04.540
Boardroom: And we are presenting the…

28
00:03:04.860 --> 00:03:12.519
Boardroom: final ranked list to the Council today for… for adoption. So that's the… the action that's requested today.

29
00:03:14.280 --> 00:03:16.670
Boardroom: So just a quick Recap.

30
00:03:17.490 --> 00:03:19.769
Boardroom: for re-weighted range

31
00:03:25.570 --> 00:03:26.629
Boardroom: There's a list of

32
00:03:30.820 --> 00:03:37.549
Boardroom: manager, city attorney, each… Councilmember rates every roof.

33
00:03:38.050 --> 00:03:39.490
Boardroom: From 0 to 5.

34
00:03:40.470 --> 00:03:44.449
Boardroom: There's no limit to repeat scores. The scores are tallied.

35

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00:03:45.900 --> 00:03:46.710
Boardroom: highest score.

36
00:03:46.880 --> 00:03:48.880
Boardroom: becomes the first priority.

37
00:03:49.550 --> 00:03:58.310
Boardroom: And for the remaining referrals, These scores are… weighted… and then… the…

38
00:03:58.510 --> 00:04:01.589
Boardroom: Earls are ranked using a weighted formula.

39
00:04:02.020 --> 00:04:09.390
Boardroom: Based on how much influence each council member has used up to that point by the scores they have assigned.

40
00:04:12.270 --> 00:04:20.309
Boardroom: So, in the report, In, in the item, in Attachment 1, Exhibit A, is the final rankings.

41
00:04:20.829 --> 00:04:23.770
Boardroom: Based on the… the algorithm.

42
00:04:27.990 --> 00:04:36.979
Boardroom: In this case, we had a little unusual situation where we had 3 referrals, all of which are for Public Works.

43
00:04:37.910 --> 00:04:40.709
Boardroom: Tied for the number one priority.

44
00:04:41.720 --> 00:04:46.099
Boardroom: So, all 3 of these were assigned the number one…

45
00:04:46.370 --> 00:04:52.309
Boardroom: top position, and then the algorithm was applied, starting with the next highest referral.

46
00:04:53.000 --> 00:04:53.680
Boardroom: and…

47

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00:04:54.180 --> 00:05:03.659
Boardroom: And we kept the tie in place because it more closely aligns with how the RRV algorithm is intended to work.

48
00:05:04.210 --> 00:05:08.920
Boardroom: We had… run the algorithm.

49
00:05:09.340 --> 00:05:14.710
Boardroom: Then a lower-ranked referral, you know, could have jumped.

50
00:05:14.840 --> 00:05:17.920
Boardroom: One of the three that tied for first place.

51
00:05:18.130 --> 00:05:24.449
Boardroom: So, which wouldn't have sort of accurately reflected the intent of how the RRV is supposed to work.

52
00:05:25.040 --> 00:05:30.659
Boardroom: So we have 3 that are tied for the top position, and then the rest are…

53
00:05:30.880 --> 00:05:35.480
Boardroom: Scored and ranked using the algorithm and the weighted voting values.

54
00:05:37.280 --> 00:05:40.339
Boardroom: So these are the results, for this year.

55
00:05:41.490 --> 00:05:44.080
Boardroom: Congratulations to the Public Works Department.

56
00:05:46.050 --> 00:06:00.640
Boardroom: They not only have half of the top 20 referrals, but they have 19 of the 39 total referrals. You can see how it shakes out amongst the remaining departments here on this slide.

57
00:06:03.900 --> 00:06:12.029
Boardroom: Which, sort of leads us into, you know, the obvious question of how the staff addresses the referrals, and…

58
00:06:12.170 --> 00:06:27.500

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Boardroom: Of course, you see that certain departments are, overrepresented on the list, and even high up on the list, so there's obviously a capacity and workload issue there. So there is some discretion for the city manager and the department heads

59
00:06:27.510 --> 00:06:35.830
Boardroom: To, that they have in assigning which referrals, and how many of the referrals, a given department can start working on first.

60
00:06:36.320 --> 00:06:48.430
Boardroom: But there is a general understanding that every department will at least determine what resources are needed to start work on their top referral on the list, no matter where it falls on the prioritized list.

61
00:06:55.230 --> 00:06:55.940
Boardroom: twist.

62
00:06:56.610 --> 00:07:06.229
Boardroom: Council could still determine if they want to remove any additional referrals based on how the rankings, played out.

63
00:07:07.280 --> 00:07:14.109
Boardroom: If you… if the Council did want to remove any, we would have a motion and a vote to do that.

64
00:07:14.530 --> 00:07:22.680
Boardroom: The primary objective today is to simply adopt the list of the 39 prioritized referrals

65
00:07:23.470 --> 00:07:36.649
Boardroom: 2026, and then the Council will have this information, the City Manager, City Attorney of Charter Offices, and the Budget and Finance Committee, and it can factor into our planning purposes for this upcoming year.

66
00:07:37.590 --> 00:07:45.029
Boardroom: So that's all I have for you with regards to the presentation, and happy to answer any questions you might have.

67
00:07:47.240 --> 00:07:50.799
Boardroom: Thank you very much, Mr. City Clerk. Are there any questions from Council?

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68
00:07:53.160 --> 00:07:58.780
Boardroom: Seeing no questions… In that case…

69
00:07:59.240 --> 00:08:01.850
Boardroom: I will see if there's any public comment on this item.

70
00:08:13.030 --> 00:08:16.989
Boardroom: Good afternoon. Jeff Lomax, with our… within our means Berkeley.

71
00:08:17.100 --> 00:08:26.870
Boardroom: After asking residents to absorb a 10-25% increase in property taxes through measures you championed and parcel tax inflators you approved on consent.

72
00:08:27.150 --> 00:08:31.860
Boardroom: You've made no meaningful structural changes to reduce the city's $30 million deficit.

73
00:08:32.030 --> 00:08:35.069
Boardroom: Your response has not been strategic reform.

74
00:08:35.309 --> 00:08:45.159
Boardroom: It's been blunt instruments of more taxes and more borrowing, endorsing a theater tax that selectively picks winners and losers, taking money from one business to subsidize another.

75
00:08:45.450 --> 00:08:47.050
Boardroom: Raising the sales tax.

76
00:08:47.400 --> 00:08:51.309
Boardroom: And now you're seeking, in the fourth item, second on the list.

77
00:08:51.460 --> 00:08:55.960
Boardroom: More permanent borrowing authority to put deficit financing on autopilot.

78
00:08:56.540 --> 00:09:08.439
Boardroom: This is not fiscal stewardship, it's death by a thousand cuts. It's a crushing middle- and fixed-income residents and small businesses that can't absorb endless new assessments to subsidize special interests.

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79
00:09:08.550 --> 00:09:11.209
Boardroom: So the next time you speak about the missing middle.

80
00:09:11.460 --> 00:09:17.610
Boardroom: affordability, I urge you to look in the mirror. Policies like item 43233

81
00:09:17.880 --> 00:09:21.480
Boardroom: 232 are not the solution, they're the problem.

82
00:09:24.280 --> 00:09:25.190
Boardroom: Thank you.

83
00:09:25.400 --> 00:09:27.449
Boardroom: Did you have a public comment on this item?

84
00:09:31.000 --> 00:09:35.250
Boardroom: That's okay, we have another regular meeting later. This is a special meeting.

85
00:09:38.510 --> 00:09:39.260
Boardroom: Sweetie?

86
00:09:39.680 --> 00:09:42.910
Boardroom: You can come to the next meeting for that one, yes.

87
00:09:45.060 --> 00:09:46.509
Boardroom: Thank you. At 6 o'clock.

88
00:09:47.430 --> 00:09:49.549
Boardroom: At 6 o'clock. Feel free to hang out.

89
00:09:49.820 --> 00:09:53.189
Boardroom: Is there another comment, public comment on this item?

90
00:10:00.490 --> 00:10:07.139
Boardroom: I just wanted to make a brief comment regarding the rezoning of the Gilman Street.

91

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00:10:07.400 --> 00:10:10.000
Boardroom: From, San Pablo to I-80.

92
00:10:10.310 --> 00:10:15.010
Boardroom: In regard to manufacturing, research, and development,

93
00:10:16.130 --> 00:10:20.459
Boardroom: Listed as priority number 4 on, this list of…

94
00:10:20.640 --> 00:10:24.069
Boardroom: potential items to green light as a lump.

95
00:10:24.800 --> 00:10:29.060
Boardroom: But I do think that would have a significant effect on the culture of that district.

96
00:10:29.620 --> 00:10:33.749
Boardroom: That ought to be taken into consideration, because…

97
00:10:35.250 --> 00:10:42.259
Boardroom: I mean, a lot of the technological proliferation in the city of Berkeley is due to the UC, and it doesn't need to

98
00:10:42.580 --> 00:10:45.659
Boardroom: Kill out the culture that grows on the streets of Berkeley.

99
00:10:45.870 --> 00:10:47.840
Boardroom: For which Berkeley is so famous?

100
00:10:49.360 --> 00:10:52.689
Boardroom: And it's true to the spirit of character.

101
00:10:53.390 --> 00:10:58.120
Boardroom: So… Just wanted to bring that to y'all's attention,

102
00:10:58.500 --> 00:11:01.079
Boardroom: Make sure you take the proper precautions.

103
00:11:01.280 --> 00:11:03.480
Boardroom: In regard to that potential rezoning.

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104
00:11:05.350 --> 00:11:06.420
Boardroom: Thank you!

105
00:11:08.230 --> 00:11:10.279
Boardroom: Any other public comment may be online.

106
00:11:10.630 --> 00:11:16.040
Boardroom: There's one hand raised, on the Zoom, and that is Paul…

107
00:11:16.320 --> 00:11:19.500
Boardroom: Matthew, Paul, you should be able to… Unmute.

108
00:11:20.910 --> 00:11:45.879
Paul Mathew: Thank you. Thank you, Councilmember. I hope you can hear me. Or rather, whole council, I hope you can hear me. I've been a Berkeley resident for about 19 years. I appreciate that the Council and staff have this structured process for prioritizing and ranking referrals, so just want to commend you for that, actually. First, I want to comment on the fourth item on fiscal policies and bond issuance. In general, I definitely support the idea of a structured process.

109
00:11:45.880 --> 00:12:10.649
Paul Mathew: backed up by good analysis, and I especially like the idea of benchmarking against best practices in other cities, so I was really glad to see that. I have two concerns, which are really… what I see as more is emissions, and I think it would be… the whole item would be strengthened by addressing those. The first is that I think any analysis on bond issuance should explicitly and carefully analyze impacts on property taxes and the financial strain on homeowners.

110
00:12:10.650 --> 00:12:29.630
Paul Mathew: Just an example from my own personal case, you know, I'm a UC retiree on a pension, and I got an annual 2% increase on that pension. Last year, my property taxes, the fixed assessments, went up by 27%. So, you know, it's just… those kinds of strains are not just on me, but many other people like me.

111
00:12:29.630 --> 00:12:36.429
Paul Mathew: So I think it really… any analysis must look at impacts on a financial strain on homeowners with property taxes.

112
00:12:36.510 --> 00:12:56.110
Paul Mathew: And the second item is that we need to look at lifecycle operating costs for… because these bonds are for capital cost items, I

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get that, and that makes sense, that capital costs are covered by bonds. But, you know, once the building is built, there are obviously lifecycle costs, maintenance costs, and I think any analysis should cover that as well. Thank you.

113
00:12:57.230 --> 00:12:59.530
Boardroom: Thank you. Other public comment online?

114
00:13:00.390 --> 00:13:01.799
Boardroom: No other hands raised.

115
00:13:03.580 --> 00:13:06.629
Boardroom: Very well. Are there any comments from Council?

116
00:13:10.720 --> 00:13:11.780
Boardroom: Or motion.

117
00:13:14.020 --> 00:13:25.900
Boardroom: Yes, Councilmember Humbert. Thank you, Madam Mayor. I want to thank the City Clerk and the City Manager's Office for their work on this effort. I also want to thank my illustrious predecessor.

118
00:13:26.000 --> 00:13:31.310
Boardroom: Councilmember Lori Drosti for bringing this process to Council some number of years ago.

119
00:13:31.760 --> 00:13:37.760
Boardroom: I know that our budget situation, our ability to work on even the most high-priority items is going to be limited.

120
00:13:37.910 --> 00:13:42.279
Boardroom: But I nonetheless think this is a great exercise for us to do.

121
00:13:42.490 --> 00:13:49.359
Boardroom: in order to contemplate and compare our priorities among Council, and try to get on the same page about what we'd like to see

122
00:13:49.450 --> 00:14:06.159
Boardroom: done, given limited resources. I'll add that the main theme I'm seeing here is an emphasis on infrastructure, shared streets, and pedestrian and bicycle safety. And I'm very gratified that we have a strong consensus around these

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123
00:14:06.440 --> 00:14:11.730
Boardroom: Public realm efforts that are so important for, you know, safety and quality of life.

124
00:14:12.230 --> 00:14:18.300
Boardroom: I'm prepared to… We'll approve this list, and we'll hold out hope that with various public funds, grants, and

125
00:14:18.600 --> 00:14:25.339
Boardroom: maybe future revenue increases, we'll be able to tackle all the high priority items on the list. Thanks.

126
00:14:25.900 --> 00:14:27.700
Boardroom: Thank you, Councilmember Lunapara.

127
00:14:28.170 --> 00:14:30.109
Boardroom: Thank you. I'll move… Vice Mayor.

128
00:14:30.710 --> 00:14:33.190
Boardroom: I'll move to approve the staff recommendation.

129
00:14:33.790 --> 00:14:34.530
Terry Taplin: Second.

130
00:14:35.870 --> 00:14:37.760
Boardroom: Okay, Clerk, can you please take the roll?

131
00:14:38.400 --> 00:14:41.990
Boardroom: Okay, to adopt the prioritized list of referrals.

132
00:14:43.350 --> 00:14:44.870
Boardroom: Councilmember Taplin?

133
00:14:45.150 --> 00:14:45.890
Terry Taplin: Yes.

134
00:14:47.780 --> 00:14:50.080
Boardroom: Senator Tregebob? Aye. O'Keefe?

135
00:14:51.810 --> 00:14:52.580

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Boardroom: Yes.

136
00:14:53.890 --> 00:14:54.730
Boardroom: Napara?

137
00:14:55.230 --> 00:14:55.970
Boardroom: Yes.

138
00:14:56.340 --> 00:14:57.430
Boardroom: Bert, yes.

139
00:14:57.720 --> 00:14:59.010
Boardroom: And Mary Ishii. Yes.

140
00:15:00.210 --> 00:15:10.970
Boardroom: Motion carries. Very good, thank you very much. This is the last item on our special agenda meeting packet, so, our calendar. Is there a motion to adjourn? So moved. Second.

141
00:15:11.470 --> 00:15:13.310
Boardroom: Can you take the roll for that, please, Clerk?

142
00:15:13.850 --> 00:15:16.390
Boardroom: Okay, Councilmember… Taplan.

143
00:15:16.390 --> 00:15:17.130
Terry Taplin: Yes.

144
00:15:17.920 --> 00:15:21.359
Boardroom: Tragib? Aye. O'Keefe? Yes. Lunapara?

145
00:15:21.700 --> 00:15:22.360
Boardroom: Yes.

146
00:15:22.930 --> 00:15:25.430
Boardroom: Yes. And Mayor Ishii? Yes.

147
00:15:25.750 --> 00:15:28.710
Boardroom: Okay, we are adjourned. Thank you very much.

148

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00:15:29.650 --> 00:15:32.560
Boardroom: Alright, our regular meeting will start at 6 p.m.

149
00:15:40.480 --> 00:15:42.639
Boardroom: Hello, everyone, good evening.

150
00:15:43.240 --> 00:15:44.290
Boardroom: All right.

151
00:15:45.530 --> 00:15:52.539
Boardroom: I am going to call to order the Berkeley City Council meeting. Today is Tuesday, February 10th, 2026.

152
00:15:53.020 --> 00:15:54.780
Boardroom: Clerk, could you please take the roll?

153
00:15:55.140 --> 00:15:57.790
Boardroom: Okay, Councilmember Kisarwani? Here.

154
00:15:58.070 --> 00:15:58.950
Boardroom: chaplan?

155
00:15:58.950 --> 00:15:59.840
Terry Taplin: Presence.

156
00:16:00.340 --> 00:16:01.530
Boardroom: Bartlett? Here.

157
00:16:01.710 --> 00:16:04.339
Boardroom: Trega? Aye. O'Kee? Oh, pleasant.

158
00:16:05.550 --> 00:16:06.280
Boardroom: Here.

159
00:16:06.490 --> 00:16:08.940
Boardroom: Here. Lunapara? Here.

160
00:16:09.390 --> 00:16:23.610
Boardroom: Present. And Mayor Ishii? Here. Okay, quorum is present. Alright, so it is the first meeting of February, so we will have Councilmember O'Keefe read the land acknowledgement statement. For those

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of you that don't know, we've been taking turns reading the land acknowledgement.

161
00:16:23.730 --> 00:16:26.969
Boardroom: And so, Councilmember O'Keefe, if you could take it away, please.

162
00:16:27.170 --> 00:16:27.930
Boardroom: Okay.

163
00:16:31.250 --> 00:16:42.029
Boardroom: The City of Berkeley recognizes that the community we live in was built on the territory of the Huchun, the ancestral and unceded land of the Tuchenyo-speaking Ohlone people.

164
00:16:42.600 --> 00:16:47.000
Boardroom: The ancestors and descendants of the sovereign Verona Band of Alameda County.

165
00:16:48.260 --> 00:16:54.779
Boardroom: This land was, and continues to be, of great importance to all of the Ohlone tribes and descendants of the Verona Band.

166
00:16:55.640 --> 00:16:57.530
Boardroom: As we begin our meeting tonight.

167
00:16:57.810 --> 00:17:11.050
Boardroom: We acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shell Mound, and the Ohlone people who continue to reside in the East Bay.

168
00:17:11.810 --> 00:17:24.070
Boardroom: We continue… we recognize that Berkeley's residents have and continue to benefit from the use and occupation of this unceded, stolen land since the City of Berkeley's incorporation in 1878.

169
00:17:24.569 --> 00:17:38.299
Boardroom: As stewards of the laws regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today.

170

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00:17:39.040 --> 00:17:48.030
Boardroom: The City of Berkeley will continue to build relationships with the Lijon tribe, and to create meaningful actions that uphold the intention of this land acknowledgement.

171
00:17:49.750 --> 00:18:08.610
Boardroom: Thank you very much, Councilmember. We will now move on to ceremonial items. So, we have a proclamation that was brought by Councilmember Humbert. So, Councilmember, you're welcome to read the proclamation, and I know you have some remarks as well. And actually, if the awardees would like to come forward… go ahead.

172
00:18:11.210 --> 00:18:15.089
Boardroom: Yeah, I'll… The whole troop could come up, if you'd like.

173
00:18:18.920 --> 00:18:20.190
Boardroom: The entourage.

174
00:18:37.450 --> 00:18:38.310
Boardroom: Thank you.

175
00:18:38.780 --> 00:18:47.589
Boardroom: I want to thank the Mayor and her staff for helping create a proclamation recognizing the work of Tom Broem and Barry Warren.

176
00:18:47.890 --> 00:18:57.320
Boardroom: and were instrumental in advocating for the City of Berkeley to establish first-in-the-nation recognition of same-sex domestic partnerships.

177
00:18:57.550 --> 00:19:01.840
Boardroom: I'm proud that these brave and persistent men are Berkeleyans.

178
00:19:02.330 --> 00:19:10.569
Boardroom: I'll now read the proclamation in recognition of their service to Berkeley and the broader LGBTQIA plus community.

179
00:19:12.030 --> 00:19:13.310
Boardroom: Whereas?

180
00:19:13.450 --> 00:19:19.240
Boardroom: Tom Brum and Barry Warren have shared their lives together since 1975.

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181
00:19:19.520 --> 00:19:24.939
Boardroom: And through their tireless advocacy, Fundamentally changed the landscape.

182
00:19:26.450 --> 00:19:34.040
Boardroom: of civil rights for the LGBTQIA plus community in Berkeley, the United States, and across the world.

183
00:19:34.610 --> 00:19:45.099
Boardroom: And whereas, in 1979, while working for this city, the City of Berkeley, Tom Brum discovered that he could not enroll his partner, Barry Warren.

184
00:19:45.570 --> 00:19:52.110
Boardroom: In city health and dental benefits, because those programs were strictly limited to married spouses.

185
00:19:52.600 --> 00:20:01.110
Boardroom: And whereas Tom Brohm recognized a critical contradiction between Berkeley's 1978 non-discrimination ordinance.

186
00:20:01.180 --> 00:20:12.919
Boardroom: and its exclusionary marriage-based benefits, leading him to author two historic letters in August 1979, proposing the first domestic partnership policy, and…

187
00:20:13.180 --> 00:20:22.879
Boardroom: Whereas Tom and Barry spent years persistently lobbying the City of Berkeley, the University of California, and local unions to adopt this new legal protection.

188
00:20:23.030 --> 00:20:29.470
Boardroom: Providing a path for equity, rooted in basic fairness, and recognizing shared humanity.

189
00:20:29.670 --> 00:20:47.829
Boardroom: And whereas, their work inspired the formation of the East Bay Lesbian Gay Democratic Club, which organized a methodical, community-led campaign that successfully made domestic partnerships a central issue in the 1984 Berkeley municipal elections.

190
00:20:48.080 --> 00:21:05.240

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Boardroom: And whereas, in December 1984, the City of Berkeley enacted the first policy of its kind in California, and I think the nation, and Tom Brum and Barry Warren became the first couple to file for employee domestic partnership benefits under this landmark legislation.

191
00:21:05.500 --> 00:21:23.370
Boardroom: And whereas this pioneering policy served as a national model overcoming the resistance of healthcare providers, employers, and reactionary opposition, and paving the way for statewide registries, civil unions, and eventually, full marriage equality.

192
00:21:23.970 --> 00:21:30.389
Boardroom: Whereas Tom Brum continued his service to the public as the first openly gay elected official in the East Bay.

193
00:21:30.510 --> 00:21:37.399
Boardroom: Serving as Peralta College Community District Trustee from 1986 to 2000. 14 years.

194
00:21:37.480 --> 00:21:42.089
Boardroom: Where he remained a champion for educational opportunity. And…

195
00:21:42.130 --> 00:21:58.489
Boardroom: Whereas since 2000, on a lighter note, Barry and Tom have hosted more than 100 community events, including more than 90 supper and song dinner concerts, bringing together local musicians and music lovers in celebration and community, and…

196
00:21:58.890 --> 00:22:17.859
Boardroom: Whereas Barry Warren, Barry and Warren's steadfast partnership and his own advocacy as a University of California employee were indispensable to the success of this movement, which has since provided immeasurable benefits, security, and dignity to millions of families.

197
00:22:18.280 --> 00:22:30.330
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby recognize Tom Braum and Barry Warren for their visionary leadership

198
00:22:30.480 --> 00:22:43.290
Boardroom: their decades of activism, and the historic role in securing the first domestic partnership policy, ensuring that the City of Berkeley and the United States remain beacons of equality and justice for all.

199

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00:22:52.490 --> 00:23:00.040
Boardroom: If you'd like to say a few words, you can. And I will present this, this city… the formal City of Berkeley Proclamation. I'll come out.

200
00:23:00.580 --> 00:23:03.539
Boardroom: My remarks are going to be very brief.

201
00:23:03.830 --> 00:23:08.259
Boardroom: Because the proclamation said so much, it was so…

202
00:23:08.420 --> 00:23:17.639
Boardroom: detailed in recounting the steps that we originally went through. So I thank you for the thoughtfulness of the

203
00:23:17.780 --> 00:23:21.580
Boardroom: Proclamation, and for the work that went into it.

204
00:23:22.050 --> 00:23:23.369
Boardroom: You did your research.

205
00:23:24.320 --> 00:23:27.610
Boardroom: We're very grateful for this community.

206
00:23:30.220 --> 00:23:36.600
Boardroom: It's lovely to have lived here all of our lives, and…

207
00:23:38.360 --> 00:23:42.500
Boardroom: Perhaps there's no… at the time, there was no other place

208
00:23:42.750 --> 00:23:48.455
Boardroom: on the face of the earth, Would have undertaken the risk

209
00:23:49.390 --> 00:23:56.959
Boardroom: When the city council took seat in 1984, they basically said, do it, and we'll pay the bills.

210
00:23:57.200 --> 00:24:00.470
Boardroom: there was… It was a great act of faith.

211
00:24:00.990 --> 00:24:03.740
Boardroom: No one quite knew how it would work.

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212
00:24:04.520 --> 00:24:07.589
Boardroom: And we thought it would work just fine.

213
00:24:08.050 --> 00:24:10.889
Boardroom: But… There was no precedent at all.

214
00:24:11.020 --> 00:24:14.609
Boardroom: And so, I think it's a great celebration of this community.

215
00:24:14.860 --> 00:24:17.409
Boardroom: That this is the first place in the world

216
00:24:17.700 --> 00:24:22.630
Boardroom: That simply stepped up to the plate and said, Let's do it.

217
00:24:23.010 --> 00:24:23.949
Boardroom: pay for it.

218
00:24:24.230 --> 00:24:24.990
Boardroom: Thank you.

219
00:25:31.260 --> 00:25:38.690
Boardroom: Thank you so much. Okay, we now have a proclamation and also an adjournment in memory in honor of Todd Walker.

220
00:25:39.510 --> 00:25:45.850
Boardroom: If family, friends, folks who are here to support him, you're welcome to come up to the podium here.

221
00:25:48.070 --> 00:25:54.360
Boardroom: And this adjournment in memory was brought forward by Councilmember Ben Bartlett, Councilmember for District 3.

222
00:25:54.740 --> 00:25:57.860
Boardroom: And I will read the proclamation as you are coming up.

223
00:25:59.260 --> 00:26:02.030
Boardroom: Honoring the life and legacy of Todd Walker.

224

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00:26:02.240 --> 00:26:14.939
Boardroom: Whereas Edward Todd Walker was a beloved son, father, grandfather, brother, uncle, friend, coach, mentor, and esteemed colleague who devoted his life to serving the Berkeley community with unwavering commitment and love.

225
00:26:14.950 --> 00:26:29.499
Boardroom: And whereas Todd Walker served as a community peace ambassador, life coach, street outreach worker, violence interrupter, and community leader, dedicating himself to community-led gun violence prevention and intervention work that saved lives and transformed our city.

226
00:26:29.680 --> 00:26:36.419
Boardroom: And whereas through his work with Live Free California, Todd Walker was instrumental in achieving Berkeley's historic milestone

227
00:26:36.420 --> 00:26:45.339
Boardroom: In 2025, of 100% reduction in gun violence, a testament to his tireless efforts and the power of community-centered approaches to public safety.

228
00:26:45.340 --> 00:26:56.479
Boardroom: And whereas Todd Walker was a pillar of faith and service at McGee Avenue Baptist Church, where his spiritual leadership touched countless lives and created a foundation of hope and healing for community members.

229
00:26:56.480 --> 00:27:05.010
Boardroom: And whereas Todd Walker built bridges across our community, working collaboratively with city leaders, journalists, community residents, youth and families.

230
00:27:05.010 --> 00:27:18.109
Boardroom: and sports teams to create a safer, more connected Berkeley, and whereas Todd Walker's life exemplified the values of compassion, dedication, servant leadership, and an unshakable belief in the potential of every person he encountered.

231
00:27:18.360 --> 00:27:32.939
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, hereby honor the life and legacy of Todd Walker, recognizing his invaluable contributions to our city, and celebrating the remarkable impact of his life and work.

232

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00:27:33.030 --> 00:27:39.059
Boardroom: The Berkeley community grieves the loss of Todd Walker while celebrating a life well lived in service to others.

233
00:27:54.670 --> 00:27:58.410
Boardroom: Thank you, Madam Mayor and Council, community.

234
00:27:58.870 --> 00:28:02.290
Boardroom: the last time I stood here, we were receiving,

235
00:28:02.960 --> 00:28:07.130
Boardroom: A million dollar grant that we got to, expand the program.

236
00:28:09.380 --> 00:28:15.029
Boardroom: And I was told that we had two options, and that Todd came up with me, and so we talking as we coming up.

237
00:28:15.390 --> 00:28:21.180
Boardroom: And I said, okay, well, I'm gonna take, you know, 30 seconds, and I'mma give you 30 seconds. He pushed me in my back, he said, no, you got it, you got it.

238
00:28:21.450 --> 00:28:26.960
Boardroom: I was interested in seeing him publicly speak, knowing his track record, his history.

239
00:28:27.270 --> 00:28:30.920
Boardroom: Todd has a legacy, within the work, within the community.

240
00:28:31.280 --> 00:28:36.039
Boardroom: That will never be forgotten. He's touched so many lives, he's impacted so many people.

241
00:28:36.980 --> 00:28:38.289
Boardroom: A true trooper.

242
00:28:38.580 --> 00:28:44.359
Boardroom: To those who do not know and hadn't had the opportunity to spend time with him, Todd was a true historian of Berkeley.

243
00:28:44.640 --> 00:28:50.590

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Boardroom: If you sat down with him, he would give you knowledge and information from his experience growing up in the city.

244
00:28:51.000 --> 00:28:54.520
Boardroom: Information that was passed down from, you know, his older brothers, and…

245
00:28:54.660 --> 00:28:57.550
Boardroom: As well as his own experience, and so,

246
00:28:58.130 --> 00:29:00.540
Boardroom: Our hearts are deeply saddened in this moment.

247
00:29:00.820 --> 00:29:06.160
Boardroom: But we were also inspired to know, that we must continue to allow his legacy to live on.

248
00:29:06.320 --> 00:29:22.860
Boardroom: We must continue to put forth the work and the efforts to make public safety a reality in the City of Berkeley, to challenge all individuals to relinquish sides and come together as one community for the sake of peace and justice. Ty was an advocate, a fierce advocate.

249
00:29:23.200 --> 00:29:26.990
Boardroom: As someone who stood by principles, And,

250
00:29:27.490 --> 00:29:35.700
Boardroom: in a short amount of time that we've worked together, he showed me so much. I remember seeing a new special in 2006 or 7,

251
00:29:36.810 --> 00:29:41.400
Boardroom: as I was dealing with some of the young men in my career that we've lost to gun violence.

252
00:29:42.210 --> 00:29:45.529
Boardroom: I met Todd at a funeral of one of my young persons.

253
00:29:46.080 --> 00:29:49.900
Boardroom: And it was his commitment to that family and making sure that things were done dignified.

254
00:29:50.490 --> 00:30:04.700

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Boardroom: To make sure that there was honor and respect towards the loss of the family members, but also honor and respect towards community. And so, we just want to continue to allow his legacy to live on. We're going to continue to do this great work, in honor of him.

255
00:30:05.170 --> 00:30:09.610
Boardroom: And we just really appreciate… I want to acknowledge both of his daughters are here tonight.

256
00:30:10.110 --> 00:30:22.949
Boardroom: And I want to acknowledge his brother, his, his, one of his oldest brothers, I mean, older brother is here as well tonight. So, on behalf of the Live Free team, on behalf of the City of Berkeley, we thank you and appreciate you for this acknowledgement.

257
00:30:23.230 --> 00:30:25.980
Boardroom: And we'll continue to do great work in his name. Thank you.

258
00:30:59.270 --> 00:30:59.990
Boardroom: See, spiraling.

259
00:31:01.120 --> 00:31:03.220
Boardroom: He was really… Envolt.

260
00:31:14.230 --> 00:31:14.810
Boardroom: Mr.

261
00:31:41.630 --> 00:31:42.319
Boardroom: Oh, so they're trying.

262
00:32:06.150 --> 00:32:06.970
Boardroom: Thank you, everyone.

263
00:32:11.550 --> 00:32:12.509
Boardroom: Hold on, man.

264
00:32:16.680 --> 00:32:17.800
Boardroom: Okay.

265
00:32:20.170 --> 00:32:30.889
Boardroom: Alright, so the final ceremonial item this evening, is just a very brief presentation that I have. I was recently in Washington, D.C.

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266
00:32:31.160 --> 00:32:38.120
Boardroom: And I want to make sure that you all know about… My trip there, yes.

267
00:32:39.530 --> 00:32:40.810
Boardroom: Okay…

268
00:32:43.850 --> 00:32:44.650
Boardroom: Hmm…

269
00:32:45.520 --> 00:32:50.939
Boardroom: If I do this, then you won't be able to… I won't be able to see my notes, so I'm gonna keep it…

270
00:32:51.440 --> 00:32:52.430
Boardroom: Here.

271
00:32:53.710 --> 00:32:54.830
Boardroom: Alright.

272
00:32:59.480 --> 00:33:03.439
Boardroom: Okay, so, alright, everyone, so at the end of January.

273
00:33:05.090 --> 00:33:10.999
Boardroom: Alright, at the end of January, I attended the United States Conference of Mayors, followed by the Mayor's Innovation Project.

274
00:33:11.180 --> 00:33:14.530
Boardroom: At the U.S. Conference of Mayors.

275
00:33:15.370 --> 00:33:24.810
Boardroom: So you can see, I went to the U.S. Conference of Mayors. I'm also gonna talk about the Mayor's Innovation Project, I'm going to briefly discuss some of the lobbying that I did there, and also some key takeaways.

276
00:33:27.420 --> 00:33:33.109
Boardroom: So, at the U.S. Conference of Mayors, there were 3 significant bipartisan takeaways that I want to share.

277

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00:33:33.160 --> 00:33:42.950
Boardroom: Housing was a really big topic there. The conference opened with a statement from, from Republican Senator Tim Scott and Democratic Senator Elizabeth Warren.

278
00:33:42.950 --> 00:33:54.740
Boardroom: who came in person to talk about the bipartisan, unanimously supported Road to Housing bill. This bill encompasses things that both parties could agree on to address the national housing crisis by growing more housing stock.

279
00:33:55.000 --> 00:34:12.669
Boardroom: There was also a very clear opposition to the Department of Homeland Security, Immigration, DHS, Customs Enforce… Immigration Customs Enforcement, ICE, and Customs and Border Patrol, CBP, takeover and invasion of American cities, along with indiscriminate attacks on our immigrant community.

280
00:34:12.820 --> 00:34:28.169
Boardroom: During the U.S. Conference of Mayors press conference, we heard public testimonies from Minnesota mayors and the terror being imposed on their communities. Some of the mayors shared, that they themselves are carrying around their own passports because they're concerned that they may get picked up off the street.

281
00:34:28.469 --> 00:34:36.439
Boardroom: They talked about businesses being closed, schools, where children are not going to school because they're afraid of what's going on.

282
00:34:36.840 --> 00:34:43.379
Boardroom: And I think it's important to bring that back to our communities so that folks know about what's happening in other parts of our country.

283
00:34:43.780 --> 00:34:52.530
Boardroom: Another thing I wanted to bring up that I thought was important for my colleagues to know in particular is the… since we were talking about the safety and security of elected officials.

284
00:34:52.530 --> 00:35:06.439
Boardroom: So I've actually asked our city manager and our chief of police to do a security audit of our building, and I want to recommend that all of my council colleagues also do security audits of their homes as well, if they haven't had an opportunity to do so.

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285
00:35:06.600 --> 00:35:18.720
Boardroom: It's a very scary time, unfortunately, for those of us who are elected leaders, and leaders from around the country. We're talking about some of the scary incidents that they faced, so I want to bring that up as something important for folks to know about.

286
00:35:19.420 --> 00:35:39.230
Boardroom: The two days were full of workshops and sessions on a full range of topics, and Julie Sinai, who is my Chief of Policy, and I attended sessions on artificial intelligence, housing, city design, transportation, immigration responses, economic development. I also attended the AAPI Mayor's session and, volunteered to assist them in growing.

287
00:35:39.530 --> 00:35:44.879
Boardroom: So, the next thing I want to talk about is the Mayor's Innovation Project.

288
00:35:45.700 --> 00:35:52.509
Boardroom: So… Immediately following the U.S. Conference of Marist was the one and a half day Marist Innovation Project.

289
00:35:52.790 --> 00:35:53.700
Boardroom: MIP.

290
00:35:53.950 --> 00:36:09.590
Boardroom: NIP is a national learning network for mayors committed to shared prosperity, environmental sustainability, and efficient democratic government. They support mayors around the country who are taking the lead on pressing issues, climate change, racial equity, economic revitalization, housing, and more.

291
00:36:09.630 --> 00:36:22.160
Boardroom: The four in-depth sessions that we attended were Leading Under Pressure, Protecting Elected Officials, Leading Through Uncertainty, A Fiscal Playbook for a Thriving Community, very relevant to our conversations that we're having right now about the budget crisis.

292
00:36:22.250 --> 00:36:39.720
Boardroom: From crisis to community asset, building a supportive childcare ecosystem for families and workers, and building an age-friendly city, the imperative of aging in place. That photo in particular was about the aging session. Very interesting topics, from our young and to our older members of our community.

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293
00:36:39.840 --> 00:36:58.069
Boardroom: Additionally, we got the benefit of an Innovations Showcase, which is a speed dating type of presentation form from 10 cities, chairing innovations over the past few years. Everything from seawalls to protecting urban trees, parks, housing, transit, better public meetings, and more. They only had, I think, 3 minutes to present each, so it's very quick.

294
00:36:58.240 --> 00:37:08.179
Boardroom: The annual winter sessions, are timed with the opening of the congressional session to make the most out of mayoral power and influence with the 119th congressional session.

295
00:37:09.020 --> 00:37:15.949
Boardroom: So… While in DC, we leveraged this time to meet with our congressional delegation.

296
00:37:16.390 --> 00:37:20.669
Boardroom: I had 4 productive meetings. We met with U.S. Forest Service.

297
00:37:20.820 --> 00:37:36.710
Boardroom: Which was virtual, given the snowstorm. I don't know if you know, but when I was in DC, there was really record storm. our purpose was to talk with the department, leads about our EMBERS policy. We met with the branch chief, the California lead, and other members of the forestry service.

298
00:37:36.820 --> 00:37:48.660
Boardroom: They applauded our city for being the first in the country to seriously prepare for and address wildfire risks in our wildland-urban interface. Our EMBERS program, they said, is the first of its kind in the nation.

299
00:37:48.740 --> 00:38:08.309
Boardroom: They were very interested in learning more about how we're implementing our ordinance, what's working, what isn't. We stressed the importance of the department, continuing to provide the research and science supporting our efforts. I also, of course, highlighted our really great community efforts, and all of the efforts that are happening from our fire department, including interns who are literally going door-to-door.

300
00:38:08.500 --> 00:38:21.090
Boardroom: I met with Senator Schiff and had the opportunity actually to connect with him one-on-one. Of course, we talked about fire safety and

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Ember, but also small businesses and just portos. I don't know if you know, but he's from Burbank originally.

301
00:38:21.250 --> 00:38:24.610
Boardroom: Porto's is a great bakery down there. Anyway…

302
00:38:25.140 --> 00:38:32.389
Boardroom: It's important to have those conversations, too. We met with Congresswoman Laceva Simon's office, her legislative director.

303
00:38:32.660 --> 00:38:42.879
Boardroom: it was great to provide some context. Oftentimes, folks who are working in DC, haven't actually been to the cities that they're representing, so it's good for them to understand what we're doing in our city.

304
00:38:42.880 --> 00:38:53.040
Boardroom: Senator Alex Padilla's office, we met with legislative staff who lead the Senator's housing, immigration, and fire policy agendas, and we also met with Senator Adam Schiff's staff, which met with

305
00:38:53.110 --> 00:38:56.390
Boardroom: About housing, disaster preparedness, and health.

306
00:38:56.690 --> 00:39:05.880
Boardroom: I gave updates on what our city is doing to address various issues, what opportunities there could be to work together, and we asked them what we could be doing to support their work in Congress.

307
00:39:05.950 --> 00:39:19.119
Boardroom: Some of the ideas included loss of interest in keeping up to date on our EMBERS work, commitment to staying engaged and updated on ice activity in the Bay, and continuing to provide stories from the district that support our policy goals.

308
00:39:19.130 --> 00:39:33.540
Boardroom: And as part of the Conference of Mayors, I joined the delegation of California mayors in a one-hour briefing with both Senators Padilla and Schiff, where the focus was on immigration and also infrastructure. They allowed us to ask questions, and one of the things that I mentioned was…

309
00:39:33.710 --> 00:39:50.429

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Boardroom: You know, about thinking about how we can continue to move things forward as many of the things in our country feel like they're actually going backwards. And so briefly, just my key takeaway is just housing, housing, housing. It's amazing how mayors across the country are all talking about housing and homelessness and the importance of

310
00:39:50.560 --> 00:40:05.179
Boardroom: of building… importance of building more housing. Immigration, of course, was a very serious topic, as I mentioned, and bipartisan unity. I was very heartwarmed to see that mayors around the country were willing to have conversations across party lines.

311
00:40:05.180 --> 00:40:17.259
Boardroom: in order to be, focused on the matters at hand, and really supporting our community members. I think that that was really important. So, thank you all for giving me some time to talk about that.

312
00:40:25.190 --> 00:40:28.550
Boardroom: Okay, I am going to…

313
00:40:39.410 --> 00:40:40.470
Boardroom: Alright.

314
00:40:41.330 --> 00:40:44.419
Boardroom: Very good. Now, moving us on to the agenda…

315
00:40:46.770 --> 00:40:58.949
Boardroom: We are now finished with our ceremonial items, and I will check to see if the City Manager has any comments. No comments. Thank you, Madam Mayor. Okay. We will now take public comment on non-agenda matters.

316
00:41:04.670 --> 00:41:09.520
Boardroom: Okay, so we'll draw 5 cards for in-person speakers.

317
00:41:09.670 --> 00:41:14.840
Boardroom: And then now is the time… If you're participating remotely.

318
00:41:15.010 --> 00:41:22.099
Boardroom: on Zoom, if you intend to speak on non-agenda matters, now's time to raise your hand.

319
00:41:44.920 --> 00:41:49.030

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Boardroom: Okay, so the five speakers, and please come up in any order.

320
00:41:49.160 --> 00:41:59.900
Boardroom: is, Steve Tracy, Gina Rieger… Carol Morasovic, Steven Alpert, and Pam Jacob.

321
00:42:06.490 --> 00:42:09.359
Boardroom: So if you heard your name called, please come on up.

322
00:42:22.610 --> 00:42:23.460
Boardroom: Come on out!

323
00:42:30.880 --> 00:42:38.179
Boardroom: There's a chance to speak at the end of the meeting. Good evening, Mayor, Council, and, and, City of Berkeley.

324
00:42:38.370 --> 00:42:40.119
Boardroom: Is it manager and attorney.

325
00:42:41.820 --> 00:42:42.940
Boardroom: Redundant.

326
00:42:52.270 --> 00:42:53.330
Boardroom: redundant.

327
00:42:55.630 --> 00:42:57.490
Boardroom: That's our health department.

328
00:42:57.780 --> 00:42:58.920
Boardroom: in Berkeley.

329
00:43:01.350 --> 00:43:07.030
Boardroom: $27 million… of a deficit. Almost half of it.

330
00:43:07.570 --> 00:43:09.929
Boardroom: Is a redundant health department.

331
00:43:11.300 --> 00:43:15.179
Boardroom: The county's number is way bigger than 12 million.

332

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00:43:15.520 --> 00:43:17.930
Boardroom: It's $1.4 billion.

333
00:43:18.620 --> 00:43:22.509
Boardroom: So Berkeley is spending 1% of the county total.

334
00:43:24.950 --> 00:43:31.010
Boardroom: But… Dave… Let's see, 12 out of 27.

335
00:43:32.820 --> 00:43:34.930
Boardroom: We could save about half of that deficit.

336
00:43:35.190 --> 00:43:38.890
Boardroom: By getting rid of the redundant department.

337
00:43:41.700 --> 00:43:57.709
Boardroom: Any chance we can rotate this to where it was last year, so the speaker doesn't have their back to the audience, and the speaker can acknowledge certain individuals without having to twist the neck? Is that… I think your time's up. I think your time's up. I didn't hear the…

338
00:43:58.030 --> 00:44:04.450
Boardroom: Sound, but your time is actually up, and the… actually, the podium has been consistently that way, so…

339
00:44:04.560 --> 00:44:06.440
Boardroom: Next speaker.

340
00:44:10.410 --> 00:44:11.180
Boardroom: Where's the…

341
00:44:14.720 --> 00:44:16.699
Boardroom: Before I speak, I just want to address

342
00:44:16.900 --> 00:44:24.439
Boardroom: These three screens are unseeable by people in the audience. You can't see anything really on them. This is part of your time. Go ahead.

343
00:44:26.150 --> 00:44:33.439
Boardroom: I recently went to a Save Our Shops meeting, and what I heard was pretty appalling.

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344
00:44:33.690 --> 00:44:44.119
Boardroom: the shop owners in either… in any of the three districts, we're talking about the corridor upzoning, the Elmwood, the Solano, and North Shattuck,

345
00:44:44.180 --> 00:44:53.840
Boardroom: charming areas, which the City of Berkeley Economic Depart… Economic Opportunities thing, touts as being… having the charming village quality

346
00:44:54.020 --> 00:44:55.509
Boardroom: That we all love.

347
00:44:56.500 --> 00:45:05.839
Boardroom: That's a recent thing that you've put out about why people come to Berkeley, and yet you're talking about putting up 8-story buildings in these areas.

348
00:45:07.170 --> 00:45:09.300
Boardroom: I want you to think long and hard about that.

349
00:45:11.230 --> 00:45:12.479
Boardroom: It's a disgrace.

350
00:45:13.690 --> 00:45:15.159
Boardroom: And you need to include

351
00:45:15.260 --> 00:45:19.729
Boardroom: people who live here, and people who work here. Thank you. Thanks for your comment.

352
00:45:27.900 --> 00:45:30.450
Boardroom: Good evening. I'm Dr. Steven Alpert.

353
00:45:30.670 --> 00:45:35.119
Boardroom: I forwarded a copy of this recent publication by the London School of Economics.

354
00:45:35.490 --> 00:45:43.710

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Boardroom: Equality, not regulation, drives America's housing affordability crisis. To the Council and to the to Planning Director Klein.

355
00:45:44.130 --> 00:45:47.060
Boardroom: This article examines and dismisses a core belief

356
00:45:47.240 --> 00:45:51.279
Boardroom: that the shortage of housing in the U.S. is primarily due to excessive regulation.

357
00:45:51.850 --> 00:45:56.050
Boardroom: These internationally recognized academics maintain that housing affordability crisis

358
00:45:56.160 --> 00:45:58.809
Boardroom: It's driven by broader economic inequality.

359
00:45:59.020 --> 00:46:02.049
Boardroom: Rather than solely by regulation and by lack of supply.

360
00:46:02.330 --> 00:46:03.599
Boardroom: From the abstract.

361
00:46:04.170 --> 00:46:09.979
Boardroom: The popular view holds that declining housing affordability stems from regulations that restrict new supply.

362
00:46:10.200 --> 00:46:14.569
Boardroom: That deregulation will spur sufficient market rate construction to improve affordability.

363
00:46:15.020 --> 00:46:21.860
Boardroom: We argued that this deregulationist view is based upon flawed assumptions And would…

364
00:46:22.800 --> 00:46:27.639
Boardroom: And even a dramatic deregulation-driven supply extension

365
00:46:27.860 --> 00:46:34.400
Boardroom: would take decades to donate widespread affordability. Thanks for your comment. You all received this. Thank you.

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366
00:46:35.880 --> 00:46:36.800
Boardroom: Hi, Carol.

367
00:46:37.450 --> 00:46:44.930
Boardroom: First I want to speak on the information report, in terms of switching, from, taxis to…

368
00:46:45.000 --> 00:46:47.059
Boardroom: the go-go grandparent, and…

369
00:46:47.080 --> 00:47:06.150
Boardroom: I, agree with this, because the taxi drivers… in part, I agree with this, because the taxi drivers often ask $20 minimums, $50 minimums, huge tips, don't turn on the meters, etc. But I would ask staff to make one revision, which is instead of to-go-go grandparent.

370
00:47:06.210 --> 00:47:12.450
Boardroom: to make it optional whether someone can book Lyft on their own, Lyft or Uber.

371
00:47:12.520 --> 00:47:17.239
Boardroom: or go-go grandparent. And as an example, last week.

372
00:47:17.450 --> 00:47:25.919
Boardroom: I, reserved a ride to GoGo Grandparents that charged me $14 and something, and I looked at… had I booked

373
00:47:26.230 --> 00:47:42.410
Boardroom: Lyft directly, it would have been $6.94. So they're clearly charging the highest price and a fee on top of it. Now, again, I understand some people don't know how to… Carol. Thank you. Thanks for your comment.

374
00:47:45.020 --> 00:47:48.780
Boardroom: There's actually a mic, that's, down here, if you'd like.

375
00:47:50.480 --> 00:47:52.239
Boardroom: There's one, right here.

376
00:47:52.750 --> 00:47:54.499
Boardroom: If that's easier to reach.

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377
00:47:59.490 --> 00:48:01.149
Boardroom: Good evening, everyone.

378
00:48:02.540 --> 00:48:04.289
Boardroom: Can you hear me? Yes.

379
00:48:05.160 --> 00:48:09.580
Boardroom: My name is Pamela Jacob, and I'm a resident at a senior

380
00:48:10.230 --> 00:48:14.369
Boardroom: Building in Berkeley, at Helio's Corner.

381
00:48:15.150 --> 00:48:25.680
Boardroom: And I have been a recipient of TaxiScript Now, 4 years, I mean, a low-income, area.

382
00:48:25.990 --> 00:48:31.789
Boardroom: And it's been my lifeline to maintain my health to the outside world needs.

383
00:48:32.340 --> 00:48:44.100
Boardroom: The sharp cutbacks now to once every 7 months, 6 for high medical needs, 1 per month, and 3 for regular for 7 months for shopping.

384
00:48:44.210 --> 00:48:47.410
Boardroom: And errands has turned my life upside down.

385
00:48:47.790 --> 00:48:53.750
Boardroom: I have to cancel most of my many needed medical appointments to accommodate this cutback.

386
00:48:54.030 --> 00:48:59.690
Boardroom: and my lifelong Richmond twice a week, and my PT swim therapy.

387
00:49:00.270 --> 00:49:07.170
Boardroom: It costs $60 round trip, one single way, which uses up all my GoGo credits.

388
00:49:07.560 --> 00:49:12.130
Boardroom: I am unable to take public transport or paratransit.

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389
00:49:12.600 --> 00:49:16.530
Boardroom: Thank you, I'm so sorry, but your time is up.

390
00:49:18.790 --> 00:49:19.599
Boardroom: But…

391
00:49:21.500 --> 00:49:29.669
Boardroom: Thank you. Yeah, I… if you haven't read in Council already, perhaps my staff can also share some of their contact information with you.

392
00:49:30.160 --> 00:49:34.650
Boardroom: Thank you. Yeah, they'll walk over and give you a card. Thank you.

393
00:49:36.910 --> 00:49:37.650
Boardroom: Okay.

394
00:49:37.930 --> 00:49:41.470
Boardroom: So, now we'll move to 5 speakers.

395
00:49:41.710 --> 00:49:48.319
Boardroom: on Zoom, the first raised hand is… and you have one minute each.

396
00:49:48.590 --> 00:49:55.459
Boardroom: First raised hand is… Speaker with a caller number, the number ending in 000.

397
00:50:06.020 --> 00:50:09.200
1510****000: Hi, good evening. Very nice to talk to you again.

398
00:50:09.330 --> 00:50:16.870
1510****000: My assistant, again, Roy, handed you a couple of documents, one about the business history, 52 years?

399
00:50:17.170 --> 00:50:23.309
1510****000: And, I request a friendly meeting with the mayor, Ishii.

400
00:50:23.570 --> 00:50:25.829

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1510****000: Friendly meeting to discuss different options.

401
00:50:25.950 --> 00:50:29.679
1510****000: Okay, now we have to talk about what is happening in the country.

402
00:50:30.110 --> 00:50:38.749
1510****000: It is a monastery, you know, going after brown people, Mexican, Latinos, or blacks, as he called Obama a monkey.

403
00:50:39.020 --> 00:50:40.799
1510****000: This is unbelievable!

404
00:50:41.290 --> 00:50:44.619
1510****000: This man belonged to a mental hospital or prison.

405
00:50:44.740 --> 00:50:46.969
1510****000: Not a… not a president.

406
00:50:47.090 --> 00:50:54.750
1510****000: And we need all of us to stand up, because they come after you, you, you, you. You come after the first blacks

407
00:50:54.900 --> 00:51:10.090
1510****000: Brown, whatever. Then they come after everybody, it's just a typical fascist-style scheme. He's also throwing a country. He's also a Trojan horse for Putin, Russia. He is… Putin's writing every day at all of us.

408
00:51:10.090 --> 00:51:11.200
TELEPHONE_USER: Thank you for your public comment.

409
00:51:11.270 --> 00:51:12.880
Boardroom: Thank you. Your time's up.

410
00:51:14.010 --> 00:51:16.400
Boardroom: Next speaker is Della Luna.

411
00:51:20.400 --> 00:51:22.530
Della Luna (she/her) Huichun: Jess, can you hear me okay?

412

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00:51:22.630 --> 00:51:38.930
Della Luna (she/her) Huichun: Yes. So, I wanted to talk about, well, recently in the paper, there was this story about the elderly woman who passed away in the fire, and what stood out to me was how her neighbors tried to get her help and support and called the city multiple times.

413
00:51:38.930 --> 00:51:43.859
Della Luna (she/her) Huichun: or BHA, the Housing Authority, and or the Fire Department, because the woman had been collecting items.

414
00:51:43.860 --> 00:52:07.970
Della Luna (she/her) Huichun: And our house was full. But this reminded me of the previous news story we read about a man who was in the homeless shelter, and he was murdered there, and they were also calling the city and letting them know that there were problems in the, in that institution. So I have called the city, and I get the same response. Some staff don't respond, and there needs to be more oversight. The city might have policies

415
00:52:07.970 --> 00:52:24.930
Della Luna (she/her) Huichun: But departmental practices are not, in alignment with those policies, if they exist. And I would like for you all to publish your standard operating procedures so that the constituents know, like, what is expected of the staff when they, when they are contacted by us.

416
00:52:24.930 --> 00:52:25.990
Boardroom: Thanks, Stella.

417
00:52:27.330 --> 00:52:29.969
Boardroom: Next is Amelia Purnell.

418
00:52:32.630 --> 00:52:34.430
Amelia Pernell: Hi! Can you hear me?

419
00:52:34.630 --> 00:52:35.310
Boardroom: Yes.

420
00:52:35.470 --> 00:52:36.300
Amelia Pernell: Okay.

421
00:52:36.490 --> 00:52:45.640
Amelia Pernell: I just wanted to comment on the rise in authoritarian violence the mayor mentioned in her, field trip report. I'm,

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422
00:52:45.670 --> 00:53:06.629
Amelia Pernell: just, my neighbors and I are terrified that this council has chosen to meet the moment by removing police accountability, and instead looking for ways to give BPD more access to weapons of war to use against your constituents. Firing the Director of Police Accountability for doing his job too much without your permission represents a huge waste of taxpayer time and money.

423
00:53:06.740 --> 00:53:12.319
Amelia Pernell: I'm… I'm really terrified that this is what you guys are seeing when you look out the window as…

424
00:53:12.680 --> 00:53:32.459
Amelia Pernell: as we are facing this huge amount of violence, that BPD doesn't need oversight anymore, and that's really scary to us. They've lied to counsel several times in the last few times that they've testified, especially about abuses of flock cameras, and you've responded by giving them more access to spy on us.

425
00:53:32.460 --> 00:53:36.240
Amelia Pernell: I think that they need more oversight now than ever.

426
00:53:36.480 --> 00:53:37.549
Boardroom: Thanks for your comment.

427
00:53:38.050 --> 00:53:42.240
Boardroom: Alright, next is, Janice.

428
00:53:43.250 --> 00:53:45.820
Boardroom: Janice, you should be able to unmute.

429
00:53:46.030 --> 00:54:04.110
Janis’s iPhone: Thank you for giving me this opportunity to speak today. I want to urge City Council to, uphold the public right to speak on items that you are going to discuss. What happened at the last, City Council meeting, for those who missed it.

430
00:54:04.110 --> 00:54:07.310
Janis’s iPhone: A council member, proposed an item.

431
00:54:07.310 --> 00:54:15.950

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Janis’s iPhone: But chose not to, sorry, proposed small amendments to an ordinance presented by planning staff.

432
00:54:15.950 --> 00:54:33.970
Janis’s iPhone: But instead of sharing it so that the public could comment on them, she stated, I think we should close the public hearing, and then I can discuss my proposed amendments. Now, this may not have been a violation of the Brown Act, but it does violate the spirit of the law. And I understand that last-minute changes may come up.

433
00:54:33.970 --> 00:54:38.289
Janis’s iPhone: But changes that are purposely withheld should not be allowed.

434
00:54:38.330 --> 00:54:39.280
Janis’s iPhone: Thank you.

435
00:54:41.010 --> 00:54:48.460
Boardroom: Thank you. And the last speaker on non-agenda comments is… Will Amina?

436
00:54:49.290 --> 00:54:51.229
Boardroom: Well, Amina, you should be able to speak.

437
00:55:00.050 --> 00:55:01.130
Boardroom: Wilhelmina?

438
00:55:01.520 --> 00:55:03.160
Boardroom: You should be able to unmute.

439
00:55:05.590 --> 00:55:07.690
wilhemina condon: Yes, can you hear me?

440
00:55:07.840 --> 00:55:08.490
Boardroom: Yes.

441
00:55:08.860 --> 00:55:21.409
wilhemina condon: Oh, okay. I just wanted to make a comment about the, zoning proposal. I want to urge the Council to step back for a minute and think of what we have in Berkeley, which is…

442
00:55:21.650 --> 00:55:26.080

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wilhemina condon: unique. I have seen tour buses drive up

443
00:55:26.240 --> 00:55:30.489
wilhemina condon: to experience people getting off to experience Chez Panisse.

444
00:55:30.620 --> 00:55:47.790
wilhemina condon: the cheese board, and all the other little restaurants in that area. And the idea that you'd have a golden goose like this that brings in so much revenue, I propose putting high-rise buildings into what people consider a French

445
00:55:48.570 --> 00:55:53.180
wilhemina condon: country… little area. I think you're gonna…

446
00:55:53.730 --> 00:56:00.859
wilhemina condon: ruin the city, and please think creatively. Don't just put up high-rise buildings because you think it's part of a…

447
00:56:00.980 --> 00:56:02.730
wilhemina condon: ill-conceived plan.

448
00:56:03.050 --> 00:56:04.569
wilhemina condon: That's all I have to say.

449
00:56:07.100 --> 00:56:16.579
Boardroom: Thank you. That concludes non-agenda public comments. For the beginning of the meeting, there is another period of non-agenda public comments at the end of the meeting.

450
00:56:18.280 --> 00:56:28.969
Boardroom: Okay, thank you very much. So this, since this is the first, meeting of the month, we also have time for public comment by employee unions. Are there any employee unions here today?

451
00:56:31.340 --> 00:56:36.570
Boardroom: Or if you are in a union and you're online, you can… Also, raise your hand.

452
00:56:39.350 --> 00:56:45.010
Boardroom: I had no hands raised for… Representatives from employee unions.

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453
00:56:47.250 --> 00:56:48.400
Boardroom: Okay.

454
00:56:48.890 --> 00:56:51.850
Boardroom: Alright, so we will move on to the consent calendar, then.

455
00:56:52.470 --> 00:56:58.619
Boardroom: Alright, so at this time, if there are any council members who have comments and consent, please, go ahead and press your button.

456
00:56:59.810 --> 00:57:01.500
Boardroom: Starting with Councilmember Tracob.

457
00:57:05.660 --> 00:57:07.979
Boardroom: Thank you, Madam Mayor.

458
00:57:08.260 --> 00:57:15.480
Boardroom: I, just for the record, need to note that I will be recusing myself on item 3.

459
00:57:15.620 --> 00:57:26.330
Boardroom: amendments to Title 21 to allow separate sale of ADUs as a… post-1996 tenant in an ADU.

460
00:57:28.540 --> 00:57:30.420
Boardroom: Thank you. Other comments on consent?

461
00:57:32.130 --> 00:57:39.709
Boardroom: Do you want to… yeah, Councilmember Custer? Oh, thank you, Madam Mayor. Yes, I, like Councilmember Trogroup, I would also like to recuse on item number 3. Thank you very much.

462
00:57:40.460 --> 00:57:43.559
Boardroom: Mr. Seyclerk, could you speak to what that looks like?

463
00:57:43.690 --> 00:57:56.739
Boardroom: So we'll just, vote, well, I, Councilmembers, Tregam and Kesarwani can recuse themselves, we'll vote on item 3, then they can return, and then we'll vote on the balance of the consent calendar.

464
00:57:57.670 --> 00:58:01.970

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Boardroom: Okay, sure. Thank you. Are there other comments? I'm just checking to see.

465
00:58:03.050 --> 00:58:19.359
Boardroom: Okay, I do want to just appreciate staff, for pursuing funding for our housing, our much-needed housing. Item number 9 is the application for pro-housing Incentive Program funds, PIP funds. The City of Berkeley is eligible to pay for up to $1.2…

466
00:58:20.150 --> 00:58:27.640
Boardroom: eligible to apply, excuse me, for up to $1.25 million through the State of California Department of Housing.

467
00:58:27.780 --> 00:58:32.330
Boardroom: and Community Development's, Pro-Housing Incentive Program.

468
00:58:32.360 --> 00:58:49.919
Boardroom: The final award amount will be decided as part of the competitive application. The funding will be used to support the Department of Health, Housing, and Community Services programs in support of low-income or unhoused residents, including the Housing Trust Fund program and or eligible homeless services. So, thank you very much to staff.

469
00:58:50.290 --> 00:58:51.730
Boardroom: For doing that.

470
00:58:52.060 --> 00:59:02.460
Boardroom: Alright, I will then close Council comments and open to public comments. If you have a public comment on Council or consent items only, please come on up.

471
00:59:23.620 --> 00:59:28.350
Boardroom: On items 3 and 4, Both of these…

472
00:59:29.110 --> 00:59:36.999
Boardroom: Along with several other measures you've been, Passing recently, incentivized speculation.

473
00:59:37.540 --> 00:59:40.020
Boardroom: Speculation has consequences.

474
00:59:40.260 --> 00:59:44.370

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Boardroom: Whether you want to re… recognize it or not. On the one hand.

475
00:59:45.750 --> 00:59:47.699
Boardroom: And you can't, you can't,

476
00:59:48.860 --> 00:59:55.910
Boardroom: You can't predict which way it's gonna go. On the one hand, you could get… More displacement, more gentrification.

477
00:59:57.600 --> 01:00:00.309
Boardroom: On the other, We would have underwater

478
01:00:00.730 --> 01:00:05.259
Boardroom: Properties and bankruptcies if things go sour on your speculation.

479
01:00:08.050 --> 01:00:09.269
Boardroom: Thank you.

480
01:00:11.790 --> 01:00:14.650
Boardroom: Do you have a comment on consent or information items?

481
01:00:14.740 --> 01:00:27.989
Boardroom: Yeah, I have a comment on what you just spoke of, Mayor Adina Ishii, did I say that right? Hello, my name's Irania De La Mora, and I'm here to speak on the housing situation. I think housing is very expensive.

482
01:00:28.040 --> 01:00:35.330
Boardroom: People don't make enough money, and I appreciate you all saying that you're gonna do affordable housing, but it'd be very helpful if you…

483
01:00:35.460 --> 01:00:44.600
Boardroom: mention how much it would cost, rather than just saying affordable, and not saying the price, or giving a website where you give the prices, because I've been to many meetings.

484
01:00:44.780 --> 01:01:01.689
Boardroom: on different councils, and they always say affordable housing, but then when the housing comes out, it's not affordable. It's around $3,000, $2,500, which is the normal, which is everywhere else. If it's

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gonna be affordable, it needs to be affordable, like $1,900. People make $25,

485
01:01:01.690 --> 01:01:10.219
Boardroom: $18 an hour. So it'd be very helpful when you say affordable, you give a number, not just say affordable and be vague, and then it not be affordable when it actually comes out.

486
01:01:10.220 --> 01:01:21.820
Boardroom: Also, if you're gonna do affordable housing, it'd be good to also make more jobs, just like Donald Trump is doing. I know a lot of people in the Bay Area do not like Donald Trump, but I do, and I voted for him, and I appreciate how

487
01:01:21.820 --> 01:01:27.639
Boardroom: he not just tries to make more housing, but he tries to bring more jobs. Okay, because very nice.

488
01:01:27.690 --> 01:01:34.349
Boardroom: You want to give affordable housing, but how are people gonna pay for it? They need jobs. And right now, jobs since COVID,

489
01:01:34.540 --> 01:01:43.839
Boardroom: which was brought by China to America and to the whole world, has caused a severe unemployment, and closed down many jobs. Let me finish my time.

490
01:01:43.840 --> 01:01:56.560
Boardroom: And I would really appreciate, with affordable housing, you also create more jobs for average people, entry-level jobs, so people can actually have jobs, because people are suffering right now, looking for jobs, and I appreciate that kindly. And that is all. Thank you. Go ahead.

491
01:01:56.950 --> 01:01:57.900
Boardroom: You have a question?

492
01:01:58.150 --> 01:02:00.979
Boardroom: Nope, go ahead. Okay, thank you, I'm good. Alright. Thank you very much.

493
01:02:01.170 --> 01:02:04.120
Boardroom: If you have a statement, you can… okay, appreciate it. Thank you.

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494
01:02:14.800 --> 01:02:28.689
Boardroom: Hi, Maria. We're on public comment on consent or information items. Yes, thank you. And first of all, I want to thank you for going all the way to Washington, D.C, and surviving the snow, and talking to everyone about us.

495
01:02:28.940 --> 01:02:30.559
Boardroom: I really appreciate it.

496
01:02:30.960 --> 01:02:34.990
Boardroom: And I know you… I'm really grateful, is the point.

497
01:02:35.470 --> 01:02:39.019
Boardroom: And… Because Berkeley has been first.

498
01:02:39.650 --> 01:02:42.909
Boardroom: I'm concerned that we're slipping a bit.

499
01:02:43.330 --> 01:02:45.909
Boardroom: Especially when it comes to housing.

500
01:02:46.520 --> 01:02:53.220
Boardroom: Because there are so many high-development buildings going up, It's difficult.

501
01:02:53.400 --> 01:03:07.499
Boardroom: to drive, et cetera. So… You know, the ratio of affordable, moderately affordable, Units is so minimal.

502
01:03:08.060 --> 01:03:13.820
Boardroom: And this good doctor that spoke earlier, When he spoke about inequality.

503
01:03:14.070 --> 01:03:20.079
Boardroom: It's like, okay, this is what the world is doing. We've got those that have, and those that have not.

504
01:03:20.410 --> 01:03:23.839
Boardroom: And it's not working, because the majority of people have not.

505
01:03:24.010 --> 01:03:25.600

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Boardroom: And it's getting worse.

506
01:03:25.860 --> 01:03:28.009
Boardroom: So, I'm concerned about that.

507
01:03:28.460 --> 01:03:31.589
Boardroom: I'm really glad that, we're considering

508
01:03:31.770 --> 01:03:44.059
Boardroom: Bike registration and licensing, because I'm having a hard time not running over people, because they're coming out at night in black, no lights, no nothing, and they are utterly…

509
01:03:44.440 --> 01:03:52.290
Boardroom: You know, just taking advantage of things and being motorized and zipping and… I'm really scared for them.

510
01:03:53.210 --> 01:03:59.070
Boardroom: Yeah, and God bless the firefighters, and just each and every one of us, but I really hope

511
01:03:59.180 --> 01:04:02.230
Boardroom: We start encouraging more caring and sharing.

512
01:04:02.450 --> 01:04:06.490
Boardroom: And… Courtesy.

513
01:04:06.670 --> 01:04:15.170
Boardroom: Because we're not gonna get through this if we don't start taking care of ourselves more responsibly and each other.

514
01:04:15.340 --> 01:04:18.809
Boardroom: Because it's really alarming out there. Alright, thank you very much.

515
01:04:19.300 --> 01:04:20.490
Boardroom: Thank you, Maria.

516
01:04:21.160 --> 01:04:23.810
Boardroom: Are there any online…

517

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01:04:23.980 --> 01:04:33.880
Boardroom: Public comments for consent or information items only? There's currently two hands raised for the consent calendar, consent and information items only. First is Bryce.

518
01:04:34.080 --> 01:04:34.990
Boardroom: NESBIT.

519
01:04:37.500 --> 01:04:39.069
Bryce Nesbitt: A quick audio check here.

520
01:04:40.180 --> 01:04:41.570
Boardroom: Yep, we can hear you.

521
01:04:42.210 --> 01:04:45.270
Bryce Nesbitt: Okay, great. I'm getting a terrible echo, but I'll push through it.

522
01:04:45.750 --> 01:04:49.200
Bryce Nesbitt: I encourage Council to take Item 1,

523
01:04:49.450 --> 01:04:52.010
Bryce Nesbitt: Which is the bicycle registration item.

524
01:04:52.460 --> 01:04:54.290
Bryce Nesbitt: Off consent and discuss it.

525
01:04:55.040 --> 01:04:57.740
Bryce Nesbitt: Most of it's completely obsolete.

526
01:04:57.990 --> 01:04:59.840
Bryce Nesbitt: And should be gotten rid of.

527
01:05:00.250 --> 01:05:02.699
Bryce Nesbitt: But there's a baby in that bathwater.

528
01:05:04.250 --> 01:05:08.320
Bryce Nesbitt: There's a present rule that requires dealers to report sales.

529
01:05:08.970 --> 01:05:10.519

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Bryce Nesbitt: It's in the wrong way.

530
01:05:11.600 --> 01:05:19.580
Bryce Nesbitt: But there is a modern system called Bike Index, which can match an owner with a serial number of a bicycle.

531
01:05:21.110 --> 01:05:23.640
Bryce Nesbitt: And a requirement to require that

532
01:05:24.870 --> 01:05:32.030
Bryce Nesbitt: That bicycles purchased in Berkeley's be registered by the dealer, is a low… Cost?

533
01:05:32.510 --> 01:05:37.320
Bryce Nesbitt: High-impact way to help people get back stolen bicycles.

534
01:05:38.210 --> 01:05:43.690
Bryce Nesbitt: So, I think you got it close, but pull it off consent, talk about it a little bit more.

535
01:05:44.060 --> 01:05:44.980
Bryce Nesbitt: Thank you.

536
01:05:47.150 --> 01:05:51.010
Boardroom: And the last speaker for consent and information is…

537
01:05:51.310 --> 01:05:55.059
Boardroom: A speaker with a phone number ending in 211.

538
01:05:56.320 --> 01:05:57.779
Boardroom: Should be able to unmute.

539
01:06:00.530 --> 01:06:07.090
1510****211: Okay, I'd like to talk about consent item number 4. A battery state. In 1968, I bought time period.

540
01:06:07.290 --> 01:06:09.210
1510****211: No, I'm sorry, in,

541
01:06:09.360 --> 01:06:14.670

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1510****211: Pregnant. $28,000. Beautiful house. Still exists. I don't own it anymore.

542
01:06:14.860 --> 01:06:17.770
1510****211: 1978, I bought a new clip.

543
01:06:18.210 --> 01:06:23.129
1510****211: For $101,000. Now, both of these houses are now worth over $2 million. What happened?

544
01:06:23.370 --> 01:06:31.639
1510****211: Privacy Firms, foreign money from India, Russia, everywhere. United States. Criminals.

545
01:06:31.760 --> 01:06:37.020
1510****211: Milton Friedman, the… all of this horrible crowd of money, money, money.

546
01:06:37.210 --> 01:06:55.290
1510****211: And, they caused that. That won't go forever. We're going to have far worse crash than the 2008, where me and many of my friends lost hundreds of thousands of dollars. Lost to everybody. Give me a call, conversate with me. 510-848-5000. 510-848-5000.

547
01:06:55.410 --> 01:07:01.240
1510****211: A two-year-old phone number. Thank you. Bring it back again. Thank you all.

548
01:07:01.850 --> 01:07:02.760
Boardroom: Thank you!

549
01:07:03.610 --> 01:07:08.850
Boardroom: Okay, that's it, no more speakers for… consent or information. Okay.

550
01:07:09.020 --> 01:07:10.280
Boardroom: Thank you very much.

551
01:07:10.540 --> 01:07:18.609
Boardroom: Okay, so now moving on, I know we said we were gonna pull out 3, so is there a motion to approve?

552

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01:07:18.790 --> 01:07:21.220
Boardroom: Item number 3 on the consent calendar.

553
01:07:21.220 --> 01:07:22.120
Terry Taplin: So moved.

554
01:07:22.530 --> 01:07:23.230
Boardroom: Second.

555
01:07:27.200 --> 01:07:30.249
Boardroom: Could you take the role, please, Clerk, after she's,

556
01:07:31.200 --> 01:07:37.569
Boardroom: On, consent item number 3, Councilmember Taplin?

557
01:07:37.570 --> 01:07:38.370
Terry Taplin: Yes.

558
01:07:38.520 --> 01:07:39.520
Boardroom: Bartlett.

559
01:07:39.790 --> 01:07:40.690
Boardroom: Yes.

560
01:07:41.050 --> 01:07:41.960
Boardroom: O'Keefe.

561
01:07:42.860 --> 01:07:46.380
Boardroom: Yes. Blackaby? Yes. Bunapara?

562
01:07:46.490 --> 01:07:51.219
Boardroom: Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay.

563
01:07:52.730 --> 01:08:00.499
Boardroom: Okay, alright, maybe we should get them to come back for the rest of the consent calendar.

564
01:08:06.040 --> 01:08:10.789
Boardroom: Someone grab them really quickly? Thank you. The city attorney went back to… Oh, okay.

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565
01:08:17.649 --> 01:08:18.319
Boardroom: Okay.

566
01:08:18.590 --> 01:08:23.399
Boardroom: Alright, now, at this time, is there a motion to approve the rest of the consent calendar?

567
01:08:23.700 --> 01:08:25.520
Boardroom: Second.

568
01:08:25.880 --> 01:08:31.590
Boardroom: Okay, moved by Councilmember Bartlett, seconded by Councilmember Humbert.

569
01:08:31.779 --> 01:08:33.990
Boardroom: Could you please take the roll?

570
01:08:34.120 --> 01:08:39.559
Boardroom: Okay, on the balance of the consent calendar, Councilmember Kesarwani? Yes. Taplin?

571
01:08:39.560 --> 01:08:40.350
Terry Taplin: Yes.

572
01:08:40.590 --> 01:08:42.760
Boardroom: Bartlett? Yes. Tragum?

573
01:08:42.970 --> 01:08:52.330
Boardroom: Aye. O'Keefe? Yes. Blackaby? Yes. Unupara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries.

574
01:08:52.520 --> 01:08:57.029
Boardroom: Alright, thank you all very much. Consent calendar is now complete.

575
01:08:58.350 --> 01:08:59.350
Boardroom: 7 o'clock?

576
01:08:59.960 --> 01:09:03.140
Boardroom: We are now going to move on to the action calendar.

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577
01:09:03.609 --> 01:09:18.149
Boardroom: We only have one item on our action calendar this evening. It is a public hearing, so I'm going to open the public hearing for item number 14, Zoning Adjustments Board Appeal 2109 Virginia, Use Permit…

578
01:09:18.569 --> 01:09:23.100
Boardroom: ZP2024-0066.

579
01:09:23.510 --> 01:09:28.960
Boardroom: And I know we have a presentation, but just so folks know what's gonna happen, we're gonna have a presentation.

580
01:09:29.290 --> 01:09:41.089
Boardroom: And then we'll hear 5 minutes from the appellant, 5 minutes from the applicant, take public comments on this item, take council questions, close the hearing, have council deliberations, and then vote.

581
01:09:41.250 --> 01:09:44.459
Boardroom: So, I will pass it over to the Planning Department.

582
01:09:45.899 --> 01:09:51.540
Boardroom: Thank you, Mayor. Good evening, Councilmembers Jordan Klein, Director of Planning and Development. I'm joined at the staff table here.

583
01:09:51.960 --> 01:09:54.769
Boardroom: At the far end, that's Sharon Gong, Principal Planner.

584
01:09:55.280 --> 01:10:03.789
Boardroom: Ann Hirsch, Land Use Planning Manager, and presenting for staff this evening is Singge Saliki, Senior Planner, and the Land Use Team.

585
01:10:39.300 --> 01:10:41.829
Boardroom: Alright, good evening, Council.

586
01:10:42.380 --> 01:10:43.350
Boardroom: Madam Mayor.

587
01:10:43.670 --> 01:10:49.080
Boardroom: As Jordan said, my name is Singhi Saliki, and I'm a Senior Planner with the Land Use Planning Division.

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588
01:10:49.460 --> 01:10:53.210
Boardroom: Tonight, I'm presenting on 2109 Virginia Street.

589
01:10:53.430 --> 01:11:01.010
Boardroom: An appeal of the Zoning Adjustment Board decision to approve a use permit to demolish a non-residential building and parking lot

590
01:11:01.130 --> 01:11:09.370
Boardroom: And build a mixed-use residential building with 110 dwelling units, ground floor commercial space, off-street, and bicycle parking spaces.

591
01:11:10.140 --> 01:11:17.680
Boardroom: I'll present the review history of the proposed project and provide project-specific details before addressing the appeal issues.

592
01:11:24.240 --> 01:11:32.480
Boardroom: On December 14, 2023, the City received a preliminary use permit application pursuant to SB330.

593
01:11:32.740 --> 01:11:40.790
Boardroom: The preliminary application was deemed complete, and thereby vesting the development rights on December 27th, 2023.

594
01:11:41.090 --> 01:11:48.039
Boardroom: A use permit application was submitted on June 3rd, 2024, and was deemed complete on July 3rd, 2024.

595
01:11:48.580 --> 01:11:58.740
Boardroom: On October 7, 2024, the LPC held a public hearing and took no action to initiate a landmark or structure of merit designation.

596
01:11:59.310 --> 01:12:06.970
Boardroom: On May 15th, 2025, the DRC held a public hearing and provided a favorable recommendation to the ZAB.

597
01:12:10.360 --> 01:12:15.580
Boardroom: On July 10th, 2025, the City mailed and posted public hearing notices.

598
01:12:15.870 --> 01:12:24.039

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Boardroom: On July 24th, 2025, the applicant requested to remove the item from the action calendar of the ZAB public hearing.

599
01:12:24.620 --> 01:12:30.339
Boardroom: On August 28, 2025, the City mailed and posted new public hearing notices.

600
01:12:30.820 --> 01:12:37.280
Boardroom: On September 11, 2025, DeZAB held a public hearing and voted to approve the use permit.

601
01:12:38.010 --> 01:12:43.299
Boardroom: The City received an appeal from nearby residents on September 30th, 2025.

602
01:12:43.900 --> 01:12:49.440
Boardroom: Today's hearing is the fourth out of five public meetings allowed under SB330.

603
01:12:53.840 --> 01:13:01.329
Boardroom: The project site is located on the northeast corner of Shattuck Avenue and Virginia Street in the North Berkeley neighborhood.

604
01:13:02.300 --> 01:13:08.600
Boardroom: Half-acre lot is split-zoned and contains one commercial district on approximately 90% of the lot.

605
01:13:08.710 --> 01:13:12.490
Boardroom: And 2 residential districts on the remaining 10% of the lot.

606
01:13:13.290 --> 01:13:22.179
Boardroom: Properties in the same zoning districts surround the site, except to the south, across Virginia Street, where the zoning is corridor commercial.

607
01:13:23.090 --> 01:13:33.300
Boardroom: The area is characterized by residential and commercial buildings that are 1 to 3 stories tall, with commercial uses primarily fronting on Shattuck Avenue.

608
01:13:34.210 --> 01:13:38.269
Boardroom: Surrounding uses include commercial uses to the north and west.

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609
01:13:38.390 --> 01:13:40.870
Boardroom: And a multi-family building to the south.

610
01:13:41.390 --> 01:13:44.799
Boardroom: To the east is a commercial use and residences.

611
01:13:45.640 --> 01:13:55.900
Boardroom: The property is accessible by AC Transit Bus Service, and is less than a mile from the North Berkeley BART station, and a half mile from the Downtown Berkeley BART station.

612
01:13:58.960 --> 01:14:15.179
Boardroom: The proposed project would demolish the existing two-story commercial building and surface parking lot to construct an 8-story, approximately 112,900 square foot mixed-use residential building containing 110 dwelling units.

613
01:14:15.390 --> 01:14:21.690
Boardroom: Including 9 very low income and 9 moderate income density bonus qualifying units.

614
01:14:21.910 --> 01:14:29.730
Boardroom: The project also includes 690 square feet of ground floor commercial space and 109 vehicle parking spaces.

615
01:14:30.570 --> 01:14:36.199
Boardroom: The project provides approximately 7,000 square feet of usable open space.

616
01:14:36.490 --> 01:14:41.500
Boardroom: 64 bicycle parking spaces, and new street trees on Virginia Street.

617
01:14:42.770 --> 01:14:49.259
Boardroom: The site is identified as a housing opportunity site in the city's adopted housing element.

618
01:14:49.940 --> 01:14:53.760
Boardroom: Due to the site size exceeding half an acre.

619
01:14:53.900 --> 01:15:03.040

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Boardroom: It was identified as a high potential site for redevelopment of residential uses with a capacity of 50 dwelling units per acre.

620
01:15:05.430 --> 01:15:10.619
Boardroom: This is a rendering of the proposed project from Shattuck Avenue, looking northeast.

621
01:15:13.920 --> 01:15:17.339
Boardroom: These are the primary elevations facing the streets.

622
01:15:17.670 --> 01:15:21.430
Boardroom: The west elevation facing Shattuck Avenue is on the left.

623
01:15:21.630 --> 01:15:25.490
Boardroom: And the south elevation facing Virginia Street is on the right.

624
01:15:28.400 --> 01:15:34.660
Boardroom: This is the east interior side elevation facing the existing residences adjacent to the site.

625
01:15:38.590 --> 01:15:47.820
Boardroom: The proposed project qualifies as a housing development project under SB330, and is entitled to a density bonus under state law.

626
01:15:48.240 --> 01:15:52.660
Boardroom: The density bonus is calculated based on the site's base density.

627
01:15:52.770 --> 01:16:00.679
Boardroom: Which is the maximum number of units allowed on the site while fully complying with the applicable district's development standards.

628
01:16:01.160 --> 01:16:09.519
Boardroom: The density bonus is then determined by the percentage of total units dedicated as affordable and their affordability level.

629
01:16:10.470 --> 01:16:16.590
Boardroom: Under the City's density bonus procedures, the base project is 55 units.

630
01:16:17.320 --> 01:16:25.139

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Boardroom: By providing 9 very low-income and 9 moderate incomes on… 9 moderate-income units on site.

631
01:16:25.620 --> 01:16:32.180
Boardroom: The project is eligible for 100% density bonus, or 55 additional units.

632
01:16:33.180 --> 01:16:40.429
Boardroom: The project proposes 55 additional units above the base density for a total of 110 dwelling units.

633
01:16:41.510 --> 01:16:48.559
Boardroom: This exceeds the 50 dwelling unit per acre potential capacity of units anticipated in the housing element.

634
01:16:49.510 --> 01:16:56.969
Boardroom: Two concessions are requested to exempt the public art in lieu fee, and relocate underground parking in the base project.

635
01:16:58.050 --> 01:17:06.310
Boardroom: The applicant also requested waivers for height, setback, lot coverage, and parking to accommodate the proposed project on the site.

636
01:17:09.360 --> 01:17:18.900
Boardroom: Moving on to the appeal, the following slides summarize the appeal issues and staff's response, with a more detailed explanation in the staff report.

637
01:17:19.980 --> 01:17:24.929
Boardroom: The first appeal issue is about construction impacts and environmental concerns.

638
01:17:25.670 --> 01:17:37.610
Boardroom: Appellants argue that construction activities would create noise, dust, and vibration that would disrupt nearby households, and they are requesting mitigation measures to reduce these impacts.

639
01:17:38.260 --> 01:17:52.640
Boardroom: In addition, they are requesting mitigation to nearby creeks and aquifers, additional soil testing due to the site's past use as a dry cleaner, measures to protect community health from exposure to hazardous substances.

640

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01:17:52.770 --> 01:18:02.490
Boardroom: And written disclosures to future tenants regarding soil or groundwater monitoring and any health risks associated with the site.

641
01:18:03.700 --> 01:18:09.800
Boardroom: The conditions of approval include several conditions to mitigate the construction impacts mentioned.

642
01:18:10.550 --> 01:18:18.419
Boardroom: No creek or culvert, as defined by the BMC, exists on or within 30 feet of the project site.

643
01:18:19.290 --> 01:18:30.649
Boardroom: Due to its previous use as a dry cleaner, the site was remediated under the oversight of DTSC and assessed by the San Francisco Bay Regional Water Quality Control Board.

644
01:18:31.530 --> 01:18:41.830
Boardroom: The applicant submitted Phase 1 and 2 ESAs, which were reviewed by Toxics and a CEQA consultant in order to prepare an environmental checklist.

645
01:18:42.680 --> 01:18:56.060
Boardroom: The CEQA analysis found that the project would not have significant environmental effects that have not already been analyzed in the housing element EIR, or that are more significant than those previously analyzed.

646
01:18:59.520 --> 01:19:02.920
Boardroom: The second appeal issue is on labor standards.

647
01:19:03.460 --> 01:19:15.220
Boardroom: The applicants argue that the project would be conditioned to use union labor, ensuring fair wages, safety protections, and higher construction quality.

648
01:19:16.150 --> 01:19:22.510
Boardroom: The project was vested on December 27, 2023, under SB330.

649
01:19:23.160 --> 01:19:30.780
Boardroom: This vesting date is prior to the January 1st, 2024 effective date of the Hard Hats ordinance.

650

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01:19:31.400 --> 01:19:36.359
Boardroom: Therefore, a condition of approval cannot be retroactively applied to the project.

651
01:19:39.940 --> 01:19:43.469
Boardroom: The third appeal issue is on parking concerns.

652
01:19:43.670 --> 01:19:50.160
Boardroom: The appellants argue that parking will overflow into nearby streets, worsening the existing shortage.

653
01:19:50.810 --> 01:19:56.390
Boardroom: They also claim the location of the parking entrance will increase congestion on Shaddock Avenue.

654
01:19:56.530 --> 01:20:00.019
Boardroom: And pose safety risks for pedestrians and cyclists.

655
01:20:00.990 --> 01:20:09.750
Boardroom: There's no parking minimum for the applicable zoning districts, and the BNC limits off-street residential parking to a maximum of

656
01:20:09.860 --> 01:20:12.570
Boardroom: 55 species when near transit.

657
01:20:13.430 --> 01:20:22.240
Boardroom: The project uses a waiver to exceed this standard and provides 109 spaces to help reduce neighborhood spillover.

658
01:20:23.130 --> 01:20:35.460
Boardroom: The project is not eligible for the residential permit parking program, so new residents would not be able to secure the existing permits for on-street residential parking that serve the neighborhood.

659
01:20:36.220 --> 01:20:47.380
Boardroom: The site is well served by BART and AC Transit, and includes transit incentives and unbundled parking, which encourage reduced car ownership and use.

660
01:20:48.700 --> 01:20:56.829
Boardroom: The parking entrance on Shaddock Avenue reuses an existing curb cut and is consistent with existing commercial access patterns.

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661
01:20:57.730 --> 01:21:05.859
Boardroom: The project maintains existing street trees and adds a corner bulbout with seating on Chaddock to enhance pedestrian safety.

662
01:21:08.910 --> 01:21:12.270
Boardroom: The fourth appeal issue is on operational impacts.

663
01:21:12.770 --> 01:21:24.199
Boardroom: The appellants claim that the number of units and parking spaces will lead to operational impacts, including noise and increased traffic from deliveries, rideshare pickups, and service vehicles.

664
01:21:25.350 --> 01:21:33.639
Boardroom: The project includes standard conditions of approval to manage operational impacts such as noise and traffic, as detailed in the staff report.

665
01:21:34.200 --> 01:21:44.009
Boardroom: No significant operational impacts were identified in the CEQA analysis, and the project complies with all applicable zoning and environmental standards.

666
01:21:47.630 --> 01:21:53.109
Boardroom: The fifth appeal issue is on public input, affordability, and transparency.

667
01:21:53.880 --> 01:22:01.279
Boardroom: The appellants claimed the project increased from 5 to 8 stories without clear public notice or sufficient community input.

668
01:22:02.050 --> 01:22:06.710
Boardroom: They request stronger affordability commitments in exchange for the added height.

669
01:22:06.830 --> 01:22:10.899
Boardroom: And ask for transparency on how the density bonus was calculated.

670
01:22:11.050 --> 01:22:18.579
Boardroom: Which concessions and waivers were granted, and how the city ensures that concessions result in real community benefit.

Unofficial Text File

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671
01:22:19.560 --> 01:22:23.339
Boardroom: The project has been under review for over 2 years.

672
01:22:23.450 --> 01:22:31.119
Boardroom: And public outreach included a neighborhood meeting, mailed and posted public notices, and 3 public hearings.

673
01:22:31.890 --> 01:22:34.930
Boardroom: The increase to 8 stories complies with the state

674
01:22:35.040 --> 01:22:41.179
Boardroom: Density bonus law, which allows additional height in exchange for affordable housing.

675
01:22:41.980 --> 01:22:52.959
Boardroom: The project includes 18 below-market rate units, 9 very low-income and 9 moderate-income units, and qualifies for a 100% density bonus.

676
01:22:53.860 --> 01:23:03.289
Boardroom: Details on the density bonus calculations, concessions, and waivers are in the ZAB staff report, and were presented at the ZAB public hearing.

677
01:23:03.610 --> 01:23:07.849
Boardroom: I also covered these calculations earlier in this presentation.

678
01:23:08.920 --> 01:23:19.310
Boardroom: Per state law, concessions granted under the state density bonus law are intended to support affordable housing and do not require the provision of community benefits.

679
01:23:23.120 --> 01:23:27.060
Boardroom: The sixth appeal issue is on shade and privacy impacts.

680
01:23:27.420 --> 01:23:33.520
Boardroom: The appellants claimed the proposed project would create shade and privacy impacts for the adjacent homes.

681
01:23:34.190 --> 01:23:43.689

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Boardroom: The city has no objective standards for solar access, and the shadow studies submitted indicate that new shadows would fall on nearby residential homes.

682
01:23:44.130 --> 01:23:52.129
Boardroom: These shadow impacts would be limited in duration and extent, and are typical in a built urban environment.

683
01:23:54.440 --> 01:23:56.229
Boardroom: To address privacy.

684
01:23:56.350 --> 01:24:04.459
Boardroom: The project steps back above the ground floor, approximately 12 feet on the north side, and approximately 10 feet on the east side.

685
01:24:05.230 --> 01:24:14.619
Boardroom: This step-back area outlined in green incorporates trees and planters on the second level to minimize privacy impacts to the surrounding homes.

686
01:24:15.130 --> 01:24:20.409
Boardroom: The step back is maintained for all upper stories above the ground floor.

687
01:24:23.930 --> 01:24:29.300
Boardroom: The last appeal issue is on infrastructure impacts and emergency preparedness.

688
01:24:29.850 --> 01:24:42.189
Boardroom: The appellants cite the site's seismic risk and deep excavation for the 8-story building as potential safety issues, and request details on fire protection and emergency access.

689
01:24:42.600 --> 01:24:54.910
Boardroom: They also note increased demand on police and fire services, loss of trees and green space, and claim the project's impact on utilities and infrastructure hasn't fully been addressed.

690
01:24:56.170 --> 01:25:04.300
Boardroom: The site is not in a designated seismic hazard zone, so no extra mitigation is needed beyond standard building codes.

691
01:25:05.360 --> 01:25:17.159

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Boardroom: The project will meet 2025 building and fire codes, including fire sprinklers, emergency access, and evacuation planning, which will be reviewed during the building permit process.

692
01:25:18.150 --> 01:25:27.999
Boardroom: The CEQA analysis found no significant impacts on police, fire, or ambulance services beyond those addressed in the housing element EIR analysis.

693
01:25:29.020 --> 01:25:34.190
Boardroom: The project is consistent with planned residential growth and infrastructure capacity.

694
01:25:34.630 --> 01:25:40.080
Boardroom: It includes new street trees and landscaping to offset vegetation removal.

695
01:25:40.600 --> 01:25:45.819
Boardroom: These features enhance the pedestrian environment and contribute to the urban canopy.

696
01:25:48.830 --> 01:25:58.679
Boardroom: Staff recommends that Council conduct a public hearing and adopt a resolution affirming Dezab's decision to approve the use permit at 2109 Virginia Street.

697
01:25:59.380 --> 01:26:03.649
Boardroom: This concludes staff's presentation, and I'm available for any questions.

698
01:26:05.550 --> 01:26:19.419
Boardroom: Thank you, I appreciate the presentation. And so, folks, I want to actually give, people an opportunity, council members, if you've had any ex parte, conversations that you'd like to disclose before we ask any questions.

699
01:26:20.470 --> 01:26:22.139
Boardroom: Go ahead, Councilmember Trangum.

700
01:26:22.610 --> 01:26:25.169
Boardroom: Thank you, Madam Mayor.

701
01:26:25.840 --> 01:26:37.470

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Boardroom: As this project appeal was moving forward, because it is in our district, our council office was copied on

702
01:26:38.080 --> 01:26:42.550
Boardroom: at least one… Appellent Communication.

703
01:26:42.920 --> 01:26:56.170
Boardroom: Today, the applicant reached out to a staff member in my office. No substance was discussed, and the emails we were copied on went to the full council. Thank you.

704
01:26:57.630 --> 01:26:59.689
Boardroom: Thank you. Anyone else?

705
01:27:01.190 --> 01:27:04.929
Boardroom: Okay, are there any questions for staff?

706
01:27:10.140 --> 01:27:12.840
Boardroom: Oh, yes, Councilmember O'Keefe.

707
01:27:14.100 --> 01:27:23.350
Boardroom: I didn't want to go first, but it's fine. I'm curious about the waiver of the civic Arts fee. Do you… I know it's hard to estimate that.

708
01:27:23.840 --> 01:27:28.789
Boardroom: Speculative, but could you give us a sense of how… what the value of that is?

709
01:27:29.900 --> 01:27:33.109
Boardroom: Is that possible? It's okay if it's not possible, but I thought I'd ask.

710
01:27:33.530 --> 01:27:38.570
Boardroom: I believe it's, 0.8% of construction costs.

711
01:27:39.530 --> 01:27:45.370
Boardroom: What's this, a 110-unit project? Yeah, do the math for me, please.

712
01:27:46.770 --> 01:27:54.849

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Boardroom: I don't know, I would guess $800,000, maybe less, in range $500 to a million?

713
01:27:55.240 --> 01:28:05.719
Boardroom: Okay, thanks. Yeah, I acknowledge that was a little bit of an unfair question, but I just wanted to get a sense of the order of magnitude, so that's helpful. I don't know much about construction costs. And I'm curious…

714
01:28:06.460 --> 01:28:11.250
Boardroom: this doesn't matter too much, but I really am just curious, like, how does… I understand it's…

715
01:28:11.460 --> 01:28:15.320
Boardroom: The proposal is to waive it, but… Could the,

716
01:28:16.180 --> 01:28:24.800
Boardroom: could the developer, like, they can also build the art. Is that right? Could you explain how that works? Just briefly, because it's not… it's a little tangential, but I'm curious.

717
01:28:29.940 --> 01:28:41.130
Boardroom: Yeah, so the public art and private development policy, gives kind of two pathways to compliance. You can, incorporate a public art project that's worth

718
01:28:41.540 --> 01:28:45.040
Boardroom: I think it's 1.5% of construction costs.

719
01:28:45.310 --> 01:28:49.359
Boardroom: And there's a process… For…

720
01:28:49.650 --> 01:28:54.950
Boardroom: To engage, a qualified,

721
01:28:55.270 --> 01:29:12.840
Boardroom: professional to oversee that, to ensure that that's… it meets… that project meets the city's standards for public art, although we don't actually approve or disapprove of the art piece itself, right? It's just the process to make sure they comply. So they can do the on-site or art, or they can pay an in-lieu fee.

722
01:29:14.530 --> 01:29:15.909

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Boardroom: Great, thanks for clarifying that.

723
01:29:19.370 --> 01:29:22.329
Boardroom: Thank you. Councilmember Blackaby.

724
01:29:22.690 --> 01:29:28.229
Boardroom: Thanks, Madam Mayor. Just two questions, one for staff and potentially the City Attorney.

725
01:29:28.300 --> 01:29:43.569
Boardroom: to remind us, and also remind the public who's here tonight, what discretion does the City Council have under SB 330 for a density bonus project like this? What kind of discretion do we have when we're hearing an appeal? Like, what standard needs to be met?

726
01:29:48.580 --> 01:29:49.380
Boardroom: Hmm.

727
01:29:50.200 --> 01:29:54.959
Boardroom: So, under SB 330 and the Housing Accountability Act,

728
01:29:56.230 --> 01:29:59.929
Boardroom: project is compliant with all objective standards, then…

729
01:30:00.130 --> 01:30:05.510
Boardroom: The city cannot deny or reduce the density of the project unless it meets,

730
01:30:05.950 --> 01:30:08.599
Boardroom: Findings of specific adverse

731
01:30:09.070 --> 01:30:13.320
Boardroom: Adverse impact to health and safety, which is a very high, bar to meet.

732
01:30:13.900 --> 01:30:19.730
Boardroom: So it's really specific adverse impact to community health and safety. That's the standard that has to be met. Correct.

733
01:30:20.090 --> 01:30:24.159
Boardroom: And then I noticed also in the staff report,

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734
01:30:24.510 --> 01:30:31.460
Boardroom: A project like this would be normally entitled to have up to 3 concessions. They've asked for 2. Do we have any…

735
01:30:31.730 --> 01:30:39.140
Boardroom: reason to, or, you know, any idea why they asked for 2 instead of 3, if they could have taken 3 or had 3? Do we know? Just curious.

736
01:30:39.440 --> 01:30:46.939
Boardroom: You can ask them after the presentation if you'd like. Do you want to hold the question? I will hold that question, but, thank you for the updates on the standard. Thank you.

737
01:30:47.720 --> 01:30:53.840
Boardroom: Okay, Councilmember Trego, did you have questions? Yes, thank you, Madam Mayor.

738
01:30:54.080 --> 01:31:02.820
Boardroom: We received a communication today from a member of the public, and…

739
01:31:03.340 --> 01:31:12.530
Boardroom: It, one of the things it asks about is, Citation analysis for findings under…

740
01:31:12.670 --> 01:31:19.219
Boardroom: the Neighborhood Commercial Preservation Ordinance and other approved ordinances,

741
01:31:19.690 --> 01:31:30.330
Boardroom: I was just wondering if you could, in general terms, talk about… What goes into, the…

742
01:31:30.640 --> 01:31:43.789
Boardroom: The findings around, BMC code, Section 23, and… or how… Other provisions are incorporated,

743
01:31:43.900 --> 01:31:47.390
Boardroom: Either by reference, or as part of the code.

744
01:31:55.770 --> 01:32:00.100
Boardroom: Can I just ask for clarity? You mentioned findings.

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745
01:32:00.580 --> 01:32:08.120
Boardroom: Are you… and I… just so I'm clear, is it findings more broadly, or it's specific to a commercial component? I wasn't quite clear.

746
01:32:08.220 --> 01:32:13.629
Boardroom: Yeah, I'll just, and I realize this is… a little…

747
01:32:13.920 --> 01:32:18.900
Boardroom: Maybe unclear. I'll read an excerpt from the letter.

748
01:32:19.380 --> 01:32:26.240
Boardroom: After reviewing the administrative record for this project, I was unable to locate

749
01:32:26.390 --> 01:32:31.980
Boardroom: citation analysis or findings under Barclays Neighborhood Commercial Preservation Ordinance.

750
01:32:32.270 --> 01:32:39.780
Boardroom: I also did not find findings under related voter adopted neighborhood preservation ordinance or Anti-Demolition Ordinance.

751
01:32:39.880 --> 01:32:42.659
Boardroom: And then at the…

752
01:32:47.330 --> 01:32:55.850
Boardroom: So, I think the question is… well, the question I have is, can you speak to…

753
01:32:57.750 --> 01:33:08.419
Boardroom: How, such things may or may not be included in the, in the findings of, the staff report.

754
01:33:08.660 --> 01:33:11.249
Boardroom: Recommending denial of the appeal.

755
01:33:14.010 --> 01:33:22.179
Boardroom: So the findings for approval will generally include the findings, for approving a use permit, so those are the…

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756
01:33:22.390 --> 01:33:42.069
Boardroom: general non-detriment findings. Other findings that might be included in the staff report would be, any use permit that is not, included in the base project by right. So, for instance, the demolition. So there are demolition findings in the, set of findings that are attached to the staff report.

757
01:33:42.480 --> 01:33:49.220
Boardroom: In specific, demolition of non-residential building. That finding was made, also.

758
01:33:49.360 --> 01:33:53.330
Boardroom: We also include, density bonus findings.

759
01:33:54.370 --> 01:33:58.700
Boardroom: findings for… The granting of the waivers and the concessions.

760
01:33:59.080 --> 01:34:04.699
Boardroom: In addition, it looks… Let's see if there's any…

761
01:34:06.110 --> 01:34:16.169
Boardroom: additional standards, or findings that we need. Those are the main ones. We also cover Housing Accountability Act findings, which I just…

762
01:34:16.340 --> 01:34:19.809
Boardroom: Addressed, findings for,

763
01:34:20.170 --> 01:34:28.909
Boardroom: denial, whether the city can make findings for denial, according to specific adverse impact to health and safety.

764
01:34:29.280 --> 01:34:34.840
Boardroom: And then any other… Specific findings that are…

765
01:34:35.200 --> 01:34:41.680
Boardroom: For use permits that are included, that are not included in the base project, and that are by right.

766
01:34:43.260 --> 01:34:44.059
Boardroom: Thank you.

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767
01:34:45.360 --> 01:34:48.049
Boardroom: Thank you. Councilmember… or Vice Mayor Lunapara?

768
01:34:49.120 --> 01:34:58.820
Boardroom: Thank you. I have a question about… the, the waiver for… more parking.

769
01:34:59.040 --> 01:35:03.660
Boardroom: I'm curious how that is… Justified.

770
01:35:03.940 --> 01:35:06.769
Boardroom: And under the, the allowable waivers.

771
01:35:11.420 --> 01:35:14.230
Boardroom: The waivers are allowed… allowed based

772
01:35:14.570 --> 01:35:26.890
Boardroom: by the state density bonus law. So, if it's a state density bonus, project, then they are allowed an unlimited number of waivers, and so,

773
01:35:27.260 --> 01:35:29.480
Boardroom: This is one that the applicant

774
01:35:29.900 --> 01:35:33.329
Boardroom: Chose to waive because they wanted to provide more parking.

775
01:35:33.490 --> 01:35:36.260
Boardroom: Than the maximum that's allowed.

776
01:35:38.060 --> 01:35:43.670
Boardroom: Thank you, I'm sorry, I need to clarify, the…

777
01:35:49.590 --> 01:35:53.099
Boardroom: I'm sorry, no, Sengeh did answer that correctly, thank you.

778
01:35:55.690 --> 01:36:05.960
Boardroom: From… I have a quick follow-up, just so I understand. From, my understanding, and I… I… I could be misunderstood, not remembering right,

779

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01:36:07.250 --> 01:36:20.849
Boardroom: waivers are connected to making the project more feasible, and allowing for the… for those new density bonus units, and so I don't know if the applicant is supposed to defend

780
01:36:21.090 --> 01:36:29.640
Boardroom: Their waivers, or how… how that works, or how… This waiver is… is… counts… Is part of that.

781
01:36:30.040 --> 01:36:32.160
Boardroom: Like, I understand the premise of…

782
01:36:32.540 --> 01:36:40.829
Boardroom: that there's unlimited waivers, but I thought that they had to be connected to lowering the cost of a project, or making it more feasible to build.

783
01:36:42.460 --> 01:36:45.380
Boardroom: Yes, there are a couple of different kinds of,

784
01:36:46.780 --> 01:36:53.310
Boardroom: requests, that are… that could be waivers to development standards. So waivers are,

785
01:36:53.820 --> 01:37:01.910
Boardroom: A modification of a development standard, in this case parking, in order to… Physically accommodate the building

786
01:37:02.230 --> 01:37:12.100
Boardroom: with the concessions included on the site. And concessions are, modifications to development standards, or other standards.

787
01:37:13.330 --> 01:37:18.199
Boardroom: As long as there is a justifiable cost reduction to the project.

788
01:37:18.690 --> 01:37:29.509
Boardroom: In the case, the parking was a development standard that the applicant asked for to accommodate the project that they designed to,

789
01:37:29.630 --> 01:37:31.160
Boardroom: To be built on the site.

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790
01:37:34.060 --> 01:37:35.580
Boardroom: Okay, thanks.

791
01:37:37.070 --> 01:37:38.970
Boardroom: Thank you. Councilmember Humbert?

792
01:37:40.090 --> 01:37:41.360
Boardroom: Thank you, Madam Mayor.

793
01:37:41.990 --> 01:37:50.159
Boardroom: And a number of questions that I have, have already been asked and answered. But I guess I would ask a general question,

794
01:37:50.880 --> 01:38:04.199
Boardroom: Has the project, and I think I know what the answer is… has the project been found to comply with the applicable development standards accounting for any incentives or concessions required under state density bonus law?

795
01:38:06.130 --> 01:38:09.189
Boardroom: Yes. Okay, that's… yeah, that's what I thought.

796
01:38:09.300 --> 01:38:26.860
Boardroom: Are you aware of any evidence that the environmental assessments of the site, or its remediations, have been insufficient, or that any applicable monitoring or mitigation measures would be insufficient to assure the safety of future residents and workers?

797
01:38:30.120 --> 01:38:47.290
Boardroom: With this application, the applicant provided a Phase 1 and a Phase 2 report, as well as a closure letter. The site itself was analyzed specifically for housing use as part of the city's certified housing elements, so it was already evaluated through the EIR.

798
01:38:47.330 --> 01:38:51.919
Boardroom: And accordingly, we used the checklist, just to have that as part of the…

799
01:38:52.120 --> 01:38:59.799
Boardroom: the action before you tonight, so we have a fair amount of comprehensive evidence to support that there are no impacts. Okay.

800

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01:39:00.140 --> 01:39:01.040
Boardroom: Thank you.

801
01:39:01.830 --> 01:39:06.629
Boardroom: And, and finally, is the city empowered?

802
01:39:06.820 --> 01:39:13.519
Boardroom: To require modifications of the proposed design on the basis of shadow, privacy, or aesthetics.

803
01:39:16.610 --> 01:39:23.019
Boardroom: No, because there are no objective standards for, solar access.

804
01:39:24.260 --> 01:39:26.619
Boardroom: Thank you, that's… those were my questions.

805
01:39:27.940 --> 01:39:39.129
Boardroom: Okay, thank you very much. So now we've got a 5-minute presentation from the appellant, 5 minutes from the applicant, so would the appellant like to come forward?

806
01:39:46.540 --> 01:39:52.480
Boardroom: And I think that the planning department Might need to remove their… presentation, or…

807
01:39:52.650 --> 01:39:54.810
Boardroom: I'm not sure whose screen is up right now, but…

808
01:40:31.320 --> 01:40:32.600
Boardroom: I am sharing my screen.

809
01:41:46.980 --> 01:41:47.700
Boardroom: Great.

810
01:41:47.850 --> 01:41:50.640
Boardroom: Okay, ready to roll. 5 minutes on the clock, go ahead.

811
01:41:50.880 --> 01:41:57.809
Boardroom: Good evening, members of the City Council, and the residents of Berkeley gathered here. My name is Vijayshanikrishnan, I'm…

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812
01:41:57.970 --> 01:42:03.099
Boardroom: I'm representing the North Shattuck Alliance, to appeal the,

813
01:42:03.330 --> 01:42:06.829
Boardroom: approval of the, the property here, 2109 Virginia Street.

814
01:42:07.300 --> 01:42:09.050
Boardroom: Why are we here?

815
01:42:09.360 --> 01:42:13.639
Boardroom: Well, we're neighbors and residents of North Shattuck Alliance, and…

816
01:42:14.160 --> 01:42:20.279
Boardroom: We represent residents, family, workers, small businesses who care deeply about the future of our neighborhood.

817
01:42:20.580 --> 01:42:23.530
Boardroom: We're here to appeal the approval of the proposed 8-story building.

818
01:42:23.970 --> 01:42:29.739
Boardroom: The building is out of character with the neighborhood, and will ruin our North Shadow commercial district.

819
01:42:30.050 --> 01:42:32.569
Boardroom: And we believe that in approving this project.

820
01:42:32.890 --> 01:42:38.350
Boardroom: The City Council has relinquished both your legal as well as moral responsibilities.

821
01:42:38.520 --> 01:42:42.369
Boardroom: for the community it serves, and I will give you some of the reasons why we believe so.

822
01:42:43.930 --> 01:42:46.930
Boardroom: So the protests focus on three issues.

823
01:42:47.270 --> 01:42:58.279

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Boardroom: As we understand and we have access, the applicant has failed to document and justify the claimed needs for waivers and concessions used to increase the height, size, and bulk of the building.

824
01:42:58.560 --> 01:43:01.850
Boardroom: Resulting in incomplete and legally flawed application.

825
01:43:02.260 --> 01:43:09.790
Boardroom: Second, the city failed to review these needs for waivers and concessions, which we can talk in more detail.

826
01:43:10.040 --> 01:43:11.500
Boardroom: And,

827
01:43:11.710 --> 01:43:19.749
Boardroom: This third, the city did not follow the established procedures for the environmental review of the project, which is located above a toxic waste site, the former Virginia Cleaners.

828
01:43:21.480 --> 01:43:27.200
Boardroom: We believe that the planning code exists for the people of Berkeley. We don't drill oil next to schools.

829
01:43:27.490 --> 01:43:36.769
Boardroom: And, the code is for maintaining and improving the neighborhood commercial areas, such as North Shattuck. Make it pedestr-friendly, visually attractive.

830
01:43:36.990 --> 01:43:39.420
Boardroom: And reduce potential conflict with neighbors.

831
01:43:39.660 --> 01:43:49.950
Boardroom: This is a rendering of the apartment, and a potential scale size of a house that's right next to it. And it fills 22,000 square feet with vastly increased height.

832
01:43:50.240 --> 01:43:52.960
Boardroom: And, lip…

833
01:43:53.060 --> 01:43:58.950
Boardroom: Build… property built end-to-end, in terms of setbacks, and then less than 700 square feet of public-use common space.

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834
01:43:59.100 --> 01:44:02.300
Boardroom: You know, almost 22,000 square feet of… Of the area.

835
01:44:02.620 --> 01:44:10.110
Boardroom: So why 8 stories? The planning department says it's due to the housing density bonus loss, and your hands are tight. However, this overlooks two things.

836
01:44:10.690 --> 01:44:16.699
Boardroom: The city can ask for documentation for needs of waivers and concessions, and I think they've been brought up a few times now.

837
01:44:16.920 --> 01:44:21.440
Boardroom: And the city can deny a project if it makes, finds necessary findings.

838
01:44:21.590 --> 01:44:29.900
Boardroom: And what has the city done instead? Did not ask the applicant to document the true cost reductions that favored the construction.

839
01:44:30.070 --> 01:44:32.270
Boardroom: Associated with the waivers and concessions.

840
01:44:32.390 --> 01:44:38.770
Boardroom: And did not use its discretionary authority to actually determine if those concessions and waivers were, in fact, needed.

841
01:44:39.000 --> 01:44:43.720
Boardroom: And as it stands today, the project has been granted some quite substantial concessions and waivers.

842
01:44:43.960 --> 01:44:50.209
Boardroom: And, for a low-density neighborhood, which is, what… where we live.

843
01:44:50.470 --> 01:44:52.849
Boardroom: And yes, this project is,

844
01:44:53.060 --> 01:44:56.370
Boardroom: Is… you could argue that maybe these trade-offs are not needed.

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845
01:44:56.600 --> 01:45:07.470
Boardroom: But these trade-offs are substantial. It affects the quality and the livability of us neighbors in the area. And the city can argue that the state law leaves it with no discretion.

846
01:45:07.700 --> 01:45:14.909
Boardroom: But asking these questions is not prohibited, and we believe that with the amount of trade-offs, asking these questions is essential.

847
01:45:16.030 --> 01:45:22.490
Boardroom: The second, the city did not meet its obligations to protect the environment. As we see, the site sits above a toxic waste site.

848
01:45:22.650 --> 01:45:28.150
Boardroom: The applicant's own environmental review revealed the presence of various, various environmental pollutants.

849
01:45:28.280 --> 01:45:33.990
Boardroom: The building is less than 30 feet away from a well-established, large pediatric medical clinic, and

850
01:45:34.100 --> 01:45:37.070
Boardroom: And right next to several elementary schools.

851
01:45:37.400 --> 01:45:43.580
Boardroom: And the so-called review that was done, 1987 state review, almost 30 years old, is used to justify a project remediation.

852
01:45:44.300 --> 01:45:53.970
Boardroom: And the current approach relies on the housing element EIR, which addresses at a program EIR, and is not sufficient to address site-specific concerns, and it's more of a checklist.

853
01:45:55.230 --> 01:45:59.269
Boardroom: These are serious, unresolved concerns. As a parent of young children.

854
01:45:59.470 --> 01:46:07.160
Boardroom: I urge you to know that this is not abstract risk. This is real risk. These are risks to children, seniors, and community members who live in that neighborhood.

855

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01:46:08.250 --> 01:46:25.870
Boardroom: We welcome housing in our neighborhood, don't get us wrong. We believe in livable, family-oriented housing, we believe in the middle housing aligned with Berkeley's vision, thoughtful when integrated, responsible development, and not driven by speculative investments by private equity firms, which essentially has led to potentially

856
01:46:25.930 --> 01:46:31.680
Boardroom: the foreclosure of 1709 Shattuck, which is the building right next door. We don't want that type of development.

857
01:46:32.540 --> 01:46:39.880
Boardroom: The project must be denied, our conclusion. There's numerous other projects that can be accelerated in the pipeline. In fact, the developer has them.

858
01:46:40.100 --> 01:46:51.059
Boardroom: The city has failed to follow its own rules. City Council has a moral obligation, and you can exercise that right, and the toxic issues of the site require a full-scale environmental review, in our view.

859
01:46:51.210 --> 01:46:54.549
Boardroom: This is clearly not the future of Shattuck Avenue that we want to see.

860
01:46:54.870 --> 01:46:57.339
Boardroom: Thank you. Thank you.

861
01:46:59.650 --> 01:47:07.020
Boardroom: And kudos on your perfect timing, that was great, very impressive. Can we have the applicant come up, please?

862
01:47:07.330 --> 01:47:09.340
Boardroom: You'll have 5 minutes to present.

863
01:47:21.590 --> 01:47:39.520
Boardroom: My name is Patrick Kennedy, I'm the developer of the project. This is Mark Loper, our attorney. I think, as you know, I have been developing in Berkeley for 35 years, and I have never been more bullish about the prospects for downtown Berkeley and Berkeley generally. I'm very encouraged by the…

864
01:47:39.660 --> 01:47:49.899

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Boardroom: emphasis on housing in the current council, and on business development throughout the city. This project is the first project we have done that is actually for…

865
01:47:50.360 --> 01:47:58.490
Boardroom: older Berkeley residents and, non-students. This area is going… this project is targeting

866
01:47:58.800 --> 01:48:15.029
Boardroom: Older Berkeleyans that are interested in downsizing, empty nesters that are interested in downsizing, and all of these people have no place to go if they want to stay in Berkeley and they sell their Berkeley house. The project will have a lot of

867
01:48:15.480 --> 01:48:23.459
Boardroom: of downstream benefits to the city as well. It will liberate a lot of pre-Prop 13 houses that these people will sell.

868
01:48:23.680 --> 01:48:27.530
Boardroom: And provide more opportunity for young families.

869
01:48:27.660 --> 01:48:29.780
Boardroom: It will provide… Folks, please let him speak.

870
01:48:31.200 --> 01:48:31.860
Boardroom: What happened?

871
01:48:33.560 --> 01:48:47.260
Boardroom: It would provide, more opportunities for young families to move to Berkeley. It would allow a lot of legacy Berkeleyans to stay in Berkeley, where they desperately would like to go, instead of moving to Walnut Creek.

872
01:48:47.460 --> 01:49:05.860
Boardroom: And it would generate a huge amount of additional taxable property in the neighborhood of around $100 million to the city of Berkeley. And that's apart from the additional taxes that would be generated by turning these houses over. So it would be, it would also provide a lot more,

873
01:49:05.880 --> 01:49:19.030
Boardroom: patrons to the arts and businesses downtown that sorely need new patronage other than students. So, I encourage you to, deny the

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appeal and approve the project. Here's our, lawyer that will address the legal issues, Mark Loper, thank you.

874
01:49:23.030 --> 01:49:35.439
Boardroom: Good evening, Mayor and Council Members. Mark Loper from Rubin Genius and Rose on behalf of the project applicant. Just a few things based on some of your questions and then what we heard from the appellant.

875
01:49:35.460 --> 01:49:47.780
Boardroom: The standard for a specific adverse impact, that means a significant, quantifiable, indirect impact based on objective, identified, written public health or safety standards.

876
01:49:48.270 --> 01:49:51.080
Boardroom: I heard that the project was out of scale.

877
01:49:51.570 --> 01:49:58.370
Boardroom: That it didn't meet neighborhood character, that it wasn't reflective of what, some people in the community might want.

878
01:49:58.470 --> 01:50:05.670
Boardroom: I didn't hear reference to any, significant, quantifiable.

879
01:50:05.930 --> 01:50:19.149
Boardroom: or direct impacts based on objective identified health and safety standards. There are several approval conditions that are specific to ongoing work that needs to be done when this,

880
01:50:19.280 --> 01:50:31.190
Boardroom: project is built, if you see fit to approve it, and those address things like, the, the, contamination that was remediated. There, there are…

881
01:50:31.560 --> 01:50:48.180
Boardroom: procedures in place that go through, the state, the county, or the city as the city deems it appropriate to deal with remediation activities on sites that had former toxic soils. Developing housing on sites that have former toxic soils happens around the state.

882
01:50:48.950 --> 01:51:01.890
Boardroom: if Berkeley just stopped doing it, you'd rule out a lot of sites. I'd also like to point something out that staff emphasized. This

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project is on your most recent housing element. It was on the one before that, too.

883
01:51:01.970 --> 01:51:12.700
Boardroom: This is a reused housing element site. That means that for the last two cycles, you as the City Council have… have directed, from a policy perspective, this site to be developed.

884
01:51:12.850 --> 01:51:16.540
Boardroom: With dense multi-family housing.

885
01:51:16.550 --> 01:51:35.370
Boardroom: The project, does use the density bonus law. There are only two concessions that we've asked for. We can get into why. Our architect is here also to help, walk through how the project goes from the base to the density. I'm sure that many of you know things like height.

886
01:51:35.400 --> 01:51:43.490
Boardroom: setbacks, parking location, those are very common issues that are addressed using the state law.

887
01:51:44.100 --> 01:52:00.359
Boardroom: The appellant didn't specifically raise any CEQA arguments per se, but I do think it's important to point out that, your staff, used the housing element EIR that this council certified.

888
01:52:00.520 --> 01:52:13.839
Boardroom: And, the, CEQA says that, for a project that tiers off of a housing element, you cannot undergo heightened environmental review, such as a negative declaration or an EIR.

889
01:52:13.840 --> 01:52:29.070
Boardroom: except in very narrow circumstances, and I don't think that that's been presented here. Dealing with a site that had some soils issues several decades ago is not a unique issue. Thank you for your time, and we're happy to answer any questions.

890
01:52:29.260 --> 01:52:30.490
Boardroom: Thank you.

891
01:52:31.500 --> 01:52:33.790
Boardroom: Okay, so,

892

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01:52:34.780 --> 01:52:43.890
Boardroom: Are… let's… did you have questions? Okay. Oh, sorry, for the… both the, for the appellant, excuse me, and the applicant, if you have…

893
01:52:44.010 --> 01:52:53.590
Boardroom: If you could stay nearby in case folks have questions for you. Go ahead. Thank you, Madam Mayor. Both of my questions were for the applicant, if you can please come up.

894
01:52:56.940 --> 01:53:06.900
Boardroom: Thank you, two questions, one dealing with the, requested,

895
01:53:07.690 --> 01:53:13.789
Boardroom: waiver, in regards to parking, I see that the…

896
01:53:14.130 --> 01:53:26.530
Boardroom: the request is nearly… well, because we have the parking maximum ordinance in Berkeley, and so this is essentially a 200%… it's a waiver to do.

897
01:53:26.640 --> 01:53:33.770
Boardroom: nearly 200% more parking. Could you speak to…

898
01:53:34.680 --> 01:53:38.010
Boardroom: How this was calculated to be a cost

899
01:53:38.370 --> 01:53:45.279
Boardroom: introduction to the project. My understanding of parking is, the costs?

900
01:53:45.440 --> 01:53:50.920
Boardroom: Parking are perhaps different, that they do not Actually…

901
01:53:51.330 --> 01:54:02.590
Boardroom: left parking is… Yeah, and it's actually… it actually addresses project feasibility. These are… these are units, much larger units than we typically build, and they're, targeting.

902
01:54:02.680 --> 01:54:09.910
Boardroom: Older families and individuals, almost all of whom in Berkeley have at least one car. And we're gonna limit people to one car.

903

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01:54:09.980 --> 01:54:25.180
Boardroom: But, we also would like to make this a condominium project at some point if the state laws or city laws allow us to fee out instead of, having on-site units, and it's almost impossible in Berkeley to sell a condominium without at least one parking space.

904
01:54:25.490 --> 01:54:38.660
Boardroom: And we did surveys of over 60 individuals, and all of whom said that they were… if they were to be induced to leave their house in the Berkeley Hills.

905
01:54:38.720 --> 01:54:46.739
Boardroom: they would need to have a place that has at least space for one car. So, it was essentially a market feasibility, issue.

906
01:54:47.540 --> 01:54:50.710
Boardroom: Thank you, mark?

907
01:54:50.860 --> 01:55:08.379
Boardroom: Mark, Mr. Loper has a comment, too. Yeah, and, I just want to point out that a waiver does not need to demonstrate anymore. State law has changed, so with a waiver, you don't need to demonstrate any cost reductions in a project. That's only for a concession or an incentive.

908
01:55:08.720 --> 01:55:09.510
Boardroom: Thank you.

909
01:55:10.970 --> 01:55:13.199
Boardroom: I didn't know that, that's good to know.

910
01:55:14.830 --> 01:55:21.310
Boardroom: Thank you, Councilmember. Did you have your question answered? This one was, I have a second question,

911
01:55:21.530 --> 01:55:29.030
Boardroom: It's around, the waiver for public art, or the, the 1% for the art.

912
01:55:29.670 --> 01:55:34.000
Boardroom: And, my question is simply, I mean,

913
01:55:34.330 --> 01:55:38.190
Boardroom: staff in their presentation and Q&A provided

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914
01:55:38.400 --> 01:55:46.090
Boardroom: the two different avenues under the, the POTOS, ordinance.

915
01:55:46.250 --> 01:55:54.479
Boardroom: Can you speak to, the… Just the thinking behind,

916
01:55:54.640 --> 01:55:58.370
Boardroom: The request to waive, either avenue.

917
01:55:59.390 --> 01:56:18.169
Boardroom: Yeah, I can address this. This is a concession, and so what we need to do is show that with the concession, the project is cheaper to build. That's what the state legislature has said, and we get up to three, we're only using 2, so we're only using two cost reduction measures, and…

918
01:56:18.260 --> 01:56:28.859
Boardroom: a fee that's required as part of the construction cost. If you eliminate that fee, it's cheaper to build the project.

919
01:56:29.550 --> 01:56:35.119
Boardroom: I think that answers your question legally. Maybe you'd like us to talk a little bit about

920
01:56:35.220 --> 01:56:41.790
Boardroom: You know, how the ground floor plane works and stuff like that, or do you feel like you've got your question answered?

921
01:56:42.890 --> 01:56:49.380
Boardroom: I would be interested in just, like, specifically, can you…

922
01:56:49.910 --> 01:57:01.160
Boardroom: I'm not going to ask you to pull out a pro forma, but can you speak to just order of magnitude of the reduction? Like, I'm just trying to better understand.

923
01:57:01.320 --> 01:57:17.640
Boardroom: the basis for the request. Yeah, sure. So it's a percentage of the construction cost, and I think Steph said it's about 0.08, so I think the estimate we heard was around $800,000, maybe a little more. But again, I want to be clear, and I don't…

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924
01:57:17.640 --> 01:57:22.160
Boardroom: I don't mean to be uncharitable, but the state law says we get up to 3

925
01:57:22.160 --> 01:57:32.149
Boardroom: concessions. We get up to three, exceptions from things that make the project, cheaper to build, and getting out of the art requirement makes the project, cheaper to build.

926
01:57:34.750 --> 01:57:40.390
Boardroom: Thank you. Councilmember, Trekup, you're… that's… you're finished? Vice Mayor Lenopara?

927
01:57:40.940 --> 01:57:46.099
Boardroom: Thank you. I have a quick question about the waiver and the,

928
01:57:46.550 --> 01:57:54.440
Boardroom: for, for parking. If a waiver is supposed to be for a development standard that physically precludes the project.

929
01:57:54.600 --> 01:57:58.140
Boardroom: Can you talk a little more about why…

930
01:57:58.460 --> 01:58:02.819
Boardroom: More, exceeding the maximum number of off-street parking?

931
01:58:02.960 --> 01:58:05.079
Boardroom: Does fit that definition?

932
01:58:05.500 --> 01:58:25.059
Boardroom: So, this is where state law, I think, might get a little funky. A couple years ago, the state legislature, which works really hard to produce housing, gave projects that invoked the density bonus more discretion when it comes to, the amount of parking that they're allowed to have in the project.

933
01:58:25.210 --> 01:58:42.179
Boardroom: And I think that that might be part of how the project is able to justify the number of spots. And I also think this, the second thing is that, by getting rid… So the project is invoking a density bonus, which allows it to have

934

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01:58:42.320 --> 01:58:58.119
Boardroom: the number of units that it's getting, and one way of thinking about the waiver that we're requesting is by going up to, essentially double the number of units, if we waive the parking requirement, then that allows

935
01:58:58.190 --> 01:59:03.979
Boardroom: The density bonus units to be treated the same as the base units when it comes to the number of parking spaces.

936
01:59:04.330 --> 01:59:07.469
Boardroom: So I know this is a little bit of a wonky answer, and it's kind of two things, but…

937
01:59:08.430 --> 01:59:11.029
Boardroom: Okay. I think what he's saying is 55…

938
01:59:11.340 --> 01:59:15.880
Boardroom: Spaces would have been allowed with a project of 55 units, but now that we've doubled it.

939
01:59:16.310 --> 01:59:17.140
Boardroom: We can get it.

940
01:59:17.400 --> 01:59:19.510
Boardroom: 55 spaces, but…

941
01:59:19.710 --> 01:59:24.899
Boardroom: On the issue of parking, I've been a big proponent of car-free housing for 30 years. In fact, the last

942
01:59:25.270 --> 01:59:36.790
Boardroom: 10 projects I built had no parking for residents, but the economic realities are for this demographic, i.e. older Berkeleyans, they want to keep their cars. And,

943
01:59:37.090 --> 01:59:53.110
Boardroom: we have to defer to that judgment if we're going to make the project economically possible to finance. Our banks won't finance empty-nester housing if we don't have at least one space for each of the units. It's just an economic reality.

944
01:59:53.880 --> 01:59:59.179

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Boardroom: We're doing a 7-story project down the street, and we have no parking, but that's largely for students.

945
01:59:59.850 --> 02:00:06.240
Boardroom: Okay, thank you. I, I want to just clarify with the planning department how the,

946
02:00:06.700 --> 02:00:11.890
Boardroom: The parking structure works, because it was my understanding that it was .5 to 1.

947
02:00:12.020 --> 02:00:16.929
Boardroom: And so if they had a 55-unit building, it would be half.

948
02:00:17.170 --> 02:00:21.969
Boardroom: I just… I don't remember the policy, and just want to clarify.

949
02:00:30.350 --> 02:00:38.890
Boardroom: Yeah, the standard in the BMC is that, the parking maximum, is, half a space to…

950
02:00:39.560 --> 02:00:40.670
Boardroom: each unit.

951
02:00:40.790 --> 02:00:44.460
Boardroom: And so it would be half the number of total units that is allowed.

952
02:00:45.400 --> 02:00:47.049
Boardroom: Okay, thank you, that's it.

953
02:00:48.570 --> 02:00:50.750
Boardroom: Thank you. Councilmember Kisnerwani?

954
02:00:50.980 --> 02:00:56.859
Boardroom: Thank you very much, Madam Mayor. Thank you to our staff for the presentation. Thank you to the appellants.

955
02:00:56.920 --> 02:01:12.110
Boardroom: and the applicant. You know, I just wanted to explain something about this density bonus law. First, I wanted to confirm that

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the project is taking advantage of a relatively new modification to density bonus law, AB1287,

956
02:01:12.320 --> 02:01:17.820
Boardroom: Which, gives greater density for,

957
02:01:18.400 --> 02:01:22.160
Boardroom: you could say, I guess, less affordable units, and so…

958
02:01:22.450 --> 02:01:31.309
Boardroom: Density bonus law is very complicated, but, this is a new… I just want to acknowledge what the,

959
02:01:31.450 --> 02:01:50.700
Boardroom: Appellants are saying this is quite unusual, in my experience, to have a 3-story base zoning become an 8-story project, and it's because it's a 100% density bonus, correct? And it's done with essentially 30% affordable units, as you noted, 15% very low income.

960
02:01:50.850 --> 02:01:55.559
Boardroom: That means the area median income is 30-50%,

961
02:01:55.850 --> 02:02:04.709
Boardroom: of the area median income, and then it's another 15%. So it's 9 units of very low income, and then another 9 units of middle income.

962
02:02:04.810 --> 02:02:06.110
Boardroom: That…

963
02:02:06.780 --> 02:02:16.750
Boardroom: what that means in terms of area median income, it's 80 to 120%. I know that might not mean much of anything to folks, but it's more like a middle-class

964
02:02:17.010 --> 02:02:20.980
Boardroom: type of salary. We don't actually… typically.

965
02:02:21.230 --> 02:02:33.769
Boardroom: The below market rate units on site don't serve 80 to 120% of the area median income. To my knowledge, we rarely, if ever, have…

966
02:02:34.110 --> 02:02:47.489

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Boardroom: units at that income level, correct? Yeah, that's right. I believe, in the entire fifth cycle housing element period, in that 8-year period, I believe we permitted fewer than 100 modern income units.

967
02:02:47.780 --> 02:02:52.099
Boardroom: for that entire 8 years. It's very rare for those middle-income units

968
02:02:52.550 --> 02:03:05.509
Boardroom: to be built, and I think that was the policy motivation behind AB1287. Yes, and I know it's hard to, discern what the policy motivation might be, but it seems like,

969
02:03:05.890 --> 02:03:10.100
Boardroom: you venture to do that, and I think it's…

970
02:03:10.100 --> 02:03:27.220
Boardroom: it's trying to incentivize this middle-income housing, giving a greater density bonus. So I just wanted to acknowledge that that's what's happening here, and it will be the tallest building when constructed in sort of this corridor, and it's driven by the state law. It's not,

971
02:03:27.220 --> 02:03:40.949
Boardroom: It's not something that the City of Berkeley has control over. And I think, as Councilmember Blackaby had noted, we also don't have the discretion to reduce the density, because it's provided by the state density bonus.

972
02:03:41.050 --> 02:03:42.500
Boardroom: So…

973
02:03:42.710 --> 02:03:49.820
Boardroom: So, you know, I just wanted to explain that. This is a bit of a quirk, because this is a newer law that's used, to give greater density. So.

974
02:03:49.970 --> 02:03:55.509
Boardroom: I, I don't have any further questions or comments. I'm ready to, Bode, thank you.

975
02:03:55.930 --> 02:03:59.740
Boardroom: Thanks. So, we haven't heard public comment yet, so we have

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976
02:04:00.070 --> 02:04:03.490
Boardroom: Some more things to do, but, Councilmember O'Keefe.

977
02:04:04.580 --> 02:04:14.189
Boardroom: Yeah, thank you, Madam Mayor. I have a question for Mr. Kennedy, if you don't mind, back to the art thing. And I'd prefer if you could answer, if possible.

978
02:04:15.720 --> 02:04:19.920
Boardroom: Could you just let us know I understand that the…

979
02:04:20.020 --> 02:04:24.190
Boardroom: civic art concession saves the project money. That makes sense.

980
02:04:24.570 --> 02:04:32.489
Boardroom: Why… there are… I imagine there are a number of concessions you could have asked for, and I'm wondering why you chose that one, and I have a follow-up question, which is.

981
02:04:32.730 --> 02:04:38.530
Boardroom: Do you plan to put any art at all, or any sort of,

982
02:04:38.840 --> 02:04:53.930
Boardroom: Yeah, anything of that nature in the building, even though, I guess you wouldn't be required to under this concession? Yes, we are planning to do a significant bulb out, on the street, which will provide seating for probably another 15 or 20 people.

983
02:04:54.300 --> 02:04:58.120
Boardroom: And, the building itself, I hope, will…

984
02:04:58.230 --> 02:05:05.430
Boardroom: be an aesthetic contribution to the city. But,

985
02:05:05.750 --> 02:05:20.230
Boardroom: specifically other artwork, we're not planning any right now. It's very hard to get any projects financed right now, so every, you know, a million dollars here, a million dollars there makes a big difference on whether a project proceeds or doesn't proceed.

986
02:05:20.440 --> 02:05:25.020

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Boardroom: And this was a significant reduction in the fees from the city.

987
02:05:26.520 --> 02:05:29.650
Boardroom: And you picked it just because it was the most significant reduction you could…

988
02:05:30.890 --> 02:05:44.699
Boardroom: ask for as a concession? Is that why? I still didn't get an answer to my question as to how you chose to ask for this particular concession. I think it was the most significant one that reduced the total construction cost. I didn't realize we had overlooked a third concession, frankly, but…

989
02:05:45.320 --> 02:05:48.129
Boardroom: It's too late. Yeah, but, you know…

990
02:05:48.750 --> 02:05:59.589
Boardroom: As, Councilmember, Kezzarwani said, the law is changing quite a bit all the time, and, but in any case, it was necessary in order for us to try to…

991
02:05:59.920 --> 02:06:05.809
Boardroom: get this project financed. Okay, and I just,

992
02:06:06.150 --> 02:06:20.109
Boardroom: I guess this isn't quite a question, but one of the reasons I'm motivated to push on this is, is it true that you'll be covering up a really, really significant mural on the adjoining building? I believe that won't be visible once this is constructed.

993
02:06:20.710 --> 02:06:31.229
Boardroom: Am I wrong about the geometry of that? I'm… which is… is… I'm not sure which… I have not noticed a significant mural. You haven't noticed the big mural? No.

994
02:06:35.130 --> 02:06:49.750
Boardroom: Okay, thank you, Councilmember Treyka. Did you have another question? Actually, I'm sorry, I'm gonna go to Councilmember Blackaby, because, he has not asked a question yet. Great, thanks, Madam Mayor. One question, a couple questions, one for the applicant, one for the appellant, one for staff.

995
02:06:50.090 --> 02:06:59.439

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Boardroom: I guess that's three. I noticed in the appellant's presentation, this is for, the applicant,

996
02:07:00.580 --> 02:07:02.770
Boardroom: They contend that…

997
02:07:03.220 --> 02:07:11.419
Boardroom: the environmental review was not sufficient, that the Phase 2 environmental assessment is not a substitute. Just talk about

998
02:07:11.520 --> 02:07:14.710
Boardroom: From your perspective… Why…

999
02:07:14.970 --> 02:07:22.510
Boardroom: your belief that what you did present is sufficient, you met the standard. Can you just talk us through that, that discrepancy, or disagreement?

1000
02:07:22.830 --> 02:07:28.239
Boardroom: Let me defer to, Mr. Loper here. He's got better expertise on this subject.

1001
02:07:29.820 --> 02:07:35.049
Boardroom: Thank you, Councilmember, that's a very good question. Typically how,

1002
02:07:35.120 --> 02:07:52.329
Boardroom: infill housing projects work on sites that at one point had some sort of remediation activity, is that you start with something called a Phase 1, which is basically a desktop study that involves looking at the history of the site and the cleanup activities that took place.

1003
02:07:52.740 --> 02:07:53.780
Boardroom: this site

1004
02:07:53.910 --> 02:08:07.619
Boardroom: already underwent a significant effort, to, to clean it up, and it received a closure and no action letter, and Steph probably has all the details in front of them on their computers.

1005
02:08:07.620 --> 02:08:22.320

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Boardroom: And so, a Phase 1 looks at things from a desktop perspective, and a Phase 2 involves a more serious and in-depth look at, the actual conditions on the ground, and sometimes that involves, doing sampling and boring and testing.

1006
02:08:22.500 --> 02:08:27.309
Boardroom: And then a Phase 1 and a Phase 2 get discussed.

1007
02:08:27.360 --> 02:08:44.579
Boardroom: and baked into the CEQA clearance document, which here was a consistency determination with the housing element EIR, and as I mentioned earlier, this is not a unique condition to housing development sites, so I'm… I expect that the housing element EIR…

1008
02:08:44.580 --> 02:08:59.099
Boardroom: talked about this approach at length. And then the final thing, and I mentioned this during my presentation, but I'll just mention it again, that's not the end of the show. If you look at the approval conditions from ZAB, there are at least

1009
02:08:59.160 --> 02:09:16.190
Boardroom: or there are four conditions that the city will work with the applicant and the developer on to ensure that when construction takes place, all proper, local, state, and federal laws relating to site remediation are followed.

1010
02:09:16.620 --> 02:09:21.780
Boardroom: Does staff agree that we've… that this project meets that environmental review threshold?

1011
02:09:23.440 --> 02:09:36.719
Boardroom: Yes. And just to follow up on that point, when this project comes in for building permit, it is routed through our toxics Management Division, and so they continue that deep dive review of the reports.

1012
02:09:36.910 --> 02:09:45.040
Boardroom: the, measures that are taking place as part of the construction to abate that condition. Okay, thank you. Also to staff, and then,

1013
02:09:45.220 --> 02:09:51.369
Boardroom: After that, one question with the appellant. The other main issue in the presentation from the appellant was…

1014

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02:09:51.480 --> 02:09:58.480
Boardroom: Whether or not the applicant documented cost reductions associated with the waivers.

1015
02:09:59.000 --> 02:10:05.480
Boardroom: and again, we've heard some discussion about that. Are they obligated to do that? Are they not obligated to do that? Have we met that standard?

1016
02:10:05.640 --> 02:10:07.110
Boardroom: In this process.

1017
02:10:07.630 --> 02:10:10.439
Boardroom: Their contention here in the presentation is that

1018
02:10:10.570 --> 02:10:13.509
Boardroom: The city didn't ask the applicant to document, do they need to?

1019
02:10:14.490 --> 02:10:17.260
Boardroom: The reductions associated with waivers and concessions.

1020
02:10:17.810 --> 02:10:22.349
Boardroom: As far as waivers are concerned, there is no requirement to…

1021
02:10:22.790 --> 02:10:27.760
Boardroom: Provide documentation to justify the waiver concessions as well.

1022
02:10:28.280 --> 02:10:30.679
Boardroom: Actually, there's case law that,

1023
02:10:33.340 --> 02:10:39.089
Boardroom: Prohibits, staff from asking for documentation of the cost reduction.

1024
02:10:40.400 --> 02:10:44.769
Boardroom: So… We could not ask for that. Staff could not ask for it, okay.

1025
02:10:45.500 --> 02:10:49.589

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Boardroom: And one question for the appellant, if you're near a microphone, real quick.

1026
02:10:51.550 --> 02:10:52.350
Boardroom: Thank you.

1027
02:10:54.160 --> 02:11:00.470
Boardroom: coming back to, I think, where we started the conversation, again, I'm… what I'm really trying to drive into is, again, what…

1028
02:11:00.580 --> 02:11:18.020
Boardroom: what is the council's discretion, and what we've heard a couple of times from staff and also from the applicant is we would need to have a… reach a finding that there is, significant, quantifiable, specific adverse impact on health and safety. So I think my question for the appellant is.

1029
02:11:18.210 --> 02:11:19.400
Boardroom: How would you…

1030
02:11:19.610 --> 02:11:25.099
Boardroom: you know, out of all this, how would you distill that? What's the claim there that you think is…

1031
02:11:25.330 --> 02:11:26.200
Boardroom: Appealable.

1032
02:11:28.380 --> 02:11:32.659
Boardroom: Thank you, Councilmember Blackbee. This is James Hendry for the panel.

1033
02:11:33.880 --> 02:11:39.359
Boardroom: Well, first off, on the, on the issue of concessions versus waivers, there's two issues.

1034
02:11:39.510 --> 02:11:48.620
Boardroom: Waivers are less pretty off the table. Concessions, however, under the Berkeley Planning Code, you're asked for substantial documentation if you want to, and

1035
02:11:48.630 --> 02:12:00.739
Boardroom: the planning staff did not do that. They rely on a court case, Briarley, we discussed this extensively. It says you can't ask for

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concessions… you can't ask for the documentation of concessions, and they did not do that.

1036
02:12:00.850 --> 02:12:07.979
Boardroom: They seem to be confusing… going a step further, which is what the court case involved, which is dealing with the issue of

1037
02:12:08.320 --> 02:12:26.860
Boardroom: making applicants prove a profit… a project is profitable or due pro formas. But the state law is clear that you can ask them to document what the concessions are. What you do with them, then, is up to you, but in this case, you violated the planning code by not even asking or getting this documentation, which you're allowed to do under state law.

1038
02:12:27.640 --> 02:12:32.470
Boardroom: And for the adverse,

1039
02:12:33.510 --> 02:12:39.990
Boardroom: I believe there's also a code section, and maybe it got taken out in the last revision, but it's also on page 3 of our applicant.

1040
02:12:42.580 --> 02:12:52.429
Boardroom: It says you can deny a project if you make written findings upon substantial evidence that the concession or incentive does not result in identifiable and actual cost reductions

1041
02:12:52.470 --> 02:13:04.100
Boardroom: Consistent with Subdivision K to provide for affordable housing costs. So there's also the second tier of looking at economics. That probably is also a very high bar, too. And that one is one that seemed to have been ignored also in the analysis.

1042
02:13:04.100 --> 02:13:14.530
Boardroom: As for the waiver of public health, that clearly is a high bar, but, we do feel they're toxic issues. We're happy to talk about the environmental issues and the failure of the city planning staff to address them.

1043
02:13:15.000 --> 02:13:24.920
Boardroom: Which might… we might argue, and I think it may be a good argument to make, that yes, those environmental issues are sufficient to, raise a question about the viability of the project, and whether,

1044

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02:13:25.230 --> 02:13:26.250
Boardroom: Should be approved.

1045
02:13:26.370 --> 02:13:32.140
Boardroom: Thank you. Thank you. So, your concern, as you've articulated, is a, is a process…

1046
02:13:32.320 --> 02:13:36.500
Boardroom: concern about the documentation, or request for documentation.

1047
02:13:37.150 --> 02:13:43.789
Boardroom: So you're leaning into that more than the higher bar of finding a specific adverse impact on health and safety.

1048
02:13:44.290 --> 02:13:54.759
Boardroom: I think so. I think the, adverse issues of health and safety are addressed, and the environmental issues, where, we're happy to talk to you about that, where I think there are adverse public health effects, we believe.

1049
02:13:55.110 --> 02:13:56.909
Boardroom: Okay, thank you. That's all my questions.

1050
02:13:57.460 --> 02:13:59.980
Boardroom: Thank you. Okay, Councilmember Trekup.

1051
02:14:00.360 --> 02:14:05.899
Boardroom: Thank you, Madam Mayor. I have a follow-up question for the applicant, if you can please come up.

1052
02:14:10.440 --> 02:14:11.120
Boardroom: Okay.

1053
02:14:11.730 --> 02:14:20.370
Boardroom: So, I… I appreciate the cost of construction right now, and I appreciate,

1054
02:14:20.700 --> 02:14:24.089
Boardroom: The work you would be doing, on the bulb out.

1055
02:14:24.930 --> 02:14:29.980
Boardroom: But I have to ask, have you considered

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1056
02:14:30.160 --> 02:14:38.649
Boardroom: Or might you consider a partial contribution to the city's public arts fund as a gesture of goodwill?

1057
02:14:39.470 --> 02:14:45.469
Boardroom: I will consider it, but, not tonight.

1058
02:14:46.010 --> 02:14:57.520
Boardroom: And, I'd like you to, remind you of the difficult… we have 19 stalled projects in Berkeley right now that have been approved at various stages, and we're facing headwinds

1059
02:14:57.750 --> 02:15:03.590
Boardroom: on construction costs, interest costs, and a whole host of other things. I'm well aware.

1060
02:15:03.770 --> 02:15:09.740
Boardroom: They're all in my district. Thank you. You've answered the question, and I appreciate it. Thank you.

1061
02:15:10.450 --> 02:15:13.249
Boardroom: Okay, any other questions from council members?

1062
02:15:14.120 --> 02:15:16.240
Boardroom: Okay, we will take public comment.

1063
02:15:16.860 --> 02:15:19.950
Boardroom: Actually, do we want to take a very quick stretch break?

1064
02:15:20.110 --> 02:15:25.890
Boardroom: Yeah, let's take a… we're gonna take a 5-minute stretch break, but be prepared to start public comment right afterwards. Thank you.

1065
02:15:34.120 --> 02:15:35.360
Boardroom: Okay, folks!

1066
02:15:36.570 --> 02:15:44.959
Boardroom: Please take your seats so we can hear public comment. If you have any public comment, please come on up to the podium.

1067

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02:15:47.020 --> 02:15:50.850
Boardroom: Whatever order… yep. Go ahead, come on up!

1068
02:15:56.360 --> 02:16:02.749
Boardroom: Hi, I have somebody who's seating a minute to me over here, so I'd like to have 2 minutes on the clock. Sorry, who's…

1069
02:16:03.270 --> 02:16:04.649
Boardroom: Oh, thank you. Okay.

1070
02:16:05.280 --> 02:16:21.850
Boardroom: I want to say, first of all, I don't know anybody who wants to move from their homes in Berkeley into a very expensive rental unit on Shattuck Avenue, okay? I've lived in Berkeley a long time. I have a partner who left and lived in 3 different buildings in downtown Berkeley.

1071
02:16:21.850 --> 02:16:27.070
Boardroom: During his time there, before he went to assisted living, because that was the next route.

1072
02:16:27.090 --> 02:16:27.860
Boardroom: and…

1073
02:16:28.230 --> 02:16:34.650
Boardroom: He said it was full of students, always. There were a few people in transition in these buildings, but it's student housing.

1074
02:16:35.040 --> 02:16:44.819
Boardroom: The building on Francisco had 6 minutes to campus on it, but they took that sign down now, because that's student housing. Alright, this may not be student housing.

1075
02:16:44.990 --> 02:16:56.580
Boardroom: But it's not going to be built… it's not going to be housing the people that you want to house. Because again, I think, as Kessor Wani said, you know, what is medium and low?

1076
02:16:56.850 --> 02:17:04.390
Boardroom: in the Bay Area is still out of the reach for most people who are working at minimum or other wages around the city.

1077
02:17:04.520 --> 02:17:10.319

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Boardroom: I'd like to address the issue of a waiver. A waiver is a giving up of a legitimate right.

1078
02:17:10.730 --> 02:17:16.079
Boardroom: And in Berkeley, I'm quoting from, the city manager's

1079
02:17:16.360 --> 02:17:27.399
Boardroom: housing element and general plan report. They saw an inc… the waivers have been given in 24, I believe, 83% of the waivers.

1080
02:17:28.040 --> 02:17:41.539
Boardroom: were approved. And before that, I think close to 90% were approved. So it's not an exception, it seems to be a rule here, and I want to know why, okay? The other thing I want to know about is,

1081
02:17:42.180 --> 02:17:44.859
Boardroom: We have large developers who are building here.

1082
02:17:44.990 --> 02:17:47.579
Boardroom: That they're the only ones who can do this.

1083
02:17:48.400 --> 02:17:52.100
Boardroom: And the other thing is, It's Center Street.

1084
02:17:52.809 --> 02:18:01.520
Boardroom: What is going to happen to Center Street? We're not going to be able to attract anybody to Berkeley until we clean up what's going on in downtown Berkeley.

1085
02:18:02.430 --> 02:18:08.380
Boardroom: We talk about the arts, etc. Thank you. But we've got a mess on our hands. Thanks for your comment.

1086
02:18:21.219 --> 02:18:22.859
Boardroom: I'm gonna sell my home.

1087
02:18:24.049 --> 02:18:31.679
Boardroom: Pay a huge capital gain, give up my garden, give up my neighbors, and move into a high-rise? No effin' way.

1088
02:18:31.790 --> 02:18:36.239
Boardroom: Find me two people, two names, that will do that.

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1089
02:18:37.440 --> 02:18:39.050
Boardroom: And there'll be two fools.

1090
02:18:41.590 --> 02:18:46.709
Boardroom: When I walk, Around the corner, and have a monolith in…

1091
02:18:47.250 --> 02:18:56.059
Boardroom: instead of a cute restaurant, that affects my health. There's been no measure People's mental health impacts.

1092
02:18:56.559 --> 02:18:59.319
Boardroom: Go get it. Measure the impact.

1093
02:18:59.520 --> 02:19:03.310
Boardroom: I didn't even know about this till November. I didn't write a letter.

1094
02:19:04.930 --> 02:19:06.190
Boardroom: I'm here today.

1095
02:19:07.290 --> 02:19:08.440
Boardroom: The tour bus?

1096
02:19:09.040 --> 02:19:19.169
Boardroom: there'll be a impact on the health of money, because no tour bus wants to park in front of a monolith to go to the cheese board or Chez Panis.

1097
02:19:19.270 --> 02:19:22.309
Boardroom: Try to blind their people to get them in.

1098
02:19:22.709 --> 02:19:25.240
Boardroom: Think about those impacts. Thank you.

1099
02:19:30.629 --> 02:19:35.299
Boardroom: And Melinda's given me a minute, so I believe I have 3 minutes, thank you.

1100
02:19:36.930 --> 02:19:56.459

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Boardroom: Good evening, council members. My name is James Hendry. I wanted to begin by noting that, as we discussed, there's a difference between concessions and waivers. You're obligated under the Code to look at concessions and figure out what they cost. And then you have great benefit, you know, great benefits of being lost to the City of Berkeley, particularly on the issue of, we talked about, the loss of the public arts fee.

1101
02:19:56.610 --> 02:20:08.760
Boardroom: Now, the developer says that Impods needed to make the project, you know, profitable, but he also came into this council last week and asked for it be waived on 1752 Shattuck, which has already been built and already financed. So, are we talking about…

1102
02:20:08.910 --> 02:20:16.300
Boardroom: You know, modifications necessary to build a project, or modifications necessary just to make more profit.

1103
02:20:16.950 --> 02:20:21.629
Boardroom: Second, I have to clear up a major misconception that everybody seems to be operating under.

1104
02:20:22.120 --> 02:20:22.810
Boardroom: the…

1105
02:20:23.610 --> 02:20:29.199
Boardroom: The planning department and the applicant seemed to be saying, this is a toxic waste site, and we chose to build on it anyway.

1106
02:20:29.350 --> 02:20:30.800
Boardroom: That is incorrect.

1107
02:20:31.050 --> 02:20:43.799
Boardroom: The Housing Element Environmental Impact Report looked at every toxic waste site in Berkeley, including this project. And if they'd looked on the website, what they would have found, it said, the project has been mitigated, and you can build on it.

1108
02:20:44.140 --> 02:20:50.770
Boardroom: So the project had been mitigated and could build on it, and thus you had a win-win. Form a toxic waste site? Opportunity zone.

1109
02:20:51.290 --> 02:21:05.930

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Boardroom: Now, sadly, that mitigation effect was done in 1987, and new technologies and new requirements, new measuring techniques, now found out there's toxics on the site. Lead, benzene, chloroform, total petroleum hydrocarbons.

1110
02:21:06.100 --> 02:21:10.280
Boardroom: All located next to one of the largest pediatric clinics in Berkeley.

1111
02:21:10.490 --> 02:21:16.909
Boardroom: And so… The question then becomes, you know, and even the planning department now keeps saying, oh no, we…

1112
02:21:17.580 --> 02:21:34.510
Boardroom: knew it was toxic, even though, if you read the report, they're still claiming, relying on this 1987 report, in their staff report, that, oh, no, it's harmless, there's no problem to it. So it's a misconception to say that we knew it was a toxic site. We thought it wasn't, it turns out it was, now how do you deal with it?

1113
02:21:34.820 --> 02:21:51.410
Boardroom: So the housing element, EIR says you're supposed to remediate sites. Remediate is a term of art, meaning take all the toxic dirt, get rid of it, remediate the site to residential standards. Residential standards is a requirement that's in the, infill environmental checklist.

1114
02:21:51.760 --> 02:22:05.150
Boardroom: So instead of remediation, the applicant is proposing mitigation. What is mitigation? Mitigation is basically a vapor intrusion barrier, e.g. a large tarp put over the toxic waste to keep it allegedly in.

1115
02:22:05.310 --> 02:22:15.069
Boardroom: Whether it worked or not, we don't know. The entire document in the, report consists of three statements. A sales offer from a consultant saying, hey, we'll sell you one.

1116
02:22:15.290 --> 02:22:31.320
Boardroom: a one-sentence statement in the Phase 2 Environmental Assessment saying we think it might work, and a statement from the developer saying he'll voluntarily put it in, which, since it's not mandatory, does not mean it necessarily meets the enforcement requirements you want under CEQA.

1117
02:22:31.730 --> 02:22:40.080

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Boardroom: So, the question then becomes, we need to mitigate this, and how do we do that? And it does not meet the environmental goals under the ER. Thank you. Thanks for your comment.

1118
02:22:46.460 --> 02:22:48.679
Boardroom: Good evening, everybody. Can you hear me?

1119
02:22:49.190 --> 02:22:54.469
Boardroom: I'm not used to this. Thank you for the chance to speak. I want to talk about…

1120
02:22:55.750 --> 02:22:58.639
Boardroom: Oh, yeah, I have a minute, thank you. I want to talk about…

1121
02:22:59.440 --> 02:23:09.249
Boardroom: Two minutes is what I need. Yes. I want to talk about eroding trust in our elective officials, which is very disappointing to me. I feel like the permitting process

1122
02:23:09.670 --> 02:23:18.040
Boardroom: is very opaque to us citizens, and I also want to talk about pedestrian safety, which is close to my heart, because I walk everywhere.

1123
02:23:18.290 --> 02:23:22.129
Boardroom: Right now, the public process does not feel transparent.

1124
02:23:22.450 --> 02:23:32.829
Boardroom: There's very little time to ask questions or get real answers in these meetings. Presentations often feel vague and downright misleading.

1125
02:23:32.940 --> 02:23:40.330
Boardroom: We hear height instead of stories, everything keeps moving around. Some visuals in the room are not…

1126
02:23:41.000 --> 02:23:48.479
Boardroom: readable or even ADA compliant on occasion, and we've had meeting notices more than once with incorrect dates

1127
02:23:48.640 --> 02:23:50.239
Boardroom: Creates more confusion.

1128

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02:23:51.320 --> 02:23:52.660
Boardroom: Some,

1129
02:23:53.440 --> 02:24:02.489
Boardroom: Traffic and pedestrian safety is a very serious problem in our neck of the woods. People… somebody just got hit, a 95-year-old woman at the corner of our street.

1130
02:24:02.770 --> 02:24:08.479
Boardroom: And every other day, I seem to almost see something happen on either Virginia.

1131
02:24:08.820 --> 02:24:17.730
Boardroom: or, Cedar, and definitely it's Shattuck and Cedar. So, I feel like the traffic there is not going to be helped by

1132
02:24:18.470 --> 02:24:22.099
Boardroom: Entering all these cars, entering in and out of this building.

1133
02:24:22.290 --> 02:24:29.439
Boardroom: But I support housing, and I think that there's someplace that, this very tall building could…

1134
02:24:29.660 --> 02:24:37.170
Boardroom: Come down a little bit, it could go back a little bit, there could be steps up, and then you hear, well, it doesn't pencil out for…

1135
02:24:37.280 --> 02:24:38.330
Boardroom: the developer.

1136
02:24:38.700 --> 02:24:39.969
Boardroom: And I think…

1137
02:24:40.780 --> 02:24:46.850
Boardroom: The weight of the council seems to be well behind the developers, and not behind your citizens so much.

1138
02:24:47.050 --> 02:24:49.820
Boardroom: And that really is disappointing.

1139
02:24:50.380 --> 02:24:52.230
Boardroom: Thank you. Okay, thank you.

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1140
02:25:01.390 --> 02:25:03.999
Boardroom: Good evening, Mayor and Council Members.

1141
02:25:04.100 --> 02:25:08.739
Boardroom: My name is Mike Apti, I'm a Berkeley resident and a board member of Save Berkeley Shops.

1142
02:25:09.200 --> 02:25:13.080
Boardroom: I support new housing in Berkeley, including affordable housing.

1143
02:25:13.270 --> 02:25:17.299
Boardroom: We're not opposing housing. This is about process transparency.

1144
02:25:17.580 --> 02:25:20.370
Boardroom: And compliance with binding voter-adopted law.

1145
02:25:21.450 --> 02:25:23.419
Boardroom: Berkeley voters adopted

1146
02:25:24.190 --> 02:25:37.840
Boardroom: The 1982 Neighborhood Commercial Preservation Ordinance, that's 22.12. It's never been repealed or amended. That ordinance requires explicit findings before demolishing an existing commercial building.

1147
02:25:38.000 --> 02:25:39.489
Boardroom: Including findings that

1148
02:25:39.760 --> 02:25:48.469
Boardroom: Demolition is not materially detrimental to neighborhood commercial needs, and that replacement development appropriately harmonizes with its surroundings.

1149
02:25:49.140 --> 02:26:05.379
Boardroom: After reviewing the administrative record for Use Permit ZP202466, I found no citation analysis or findings under that ordinance under the related voter-adopted neighborhood preservation anti-demolition measures.

1150

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02:26:05.670 --> 02:26:10.080
Boardroom: Instead, the approval relies on zoning provisions and state housing law.

1151
02:26:11.070 --> 02:26:17.719
Boardroom: If voter-adopted ordinances no longer apply, that conclusion must be stated clearly and supported in the record.

1152
02:26:17.950 --> 02:26:20.450
Boardroom: Silence is not compliance.

1153
02:26:20.980 --> 02:26:26.600
Boardroom: This omission fits a broader pattern of selective engagement in the city's rezoning work.

1154
02:26:26.860 --> 02:26:34.029
Boardroom: For example, a City Commission study on up zoning impacts on businesses did not include interviews with business owners.

1155
02:26:34.540 --> 02:26:40.069
Boardroom: And business owners have not been consulted about rezoning plans affecting commercial corridors.

1156
02:26:41.200 --> 02:26:45.329
Boardroom: Council is not being asked to re-decide the project.

1157
02:26:45.980 --> 02:26:47.579
Boardroom: Or deny housing.

1158
02:26:47.880 --> 02:26:52.580
Boardroom: You are being asked to ensure that approvals rest on a complete and legally sufficient record.

1159
02:26:52.710 --> 02:26:57.639
Boardroom: And that laws adopted by Berkeley voters are not effectively nullified through a mission.

1160
02:26:58.580 --> 02:26:59.290
Boardroom: Thanks.

1161
02:27:00.510 --> 02:27:01.460
Boardroom: Thank you.

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1162
02:27:07.210 --> 02:27:09.159
Boardroom: I've made these comments before.

1163
02:27:09.300 --> 02:27:17.669
Boardroom: At the second… Quarters Workshop for North Shattuck College and Solano Avenues. City presenters

1164
02:27:17.850 --> 02:27:27.670
Boardroom: repeatedly assured us that developers would only ask for 50%, or most likely only ask for 50% density bonus. This is now the third project that has been

1165
02:27:27.820 --> 02:27:31.299
Boardroom: Requesting, or has been granted 100% density bonus.

1166
02:27:31.400 --> 02:27:36.760
Boardroom: Could the city possibly be more disingenuous and duplicitous about the zoning updates?

1167
02:27:36.860 --> 02:27:38.070
Boardroom: It's an outrage.

1168
02:27:38.680 --> 02:27:42.320
Boardroom: 50%, none of these projects are asking for 50%.

1169
02:27:43.100 --> 02:27:57.019
Boardroom: This is for Solano Avenue, where, again, every slide that the city presented showed only 8 stories, and in fact, 11 stories we permitted for 100% instant bonus. But you assured us that's never gonna happen. It is happening.

1170
02:27:57.430 --> 02:27:58.390
Boardroom: Three times.

1171
02:28:01.460 --> 02:28:02.489
Boardroom: Thank you.

1172
02:28:07.260 --> 02:28:09.360
Boardroom: Hi, I'm here to talk about

1173

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02:28:09.900 --> 02:28:16.039
Boardroom: why are you not, obeying the city ordinances? You have the,

1174
02:28:16.270 --> 02:28:22.590
Boardroom: Neighborhood Commercial Preservation Ordinance, 2212, which says that

1175
02:28:22.790 --> 02:28:33.310
Boardroom: you should, only have buildings of scale, density of use, or design that's appropriately harmonizing with structures in the area. Well, that doesn't do it.

1176
02:28:33.450 --> 02:28:44.289
Boardroom: We… it significantly will increase the amount of auto traffic congestion or auto-related pollution. That violates your…

1177
02:28:44.410 --> 02:28:51.320
Boardroom: municipal code, You know, also, you're…

1178
02:28:51.650 --> 02:28:58.989
Boardroom: It will be detrimental to the health, safety, peace, comfort, and general welfare of persons residing in the working… and working in the

1179
02:28:59.090 --> 02:29:03.549
Boardroom: in the general welfare of the city. That's in your city code, too.

1180
02:29:03.710 --> 02:29:06.110
Boardroom: You're supposed to…

1181
02:29:06.240 --> 02:29:12.169
Boardroom: follow… I thought you were supposed to follow your regulations. Thank you. Can I have a minute?

1182
02:29:13.880 --> 02:29:17.170
Boardroom: I, I think… People have given their minutes.

1183
02:29:17.700 --> 02:29:20.490
Boardroom: Okay, so I'm sorry, we have to go to the next person.

1184
02:29:20.640 --> 02:29:24.190

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Boardroom: Pardon? We have to go to the next speaker. Okay. Thank you.

1185
02:29:32.930 --> 02:29:35.450
Boardroom: Okay, hello, Council, thank you for having me today.

1186
02:29:35.570 --> 02:29:48.480
Boardroom: I believe the property on 2109 Virginia Street should be allowed to be constructed, because at this time, most of the City of Berkeley is owned by UC Berkeley. Other establishments other than the University of Berkeley should be allowed to build.

1187
02:29:48.780 --> 02:29:58.259
Boardroom: And the city is not just for students, it is in America, and the city of Berkeley is also for families. Also, I appreciate how…

1188
02:29:58.260 --> 02:30:17.420
Boardroom: I appreciate how this building is going to provide parking, which is greatly needed in Berkeley. Scarce parking is here. Furthermore, the way the City of Berkeley is currently operating gives the impression as if it is a neighborhood only for the wealthy, and the poor are not tolerated. Another proof of this is with the recent removal of People's Park, which was a huge…

1189
02:30:18.470 --> 02:30:34.169
Boardroom: Sad moment for the people of Berkeley, that were from here, and that grew up here, and that lost their businesses during COVID, and people are still suffering, and this would give people a place to live that have nowhere to live right now, because they can't afford it anymore. Thank you very much. Thank you. McCoo.

1190
02:30:39.480 --> 02:30:53.740
Boardroom: Thank you. I'd also like to mention that you have 17… I'm sorry, but you've already spoken, so you can't speak again. You've already had your minute. Well, you told me I could come after this person. No, I was saying that the next person needed to come up.

1191
02:30:54.060 --> 02:30:56.419
Boardroom: I had somebody give me a minute.

1192
02:30:56.650 --> 02:30:58.580
Boardroom: I'm sorry, you've already spoken.

1193
02:31:01.070 --> 02:31:01.770
Boardroom: Democratic.

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1194
02:31:05.170 --> 02:31:23.120
Boardroom: Art Goldberg, I've lived here for 58 years. I mean, there's been an orgy of construction, and I understand we've already met the state mandate, so why is construction going on kind of mindlessly? As to this specific building.

1195
02:31:23.340 --> 02:31:35.670
Boardroom: In North Shattuck, we don't want it. We spoke up in 2008, 2009, when they proposed the North Shattuck Plaza. It was overwhelmingly rejected, and the Council listened to that.

1196
02:31:36.010 --> 02:31:46.499
Boardroom: We don't want high-rise buildings, in that area. It's doing very well. Chez Panis just opened up a bar. The cheese board is remodeling.

1197
02:31:46.690 --> 02:31:57.139
Boardroom: These high-rise buildings will kill it, and there are other places to put housing. The university is starting to build all over the place, so I think

1198
02:31:57.230 --> 02:32:08.540
Boardroom: You people are not representing us as citizens, you're representing the developers, and I think it's time that you try to represent what we want. Thank you.

1199
02:32:29.980 --> 02:32:33.859
Boardroom: Hi again, and I have an extra minute from my friend back there.

1200
02:32:39.080 --> 02:32:41.859
Boardroom: Change is the only constant, right?

1201
02:32:42.890 --> 02:32:44.979
Boardroom: We certainly need housing.

1202
02:32:45.120 --> 02:32:47.779
Boardroom: But this housing is not affordable.

1203
02:32:48.650 --> 02:32:52.280
Boardroom: For the majority of people, we already have gentrification.

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1204
02:32:52.460 --> 02:32:58.239
Boardroom: We already have the elimination of people that had lived here for so very, very long.

1205
02:32:58.740 --> 02:33:02.060
Boardroom: I understand developers and development and…

1206
02:33:02.490 --> 02:33:06.540
Boardroom: I understand, but the whole notion of profit means…

1207
02:33:07.620 --> 02:33:10.909
Boardroom: I give less than I get.

1208
02:33:11.430 --> 02:33:18.289
Boardroom: And I'm really concerned that we're getting out of balance here in Berkeley, just like my body

1209
02:33:19.220 --> 02:33:23.589
Boardroom: Certain cells did not stay in harmony with the others.

1210
02:33:23.980 --> 02:33:26.780
Boardroom: Be dying of cancer right now.

1211
02:33:27.340 --> 02:33:30.060
Boardroom: It's like we have to be thoughtful.

1212
02:33:30.670 --> 02:33:35.329
Boardroom: I got an emergency notice today about how the wellness centers are closing.

1213
02:33:36.450 --> 02:33:41.099
Boardroom: Is cutting its staff and eliminating its programs.

1214
02:33:41.380 --> 02:33:48.430
Boardroom: food is drying up all over the place. Remember, ideal in the general Public.

1215
02:33:48.870 --> 02:33:53.590
Boardroom: I once was… opulent.

1216

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02:33:53.870 --> 02:34:02.880
Boardroom: But again, I chose to care about everyone because none of us are going to be okay if we continue this inequality.

1217
02:34:03.060 --> 02:34:13.640
Boardroom: And this calloused, Unintended consequence proliferation of Mayor.

1218
02:34:13.830 --> 02:34:21.550
Boardroom: Berkeley was first. I don't want it to end up being last in terms of the care for the community that it can be.

1219
02:34:21.960 --> 02:34:25.469
Boardroom: I'm really, really concerned. So please…

1220
02:34:26.880 --> 02:34:29.560
Boardroom: I know people want to make money, but people need to live.

1221
02:34:29.740 --> 02:34:30.740
Boardroom: Thank you.

1222
02:34:31.490 --> 02:34:32.390
Boardroom: Thank you.

1223
02:34:33.820 --> 02:34:35.889
Boardroom: Are there any public comments online?

1224
02:34:39.500 --> 02:34:40.550
Boardroom: Yes.

1225
02:34:42.550 --> 02:34:47.280
Boardroom: So this is the time for public comment on item 14.

1226
02:34:47.600 --> 02:34:54.020
Boardroom: the appeal on 2109 Virginia, so if you're on The Zoom now is the…

1227
02:34:54.200 --> 02:34:57.200
Boardroom: Time to raise your hand to speak.

1228
02:34:57.590 --> 02:34:59.439

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Boardroom: There's currently 13.

1229
02:34:59.640 --> 02:35:03.890
Boardroom: raised hands. The first speaker is Wilhelmina.

1230
02:35:04.940 --> 02:35:06.680
Boardroom: Willemini should be able to…

1231
02:35:07.380 --> 02:35:21.849
wilhemina condon: Hi, thank you very much. I… I am very disturbed about the hypocrisy around this low-income housing. You're justifying what basically is a monstrosity in the middle of our neighborhood.

1232
02:35:22.130 --> 02:35:24.170
wilhemina condon: Five stories higher.

1233
02:35:24.290 --> 02:35:43.699
wilhemina condon: four stories higher than it needs to be, under this low-income housing, justification. The reality is, that's not low-income housing. Anybody who's working at Starbucks, anybody that's a minimum wage worker is not gonna… is not gonna live there.

1234
02:35:43.750 --> 02:36:00.919
wilhemina condon: You have a legacy here. Look at what you're doing to our city. In the end, we will have a housing problem, but you will have destroyed our neighborhoods, one after another. You did it downtown, all the empty buildings.

1235
02:36:01.010 --> 02:36:12.960
wilhemina condon: you rezone, and then no buildings go in. This is a mistake. Nobody… I've talked to hundreds of my neighbors, nobody wants this. You are pro-development.

1236
02:36:12.960 --> 02:36:16.460
Boardroom: Lime, your time is up. Thank you. Next is Amelia.

1237
02:36:19.860 --> 02:36:22.260
Amelia Pernell: Hi!

1238
02:36:22.760 --> 02:36:38.430
Amelia Pernell: While we wish that everyone would take public transportation, you've cut our buses, bike safety on the corridors is

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terrifying, and you have incentivized landlords to kill our local businesses with short-term leases and the promise of upzoning cash-outs.

1239
02:36:38.430 --> 02:36:45.009
Amelia Pernell: My new neighbors will be using cars and ordering delivery. I just want to make sure everyone can do so as safely as possible.

1240
02:36:45.010 --> 02:36:58.480
Amelia Pernell: I've seen accidents, traffic jams, and near-death experiences with cars pulling into the shattered garage of the apartments across the street. Is there any chance of a rideshare and delivery cut-in or a designated entrance on Virginia?

1241
02:36:58.670 --> 02:37:12.169
Amelia Pernell: I'd also like to thank Councilmember Tragub for the attempted shakedown on behalf of the Arts Fund. We love to see it. Honestly, seeing you guys stand up to developers on even the smallest token feels like a miracle at this point. Thank you so much.

1242
02:37:13.320 --> 02:37:14.160
Boardroom: Thank you.

1243
02:37:15.510 --> 02:37:20.590
Boardroom: Next is… Rohini… Rohini?

1244
02:37:23.350 --> 02:37:37.650
Rohini Kumar’s iPhone Sep 2025: Hi, I hope you can hear me. I'd like the Council to know that if you vote, to go ahead and vote against this appeal, you're telling me that you completely understand the remediation and the environmental risks?

1245
02:37:37.820 --> 02:37:40.909
Rohini Kumar’s iPhone Sep 2025: You're voting to tell me that there is no risk

1246
02:37:41.010 --> 02:37:42.990
Rohini Kumar’s iPhone Sep 2025: From the benzene in the soil.

1247
02:37:43.120 --> 02:37:54.409
Rohini Kumar’s iPhone Sep 2025: to, the pediatric clinic that's right behind this building, and Berkeley Arts Magnet School, which is right across from it. It means that you've understood all the impacts, and you're okay with it.

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1248
02:37:54.810 --> 02:38:01.800
Rohini Kumar’s iPhone Sep 2025: Frankly, I don't believe that's the case. I don't think you've done your homework. I think you've rubber stamped this the way you rubber stamped anything else.

1249
02:38:02.020 --> 02:38:02.939
Rohini Kumar’s iPhone Sep 2025: Thank you.

1250
02:38:04.600 --> 02:38:05.360
Boardroom: Thank you.

1251
02:38:06.210 --> 02:38:08.860
Boardroom: Okay, next is Kelly Hammergren.

1252
02:38:13.400 --> 02:38:15.070
kelly hammargren: Hello.

1253
02:38:15.800 --> 02:38:23.249
kelly hammargren: I picked up one of my old composition notebooks with notes to speak at the Landmarks Preservation Commission.

1254
02:38:23.510 --> 02:38:27.979
kelly hammargren: from… July 16th, 2015.

1255
02:38:28.230 --> 02:38:39.380
kelly hammargren: And in those notes, I've got Berkeley City Council passed as a goal 50% rooftop solar by 2030.

1256
02:38:40.100 --> 02:38:44.040
kelly hammargren: Why don't we have objective standards for solar?

1257
02:38:44.710 --> 02:38:46.810
kelly hammargren: What… what happened to that?

1258
02:38:47.800 --> 02:38:53.820
kelly hammargren: What happened to this, sustainability that we used to be committed to?

1259
02:38:54.660 --> 02:38:56.280
kelly hammargren: How things change.

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1260
02:38:56.950 --> 02:39:01.400
kelly hammargren: Yesterday at the agenda Committee.

1261
02:39:01.600 --> 02:39:05.399
kelly hammargren: I ask that you schedule a special meeting

1262
02:39:05.600 --> 02:39:13.300
kelly hammargren: Special council meeting on state laws on housing and land use, and how those have changed, and how those affect our city.

1263
02:39:13.560 --> 02:39:16.030
kelly hammargren: We've got 4 more appeals.

1264
02:39:16.030 --> 02:39:17.730
Boardroom: Kelly, I'm sorry, your time is up.

1265
02:39:17.990 --> 02:39:18.780
kelly hammargren: You bet.

1266
02:39:19.070 --> 02:39:19.980
Boardroom: Thanks, Kelly.

1267
02:39:20.580 --> 02:39:23.559
Boardroom: Next is Sherry Washburn.

1268
02:39:26.760 --> 02:39:29.170
Shari Washburn, Educational Consultant: Hi. I…

1269
02:39:29.190 --> 02:39:41.739
Shari Washburn, Educational Consultant: I'm assuming you can hear me. I just want to make it really clear from the start. I support more housing in our city. We need it. It's very clear we do, but this particular project fails to deliver what our community actually needs.

1270
02:39:41.740 --> 02:39:58.709
Shari Washburn, Educational Consultant: I understand from listening tonight that the developer is using density bonus law to justify 8 stories and 110 units, but in exchange, we're only getting 18 affordable, in air quotes, units. That's 16%, at income levels that still aren't affordable for many working families here.

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1271
02:39:58.710 --> 02:40:11.930
Shari Washburn, Educational Consultant: The law sets minimums, not maximums. Other California cities negotiate 25-30% affordability for projects of this size. You have the discretion to require more, or to reject a project with insufficient public benefit.

1272
02:40:11.960 --> 02:40:30.939
Shari Washburn, Educational Consultant: I'm not going to get into parking. I think everyone in the neighborhood knows there's not enough parking, and I can't imagine what it would be like to live next door to this behemoth of a building. But does this project justify its scale and its impacts? The developer is asking for maximum density, but they're offering minimum affordability.

1273
02:40:30.940 --> 02:40:33.660
Boardroom: I'm sorry, your time's up. Thanks for your comment.

1274
02:40:34.350 --> 02:40:38.639
Boardroom: Next is a phone number ending in 000.

1275
02:40:46.380 --> 02:41:02.679
1510****000: I'm definitely against any high-rise in Berkeley. Well, they have enough of them? I emailed you last couple of weeks about earthquakes. There was one earthquake in Saint Ramon, California. This is a bad, bad, bad sign. The big one is coming. The Hayward Fault is waking up.

1276
02:41:02.800 --> 02:41:13.030
1510****000: We are going huge earthquake. All of this cheap built-box apartment building with beautiful, very smart students in Berkeley are going to be dead.

1277
02:41:13.180 --> 02:41:25.350
1510****000: if 7 or 8th magnitude earthquake takes over. It's from a scientific point of view. On the other hand, we may not have to worry, because would Trump have access to the nuclear football?

1278
02:41:25.490 --> 02:41:31.229
1510****000: We're going to go 1203. In fact, the doomsday clock was advanced just last week.

1279
02:41:31.340 --> 02:41:44.519

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1510****000: By several seconds. Have a good night. Do not approve high-rise in Berkeley no more. All these boxes are going to collapse in 7 plus magnitude Hayward Fault earthquakes. Thank you, and have a good night.

1280
02:41:44.920 --> 02:41:45.790
Boardroom: Thank you.

1281
02:41:46.650 --> 02:41:48.439
Boardroom: Next is Tony.

1282
02:41:52.230 --> 02:42:00.559
Toni: Good evening, this is Tony Mester from D2. I have two points about this project. Number one.

1283
02:42:00.690 --> 02:42:13.950
Toni: what makes this project, particularly, for senior citizens, as Mr. Kennedy, mentioned? I don't see anything in your interim, I looked at the,

1284
02:42:15.590 --> 02:42:24.459
Toni: layout, and I didn't see anything that said this is for seniors. And I also suggest that you hold a public, meeting

1285
02:42:24.620 --> 02:42:41.779
Toni: exploring how the density bonus is computed by the planning department. It is opaque, and I doubt that you even understand it, and I really think a council workshop on this subject is needed in this city. Thank you for considering my ideas.

1286
02:42:42.120 --> 02:42:43.179
Boardroom: Thank you, Tony.

1287
02:42:44.560 --> 02:42:47.269
Boardroom: Next is Nancy Rader.

1288
02:42:49.370 --> 02:43:03.289
Nancy Rader: Good evening. Hi, Nancy Rader in V6. First, I appreciate the developers designing the building for larger units. I hope they're considerably larger than the time of the stall apartments we've seen, and are affordable for the demographic.

1289
02:43:03.430 --> 02:43:10.580

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Nancy Rader: I also appreciate the parking space, because it will reduce the number of eagles and delivery vehicles, having helped climate foggy congestion.

1290
02:43:10.640 --> 02:43:29.389
Nancy Rader: On the negative side, if this massive building can be built in current zoning, it's a great big advertisement against the further upzoning or consumer process. In that process, staff is offering development standards that can be applied, including building setbacks, to help reduce the building's negative impacts on the neighborhood.

1291
02:43:29.390 --> 02:43:37.739
Nancy Rader: But here we see many, if not all, of those setback account as being waived, reducing sidewalk space, so I don't know what meaning those standards count.

1292
02:43:37.830 --> 02:43:42.469
Nancy Rader: Do you have any review opportunity with a discretionary, please use it. Thank you.

1293
02:43:44.040 --> 02:43:45.110
Boardroom: Thanks, Nancy.

1294
02:43:46.960 --> 02:43:51.260
Boardroom: Okay, next is Cheryl Davil, a former council member.

1295
02:43:54.580 --> 02:43:55.260
Boardroom: Oop.

1296
02:43:55.470 --> 02:43:56.290
Boardroom: Hold on.

1297
02:44:06.000 --> 02:44:08.330
Cheryl Davila, Former Councilmember, Founder CEMTF: Well, I didn't think you were gonna send the link.

1298
02:44:08.710 --> 02:44:23.519
Cheryl Davila, Former Councilmember, Founder CEMTF: Thank you. So, I can't see the clock, so I can't know my time. Can you start it over and put it in a place where I can see it? But so far, people have saying, like, what does this… why is this happening?

1299
02:44:24.020 --> 02:44:26.800

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Cheryl Davila, Former Councilmember, Founder CEMTF: And the weight is towards developers?

1300
02:44:27.340 --> 02:44:34.630
Cheryl Davila, Former Councilmember, Founder CEMTF: concessions are minimal, there are no cons… you know, I don't know about the concessions, but it seems like

1301
02:44:35.500 --> 02:44:44.019
Cheryl Davila, Former Councilmember, Founder CEMTF: Every time the developer gets what they want, they get the density bonus, They get,

1302
02:44:44.230 --> 02:44:49.200
Cheryl Davila, Former Councilmember, Founder CEMTF: You're not abiding by the city ordinances.

1303
02:44:49.440 --> 02:44:56.000
Cheryl Davila, Former Councilmember, Founder CEMTF: Planning just approves these monstrosities. Someone said it was an orgy of construction.

1304
02:44:56.760 --> 02:45:01.029
Cheryl Davila, Former Councilmember, Founder CEMTF: The hypocrisy of low-income housing justification.

1305
02:45:01.230 --> 02:45:04.390
Cheryl Davila, Former Councilmember, Founder CEMTF: Hundreds of neighbors don't want this.

1306
02:45:04.530 --> 02:45:06.879
Cheryl Davila, Former Councilmember, Founder CEMTF: And it's on toxic gland?

1307
02:45:07.420 --> 02:45:11.940
Cheryl Davila, Former Councilmember, Founder CEMTF: And the objective for solar, not no commitment.

1308
02:45:12.160 --> 02:45:18.789
Cheryl Davila, Former Councilmember, Founder CEMTF: Public benefits are minimal. 18 units is nothing, and they're not affordable.

1309
02:45:18.790 --> 02:45:19.820
Boardroom: Thanks for your comment.

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1310
02:45:20.450 --> 02:45:25.970
Boardroom: Next is… Tova… Solomon?

1311
02:45:29.850 --> 02:45:30.840
Tova Solomon: Hello?

1312
02:45:31.500 --> 02:45:37.480
Tova Solomon: I wanna eat… Mention about the… 19…

1313
02:45:38.040 --> 02:45:43.460
Tova Solomon: stalled other projects, if those were…

1314
02:45:43.590 --> 02:45:54.520
Tova Solomon: built and brought in new residents, then that would help ease some of the financial concerns people are having about this project, and as always, with

1315
02:45:54.780 --> 02:45:59.740
Tova Solomon: You'll see there's location, location, location, so down by…

1316
02:45:59.810 --> 02:46:14.999
Tova Solomon: San Pablo and University. Three of the four stores, on that corner are closed. We have room for larger building housing down here that wouldn't be interfering with the

1317
02:46:15.030 --> 02:46:25.460
Tova Solomon: quaint neighborhood at North Shattuck, and the students that would be moving in, they're world-class students, they know how to take a bus up to campus.

1318
02:46:25.630 --> 02:46:35.459
Tova Solomon: Putting this building, in this location is just the wrong place. It's absolutely absurd.

1319
02:46:35.460 --> 02:46:37.110
Boardroom: Thanks for your comment.

1320
02:46:38.050 --> 02:46:40.260
Boardroom: Next is… Cleo.

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1321
02:46:46.080 --> 02:46:54.529
Cleo Masliah: Hi, so I want to come to the defense of the City Council a little bit here, in the sense that, actually.

1322
02:46:55.020 --> 02:47:12.950
Cleo Masliah: all of these regulations are allowed by the state of California, and the laws of the state of California supersede the laws that we can pass in Berkeley. So, in reality, what's going to happen is that the City Council is going to have to approve this, and there's going to be a lot of hang-wringing, and the reality is that this is just what's legally possible. The developer is doing what's legally possible.

1323
02:47:13.360 --> 02:47:32.660
Cleo Masliah: But I do want to point out two things, that the City of Berkeley is passing a lot of its own regulations, and what I've noticed is repeatedly it does so without paying attention to what the state of California is really doing, or without paying sufficient attention to what the state of California is doing. And so we end up with these unintended consequences, where

1324
02:47:32.790 --> 02:47:52.380
Cleo Masliah: you know, we've allowed… we've designated this site in the housing element, creating additional density authorization for it. And… and now I think nobody really wants what's happening, but we don't have the choice. And it's fair for the developer to be looking at the housing element and saying, I'm allowed.

1325
02:47:53.400 --> 02:47:56.109
Boardroom: Next is Walnut.

1326
02:47:58.800 --> 02:48:10.269
Walnut: Hi! I work next door to the building that is being proposed. I work in that building that has the mural that our applicant doesn't know about.

1327
02:48:10.720 --> 02:48:13.030
Walnut: I teach kids with learning disabilities.

1328
02:48:13.810 --> 02:48:14.920
Walnut: Building…

1329
02:48:15.040 --> 02:48:25.449

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Walnut: Construction of this magnitude that will take so long is going to be so detrimental to my students and to my coworkers. Especially when… no, when it stalls.

1330
02:48:26.010 --> 02:48:42.020
Walnut: But my main grievance is anyone who has a legitimate problem with this building is treated like, oh, you're against housing, oh, you don't care about past redlining. These are not going to be for sale, these units. They are not going to be affordable.

1331
02:48:42.620 --> 02:48:45.659
Walnut: I will be a renter the rest of my life, and I won't be able to live in one of these.

1332
02:48:46.780 --> 02:48:48.509
Walnut: Make them all affordable!

1333
02:48:48.660 --> 02:48:50.430
Walnut: Put your money where your mouth is!

1334
02:48:51.430 --> 02:48:52.890
Walnut: don't claim…

1335
02:48:53.030 --> 02:48:54.010
Boardroom: that…

1336
02:48:54.010 --> 02:48:56.760
Walnut: This is all out of,

1337
02:48:57.780 --> 02:49:00.400
Walnut: Altruism, when it's about making money.

1338
02:49:00.630 --> 02:49:01.540
Boardroom: Thank you.

1339
02:49:02.340 --> 02:49:06.200
Boardroom: Okay, that was the last, commenter online, so…

1340
02:49:06.890 --> 02:49:10.470
Boardroom: Okay. Thank you all for your public comments.

1341

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02:49:10.600 --> 02:49:12.619
Boardroom: Is there a motion to close the public hearing?

1342
02:49:13.070 --> 02:49:14.710
Terry Taplin: So moved.

1343
02:49:15.260 --> 02:49:16.679
Boardroom: Can we take the roll, please, Clerk?

1344
02:49:17.500 --> 02:49:21.330
Boardroom: Okay, to close the public hearing, Councilmember Kesarwani? Yes.

1345
02:49:21.620 --> 02:49:23.150
Terry Taplin: Taplin? Yes.

1346
02:49:23.380 --> 02:49:41.100
Boardroom: Bartlett? Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mayor Ishii? Yes. Okay, public hearing's closed. Okay. So, Council deliberations, starting with Vice Mayor Lunapara.

1347
02:49:42.440 --> 02:49:46.030
Boardroom: Thank you. I just want to say something really quickly.

1348
02:49:46.770 --> 02:49:59.400
Boardroom: The Berkeley minimum wage right now is $19.18 an hour, and as a full-time job, that makes $39,894.40, which is obviously way below cost of living.

1349
02:49:59.780 --> 02:50:14.579
Boardroom: The nine very low-income units designated here will be deed-restricted affordable for residents that are at 30-50% of the area median income. 30% area median income in Berkeley for a one-person household is $33,600, and for a two-person household is $38,400.

1350
02:50:14.830 --> 02:50:22.689
Boardroom: This means that these low-income units, which will sit on a lot that currently has no housing at all, will quite literally be affordable for people making minimum wage in Berkeley.

1351
02:50:22.900 --> 02:50:26.259

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Boardroom: These are units for low-income residents that otherwise will not exist.

1352
02:50:26.390 --> 02:50:27.200
Boardroom: Thank you.

1353
02:50:29.420 --> 02:50:32.209
Boardroom: Thank you, Councilmember Treyka.

1354
02:50:34.440 --> 02:50:36.379
Boardroom: Thank you, Madam Mayor.

1355
02:50:36.500 --> 02:50:37.779
Boardroom: And thank you.

1356
02:50:38.210 --> 02:50:45.740
Boardroom: everyone who came here tonight, as well as to staff for their diligence.

1357
02:50:46.550 --> 02:50:52.900
Boardroom: I… I certainly heard from many neighbors,

1358
02:50:53.170 --> 02:51:00.349
Boardroom: Leading up to and including tonight, and appreciate the labor, time, and effort that it takes to participate in this process.

1359
02:51:01.290 --> 02:51:07.529
Boardroom: I also understand that this is the place you call home, and what is happening directly next to your home.

1360
02:51:07.640 --> 02:51:10.780
Boardroom: Affects you more than any of us sitting here.

1361
02:51:11.440 --> 02:51:16.190
Boardroom: So, I… I have listened, and I appreciate it.

1362
02:51:16.440 --> 02:51:21.739
Boardroom: And unfortunately, as in many circumstances, we are faced with some tough choices.

1363
02:51:22.290 --> 02:51:31.160

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Boardroom: On the one hand, understandably, some members of the community have expressed concerns and desire for additional features.

1364
02:51:31.540 --> 02:51:37.649
Boardroom: Such as more affordable housing, higher labor standards, and keeping the 1% for the arts provision.

1365
02:51:37.930 --> 02:51:54.469
Boardroom: On the other hand, this application includes 110 dwelling units, including 9 very low-income units, which, to Vice Mayor Luna Power's point, will, in fact, be affordable to many making minimum wage, as well as 9

1366
02:51:54.550 --> 02:52:01.609
Boardroom: Moderate income, density bonus qualifying units, which is basically workforce housing for working families.

1367
02:52:02.130 --> 02:52:11.230
Boardroom: And even in the face of a nearly $35 million budget deficit our city faces, I'm personally deeply committed,

1368
02:52:11.330 --> 02:52:27.639
Boardroom: And I think I speak for everyone on this body, actually, in saying this, in supporting funding civic and public arts, and demanding that the residential projects built in Berkeley are done, with the workforce, not on the backs of it, and including units that

1369
02:52:27.870 --> 02:52:34.509
Boardroom: That are… affordable, for those who can, who build them.

1370
02:52:36.310 --> 02:52:39.499
Boardroom: And that said, we desperately need housing.

1371
02:52:40.120 --> 02:52:44.880
Boardroom: Especially around and in the near vicinity of transit-witch corridors.

1372
02:52:45.470 --> 02:52:53.030
Boardroom: And like all of my colleagues, I'm committed to trying to do my part in addressing our housing unaffordability crisis.

1373
02:52:54.600 --> 02:53:04.650

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Boardroom: Despite how challenging it may be to find appropriate locations, appropriate conditions, appropriate unit price point in development that will satisfy

1374
02:53:05.500 --> 02:53:08.520
Boardroom: all Berkeley constituents.

1375
02:53:09.380 --> 02:53:15.299
Boardroom: As has been mentioned, Several projects have stalled in Berkeley.

1376
02:53:15.760 --> 02:53:19.390
Boardroom: Most… Of them are in my district.

1377
02:53:20.400 --> 02:53:26.180
Boardroom: And we are unfortunately not receiving much-needed housing elsewhere.

1378
02:53:26.320 --> 02:53:37.440
Boardroom: Furthermore, state laws have dramatically limited the level of discretion available to quasi-judicial entities, such as the ZAB and the City Council.

1379
02:53:37.740 --> 02:53:42.230
Boardroom: And in this case, based on,

1380
02:53:42.460 --> 02:53:51.329
Boardroom: everything that, I'm aware of in the state housing law landscape, as well as, everything we've heard from staff,

1381
02:53:51.510 --> 02:53:54.240
Boardroom: We don't have much discretion either.

1382
02:53:55.440 --> 02:54:06.139
Boardroom: But even before these state laws were passed, and I, between the ZAB and City Council, I have been absorbing the landscape for the last 14 years.

1383
02:54:06.320 --> 02:54:23.050
Boardroom: Even prior to this, it would have been challenging and legally risky to demand something of an applicant, unless they themselves agree to something that goes above and beyond local or state requirements. Now it's next to impossible, and all we can do is voluntarily ask.

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1384
02:54:23.650 --> 02:54:24.609
Boardroom: And we did.

1385
02:54:26.100 --> 02:54:31.640
Boardroom: For all these reasons, and based on my close review of the appeal packet and staff responses.

1386
02:54:32.170 --> 02:54:35.129
Boardroom: I will be supporting approval of this project.

1387
02:54:35.840 --> 02:54:40.780
Boardroom: To the community members here tonight that may disagree with this vote.

1388
02:54:41.010 --> 02:54:49.159
Boardroom: Please know that tomorrow, my office and I will get back to working alongside of you on the issues, that

1389
02:54:49.250 --> 02:55:01.239
Boardroom: We have been working on, including revitalizing our downtown and commercial spaces, and addressing street safety for all. Together, we will continue to endeavor to create a Berkeley we can all call home.

1390
02:55:03.090 --> 02:55:05.259
Boardroom: Thank you. Councilmember Humbert?

1391
02:55:05.580 --> 02:55:07.050
Boardroom: Thank you, Madam Mayor.

1392
02:55:07.590 --> 02:55:13.389
Boardroom: I want to begin by saying that I understand where the neighbors of this proposed project are coming from.

1393
02:55:13.620 --> 02:55:14.920
Boardroom: It's a big change.

1394
02:55:15.150 --> 02:55:16.720
Boardroom: There's no way around that.

1395
02:55:17.250 --> 02:55:20.860

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Boardroom: It will mean less privacy, less light, and a big change in view.

1396
02:55:21.110 --> 02:55:26.509
Boardroom: All else being equal, being unhappy about these things is perfectly justifiable and understandable.

1397
02:55:27.000 --> 02:55:28.520
Boardroom: I don't condemn you for that.

1398
02:55:29.250 --> 02:55:35.289
Boardroom: However, at the same time, we as a city should act according to our principles, and above all, we must follow the law.

1399
02:55:35.740 --> 02:55:40.390
Boardroom: Our principles are that we need to allow for more housing to help make homes more affordable.

1400
02:55:40.530 --> 02:55:44.289
Boardroom: And available to people at all income levels, and this project will do that.

1401
02:55:44.600 --> 02:55:49.970
Boardroom: And be a city that can welcome all, including immigrants and the workers who keep our city running.

1402
02:55:50.570 --> 02:55:55.509
Boardroom: We also need to follow our principles of maximizing new homes near jobs and transit.

1403
02:55:55.660 --> 02:56:07.429
Boardroom: to support local businesses, shorten commutes, encourage alternatives to driving, and thereby help protect our climate. And this project, checks those boxes as well.

1404
02:56:07.710 --> 02:56:12.979
Boardroom: And finally, and most importantly, we must comply with state housing law.

1405
02:56:13.170 --> 02:56:18.689
Boardroom: And allow projects that meet all applicable development, standards.

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1406
02:56:18.810 --> 02:56:22.879
Boardroom: And, and particularly with respect to density bonus projects.

1407
02:56:23.490 --> 02:56:31.479
Boardroom: Our staff and all voting members of the Zoning Adjustments Board are in agreement that this project meets applicable standards.

1408
02:56:32.550 --> 02:56:37.609
Boardroom: Absent additional evidence to the contrary, and I've heard none, I'm compelled to affirm

1409
02:56:37.740 --> 02:56:42.899
Boardroom: the decision of the Zoning Adjustments Board, and vote to dismiss the appeal. Thank you.

1410
02:56:44.060 --> 02:56:45.729
Boardroom: Thank you, Councilmember Bartlett.

1411
02:56:47.300 --> 02:56:51.070
Boardroom: Thank you, Madam Mayor, and I want to thank the staff for your presentation, and…

1412
02:56:51.200 --> 02:56:57.550
Boardroom: And, and thank the applicants here, the, well, the community for your efforts, your diligent efforts, and

1413
02:56:57.900 --> 02:57:02.100
Boardroom: You know, and while I sympathize with you, I empathize with you,

1414
02:57:02.350 --> 02:57:07.040
Boardroom: I don't see any real basis to deny the project.

1415
02:57:07.300 --> 02:57:14.779
Boardroom: And further, I want to encourage this project, because although it will be a difference in your life.

1416
02:57:14.940 --> 02:57:18.630
Boardroom: It will also be a positive difference in the lives of many other people.

1417

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02:57:18.780 --> 02:57:21.500
Boardroom: Particularly those who live in the building.

1418
02:57:22.040 --> 02:57:30.669
Boardroom: And the decades that we have stopped housing in Berkeley, have led to the scarcity that has driven so many people out of town.

1419
02:57:31.460 --> 02:57:33.780
Boardroom: And so many people who've become…

1420
02:57:34.040 --> 02:57:44.529
Boardroom: accidental millionaires, homeowners who are benefiting from the scarcity. You know, none of that's equitable, and too much of, the development has been borne by other districts.

1421
02:57:44.690 --> 02:57:50.589
Boardroom: And so, there is a larger, equitable argument here to be made that this project is,

1422
02:57:51.110 --> 02:58:07.629
Boardroom: kind of benefiting our efforts to make an equitable development scene in Berkeley. And just so you know, the district that we're in right now for this building here is the only district that has experienced an increase in racial diversity because it has built the most apartments.

1423
02:58:09.040 --> 02:58:13.619
Boardroom: So this is where we're at. This is… A necessary thing.

1424
02:58:13.880 --> 02:58:16.269
Boardroom: To, to increase our confidence as a city.

1425
02:58:16.460 --> 02:58:22.139
Boardroom: Because these are tax revenue generating entities, and also higher culture.

1426
02:58:22.250 --> 02:58:31.270
Boardroom: More equity, lower rents, more opportunity, and ultimately your neighborhood will benefit from this. And I want to thank you for your diligent efforts, and I'll be voting to approve the building.

1427
02:58:32.880 --> 02:58:34.680
Boardroom: Thank you. Councilmember O'Keefe?

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1428
02:58:37.960 --> 02:58:42.319
Boardroom: I believe, Councilmember Taplin had his hand up before me, and I wouldn't mind an extra minute, if that's okay.

1429
02:58:43.150 --> 02:58:45.380
Boardroom: Yes, that's fine. Councilmember Taplin.

1430
02:58:45.910 --> 02:58:54.249
Terry Taplin: Sure, thank you very much. I mean, I don't want to belabor or drag this out, but, you know, I'm not going to wring hands, but

1431
02:58:55.290 --> 02:59:06.410
Terry Taplin: It's pretty straightforward. I do just have to say that this is not a low-density neighborhood. There are many apartments in this neighborhood. I think on this single block, there are probably more apartments in my entire neighborhood combined.

1432
02:59:06.750 --> 02:59:13.809
Terry Taplin: And it's on a major corridor, and that… those are things I think make this area attractive and appealing.

1433
02:59:14.460 --> 02:59:19.339
Terry Taplin: I think it's a fine location for multifamily housing, and I'm excited for…

1434
02:59:19.540 --> 02:59:24.299
Terry Taplin: The… the… the opportunity for older homeowners to downsize.

1435
02:59:25.540 --> 02:59:28.580
Terry Taplin: I'm… errands.

1436
02:59:29.550 --> 02:59:34.969
Terry Taplin: like Councilmember Bartlett was saying, a lot of our districts, a lot of our neighborhoods have been

1437
02:59:36.240 --> 02:59:43.239
Terry Taplin: Building housing, have been constructing housing for… for years and decades, and…

1438
02:59:46.390 --> 02:59:57.030

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Terry Taplin: It's not… There's… there's no… There's… like, we should not… C…

1439
02:59:57.750 --> 03:00:01.419
Terry Taplin: New neighbors, or the growth of our neighborhoods, as some kind of burden.

1440
03:00:02.140 --> 03:00:05.160
Terry Taplin: These are people who are part of the fabric of our community.

1441
03:00:05.650 --> 03:00:08.679
Terry Taplin: And these homes are going to be part of the fabric of our neighborhoods.

1442
03:00:09.420 --> 03:00:16.720
Terry Taplin: I'll be running, to… denying the appeal.

1443
03:00:19.650 --> 03:00:21.280
Boardroom: Thank you, Councilmember Blackaby.

1444
03:00:21.960 --> 03:00:27.729
Boardroom: Sorry, I'm sorry, going back to Councilmember O'Keefe, thank you. Thanks, yeah, I'm ready now, appreciate that.

1445
03:00:27.930 --> 03:00:33.900
Boardroom: Well, I did want to state briefly, it's already been stated, but,

1446
03:00:34.240 --> 03:00:46.259
Boardroom: it's important to really reiterate that we don't really have the option of upholding this appeal legally. There's many dimensions of state law that are at play that make that, not an option.

1447
03:00:47.020 --> 03:00:55.569
Boardroom: But if that was my only response, I think that would be a cop-out. Actually, I'm gonna say more. The fact is, I'm happy to support this project and to deny the appeal.

1448
03:00:55.990 --> 03:00:58.599
Boardroom: Even if I had leeway to deny it, I wouldn't.

1449

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03:00:59.020 --> 03:01:03.480
Boardroom: I am… I identify as a pro-housing council member.

1450
03:01:03.670 --> 03:01:09.659
Boardroom: I was very openly pro-housing when I ran for this position, and I was elected with 75% of the vote.

1451
03:01:10.300 --> 03:01:16.159
Boardroom: I make that point, not to brag, but, there's a sentiment that this sort of,

1452
03:01:17.000 --> 03:01:20.549
Boardroom: Approving this sort of project is somehow against the will of the voters.

1453
03:01:20.720 --> 03:01:30.300
Boardroom: And it's not democratic. And I have to push back against that. It's just not the way I see it. I think it's clear from the makeup of the Council that the people of Berkeley

1454
03:01:30.850 --> 03:01:36.440
Boardroom: and also people who don't live in Berkeley, by the way, who wish to, want more housing.

1455
03:01:36.800 --> 03:01:44.269
Boardroom: And they want housing projects like this one, that are close to transit, it's not displacing anyone or any businesses.

1456
03:01:44.430 --> 03:01:51.440
Boardroom: It's… It is displacing a mural, and I'm salty about that, but…

1457
03:01:53.250 --> 03:01:55.869
Boardroom: Overall, it's… it's a good project.

1458
03:01:56.120 --> 03:02:09.849
Boardroom: And… It also includes a really meaningful amount of actual mathematically affordable housing. A very significant amount.

1459
03:02:11.080 --> 03:02:15.569
Boardroom: With all… okay, so with all due respect… Please don't interrupt her. …to the appellants…

1460

Unofficial Text File

This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

03:02:16.700 --> 03:02:20.129
Boardroom: Most of the arguments in the appeal,

1461
03:02:20.860 --> 03:02:23.000
Boardroom: Many of them demand that our staff

1462
03:02:23.200 --> 03:02:29.510
Boardroom: go above and beyond following their own established procedures. Which, if we were to

1463
03:02:30.080 --> 03:02:37.110
Boardroom: agree to that, I think it would be a huge blow to fairness and equity. That's a really important value of running a city.

1464
03:02:37.260 --> 03:02:41.559
Boardroom: And a number of the other appeal points, you know, I don't want to dismiss

1465
03:02:42.130 --> 03:02:51.389
Boardroom: I don't mean to dismiss the importance of them, they make sense, they're real complaints, but having been on the zoning board for more than 10 years.

1466
03:02:51.780 --> 03:03:11.140
Boardroom: These same complaints, these objections are raised for almost every single large housing project. Construction impact, shadows, traffic and parking. These things are brought up every single time. And if we denied projects based on these factors, we would have built almost no housing in the last

1467
03:03:11.470 --> 03:03:20.230
Boardroom: 15 years. And that, as I mentioned in the beginning, would be unacceptable to me, because I want more housing in this city, and I'm going to continue to support more housing.

1468
03:03:22.410 --> 03:03:31.070
Boardroom: Thank you, Councilmember. Councilmember Blackaby? Thanks, Madam Mayor. I'll be brief. We've all had, a lot of time to express our comments, and…

1469
03:03:31.210 --> 03:03:44.350
Boardroom: So, to be clear, you know, look, like Councilmember, O'Keefe mentioned, I also was elected pretty clearly, because I do support, development of new housing in Berkeley,

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1470
03:03:44.530 --> 03:04:01.259
Boardroom: of all types. We've made a lot of progress as a community over the last few years, but we know that there's a lot more to do. Not just, by the way, on the rental housing, but also on condos and housing for purchase. It's also why I was so appreciative of the work we've done on the ADU ordinance, where

1471
03:04:01.300 --> 03:04:11.379
Boardroom: people can now, we're making that available for ADUs to be purchased separately as a potential starter home for folks who need, housing at that price point.

1472
03:04:11.450 --> 03:04:28.649
Boardroom: So, trans-oriented development, middle housing, our ADU policy, that's all part of this housing solution, this kind of mix of different tactics that are in, in the arrows and the quiver, as it were. And projects like this are also part of the solution. I… I do appreciate

1473
03:04:28.980 --> 03:04:43.100
Boardroom: the concerns that have been raised by, the appellants, and it's why I kept coming back to, ideas that my colleagues have also mentioned, which is, you know, what's the standard? What is our discretion? Like, what's the threshold that we would need to determine

1474
03:04:43.160 --> 03:04:59.160
Boardroom: to say that it rose to a level where we would need to somehow move this back to ZAB, or support the appeal. But given, in my view, that it appears, as I've read the record, that the environmental review process steps have been met.

1475
03:04:59.290 --> 03:05:09.379
Boardroom: I don't see how this meets the level of adverse… specific adverse impact on health and safety. I just… that's a very high standard, as other people have said.

1476
03:05:09.530 --> 03:05:23.679
Boardroom: That's, to me, the prong that the appellants are asking us to rely upon, and I'm sympathetic, and I understand the concerns, but I don't see that it rises to that level as I do my analysis.

1477
03:05:23.940 --> 03:05:30.220
Boardroom: One other point, I also do appreciate the feedback that folks have given about the corridors project.

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1478
03:05:30.390 --> 03:05:43.590
Boardroom: you know, I'm… I'm very sensitive to the argument that current zoning and the current density bonus already support developments of 7 or 8 stories along Shattuck, and,

1479
03:05:43.980 --> 03:05:57.300
Boardroom: So, it does raise the question, what is the point of doing further up zoning if we're already ending up with housing at the level of 7 or 8 stories, which feels appropriate to me? And so.

1480
03:05:57.540 --> 03:06:06.590
Boardroom: As we move forward, again, I'm in a dialogue with a lot of folks on this subject. I've met with the business owners a couple of times, I'm meeting with residents in District 6 and nearby.

1481
03:06:07.110 --> 03:06:13.480
Boardroom: you know, I want us to be sensitive and thoughtful about this process, because again, we are…

1482
03:06:14.140 --> 03:06:20.379
Boardroom: continuing to move forward on the development of new housing, and I think that is the right path, absolutely the right path, as a community.

1483
03:06:20.490 --> 03:06:25.380
Boardroom: I also just want to make sure that we strike the right balance as we move forward.

1484
03:06:25.500 --> 03:06:42.529
Boardroom: Beyond this project. And so, as we continue on that path, I'll just… I wanted to sort of articulate, that as well, because I, I think this is a great project. And I'm really, I, I think this will do a lot of good,

1485
03:06:42.630 --> 03:06:48.009
Boardroom: And I think this feels appropriate for this, for this neighborhood.

1486
03:06:48.240 --> 03:06:57.720
Boardroom: But it feels like it also may be about, at least from my perspective and from neighbors I've talked to, that may be about the limit of maybe what's appropriate in this quarter.

1487

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03:06:57.880 --> 03:06:58.670
Boardroom: Again.

1488
03:06:59.020 --> 03:07:05.529
Boardroom: I just want us to be sensitive and thoughtful about what this means moving forward, because under existing zoning, we're ending up with a really good project.

1489
03:07:05.830 --> 03:07:18.149
Boardroom: In this neighborhood, and I just, I appreciate that fact, and I appreciate the feedback that some others have shared about that tonight. So I will be supporting the project. I will vote to deny the appeal, but I at least wanted to get some of my thoughts on the record. Thank you.

1490
03:07:18.330 --> 03:07:20.940
Boardroom: Thank you, Councilmember Kesarwani.

1491
03:07:22.800 --> 03:07:25.999
Boardroom: Thank you very much, Madam Mayor. Yeah, I just wanted to res…

1492
03:07:26.220 --> 03:07:32.629
Boardroom: I don't typically respond to the public commenters. I want to thank the public commenters. I did want to respond to one

1493
03:07:32.810 --> 03:07:35.729
Boardroom: Point that was made, which is…

1494
03:07:35.870 --> 03:07:43.610
Boardroom: Sort of questioning why would anyone who owns a home in the hills ever think about downsizing?

1495
03:07:45.040 --> 03:07:50.519
Boardroom: I just need to help… maybe I need to just help explain why that might be. You know, as people age.

1496
03:07:50.760 --> 03:07:53.379
Boardroom: It's no longer safe for them to drive.

1497
03:07:53.480 --> 03:07:58.300
Boardroom: As people age, they may lose their vision.

1498

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03:07:58.450 --> 03:08:03.649
Boardroom: They may lose their hearing. You know, we have people with disabilities who aren't able to drive.

1499
03:08:03.750 --> 03:08:06.860
Boardroom: So it is very important that we think of

1500
03:08:07.440 --> 03:08:18.339
Boardroom: the full array of people who live in our city, and make sure we think about opportunities for people to be able to, if they want to, downsize

1501
03:08:18.400 --> 03:08:27.929
Boardroom: and live in a neighborhood that is more walkable. I mean, this is at the corner of Virginia and Shattuck. It's walkable to multiple grocery stores.

1502
03:08:28.120 --> 03:08:31.740
Boardroom: It's, it's a public transit corridor.

1503
03:08:31.850 --> 03:08:41.100
Boardroom: So, so it's, it's really… An important resource to be able to locate housing here. And,

1504
03:08:41.570 --> 03:08:55.920
Boardroom: You know, and somebody said, you know, why would you do that on a financial basis? Well, there's now Prop 19 that allows homeowners over the age of 55 who have disabilities or who are victims of wildfire to transfer their tax base anywhere in the state.

1505
03:08:56.020 --> 03:09:14.389
Boardroom: So, there are a lot of reasons why, for aging homeowners in the hills who can no longer drive down to get their gallon of milk, this makes a lot of sense for them. And, Councilmember Blackaby talked about it. We are trying to actually provide other opportunities for people to downsize

1506
03:09:14.420 --> 03:09:18.509
Boardroom: And own a starter home or a downsized home.

1507
03:09:18.580 --> 03:09:31.249
Boardroom: across the city, so… Excuse me. There are… we are going to now, with the second reading that I recused from, have accessory dwelling units for sale as starter homes or a downsizing opportunity.

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1508
03:09:31.350 --> 03:09:40.660
Boardroom: I think next meeting, we're gonna look at subdivision as it relates to middle housing, so that there can be multiple small cottages on a lot.

1509
03:09:40.850 --> 03:09:42.280
Boardroom: And,

1510
03:09:42.460 --> 03:09:54.149
Boardroom: I have an item that's going to be heard by the Land Use Policy Committee to look at a local density bonus so that we could make it easier to create some of these larger condo projects.

1511
03:09:54.230 --> 03:10:04.410
Boardroom: in the downtown or in other public transit corridors for this very reason, and the reason why I think it's so important is because

1512
03:10:05.170 --> 03:10:11.149
Boardroom: Berkeley, the Thousand Oaks neighborhood, it's the oldest neighborhood in the Bay Area.

1513
03:10:11.230 --> 03:10:25.769
Boardroom: And so, we have a very aging population, and you think of the Thousand Oaks neighborhood, you know, parts of that neighborhood are not necessarily walkable, to grocery stores, so… so I think this is really important. Excuse me!

1514
03:10:26.100 --> 03:10:29.740
Boardroom: So, so I think this is really important… Please don't speak other council members are speaking.

1515
03:10:30.030 --> 03:10:39.600
Boardroom: you know, to be able to provide this opportunity for people, it doesn't make sense for everybody. It is, it does make sense for some people, and some people are really…

1516
03:10:39.660 --> 03:10:57.499
Boardroom: telling us that they want these opportunities to downsize and stay in the… in the community that they know and love, and so… so I just wanted to make that point, and, thank all my colleagues, thank the staff, and thank the public commenters, for all of your, comments.

1517

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03:11:01.530 --> 03:11:20.909
Boardroom: Thank you, Council, for your comments. I do just want to add that I know some folks are saying that they feel like this process can be confusing, and they feel like the information is difficult to get, and, to understand, and so I just wanna, just wanna say that, you know, we are working to continuously make these processes

1518
03:11:20.910 --> 03:11:33.570
Boardroom: more transparent and clearer, and I really want to thank staff, because I know you also answer a lot of questions for folks in the community, but also, from council members. And thank you for the presentation as well. I didn't get to say that earlier.

1519
03:11:33.720 --> 03:11:37.940
Boardroom: Okay, so is there a motion?

1520
03:11:40.610 --> 03:11:42.780
Terry Taplin: remove approval of the staff recommendation.

1521
03:11:43.790 --> 03:11:44.730
Boardroom: Second.

1522
03:11:47.650 --> 03:11:49.050
Boardroom: Clerk, can you please take the roll?

1523
03:11:49.740 --> 03:11:50.610
Boardroom: Okay?

1524
03:11:50.750 --> 03:11:57.380
Boardroom: to, deny the appeal and affirm the Zoning Adjustments Board decision.

1525
03:11:57.970 --> 03:12:06.369
Boardroom: On Use Permit ZP2024-0066. Councilmember Kesarwani? Yes.

1526
03:12:06.790 --> 03:12:07.600
Boardroom: Taplin?

1527
03:12:07.600 --> 03:12:08.420
Terry Taplin: Yes.

1528
03:12:08.720 --> 03:12:10.160

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Boardroom: Bartlett? Yes.

1529
03:12:10.350 --> 03:12:11.590
Boardroom: Traeger? Aye.

1530
03:12:11.720 --> 03:12:15.800
Boardroom: O'Keefe? Yes. Blackaby? Yes. Unapara?

1531
03:12:16.350 --> 03:12:21.709
Boardroom: Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Thank you.

1532
03:12:22.200 --> 03:12:23.600
Boardroom: Thank you, everyone.

1533
03:12:24.390 --> 03:12:29.310
Boardroom: Okay, we are now moving on to public comment for items not listed on the agenda.

1534
03:12:38.710 --> 03:12:40.150
Boardroom: Is there anyone online?

1535
03:12:41.010 --> 03:12:45.680
Boardroom: Yes, there's two hands raised for non-agenda public comments.

1536
03:12:45.810 --> 03:12:47.630
Boardroom: First is Tony.

1537
03:12:51.400 --> 03:13:04.169
Toni: Yes, I'd like to talk about the, the, the upgrade that's recommended, that's being suggested for the Carters, and I tend to agree that…

1538
03:13:04.800 --> 03:13:06.590
Toni: If… Could you please…

1539
03:13:06.610 --> 03:13:09.169
Boardroom: Sorry, Tony, give me one second, could you pause?

1540
03:13:09.730 --> 03:13:17.380

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Boardroom: Folks, I know you're heading out. Could you please have your conversations outside so that we can hear from the public commenters? Thank you!

1541
03:13:17.650 --> 03:13:18.900
Boardroom: Sorry, Tony, go ahead.

1542
03:13:18.900 --> 03:13:37.729
Toni: I just want to say that it seems ridiculous to upzone more, because if we can get 7 or 8 stories with the current corridor zoning, including San Pablo Avenue, why would we risk not getting the affordable housing units that we get?

1543
03:13:37.730 --> 03:13:54.460
Toni: With the density bonus. If we raise the base unit to 7 or 8 stories, we're not going to get affordable housing under the density bonus. And so it seems counterintuitive and counterproductive to upzone

1544
03:13:54.610 --> 03:13:57.689
Toni: When we're already getting benefits.

1545
03:13:58.940 --> 03:14:00.109
Boardroom: Thank you, Tony.

1546
03:14:00.520 --> 03:14:07.489
Boardroom: Okay, and… Last public commenter is Eid. Go ahead.

1547
03:14:13.140 --> 03:14:19.019
1510****000: Hi, you know, when you walk or drive through Berkeley, it looks like, really, pretty much a box

1548
03:14:19.230 --> 03:14:24.269
1510****000: town. It wasn't like that beautiful town it was in the 60s, 70s, and even the 80s.

1549
03:14:24.690 --> 03:14:29.209
1510****000: This higher rises the oil, make the city very ugly.

1550
03:14:29.370 --> 03:14:35.730
1510****000: As they're more built, the more rent increases. A one-bedroom now goes in Berkeley for over $2,000.

1551

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03:14:36.090 --> 03:14:37.700
1510****000: That is disgusting.

1552
03:14:37.820 --> 03:14:46.229
1510****000: The fact is, the mega landlords, one of which, David Ruig, he was a bicycle shop owner, a small tiny bicycle shop, when I had my big business.

1553
03:14:46.840 --> 03:14:53.250
1510****000: They have controlled City of Berkeley, Alberta Hall, Mayor Aragin, and many others.

1554
03:14:53.710 --> 03:14:55.739
1510****000: It is wrong. It is wrong.

1555
03:14:56.120 --> 03:15:02.639
1510****000: These big prize boxes are very big risks and vigorous quakes, which are coming. Also, it doesn't help anybody.

1556
03:15:02.740 --> 03:15:13.780
1510****000: We need to go forward. Again, my phone number is… my company phone number, 510-848-5000. 50… 52 years old phone number. I wish everybody well.

1557
03:15:13.780 --> 03:15:14.270
Boardroom: Thank you.

1558
03:15:14.270 --> 03:15:14.910
TELEPHONE_USER: It's too…

1559
03:15:15.510 --> 03:15:20.309
Boardroom: There was just one more speaker, Cheryl Davil, a former council member.

1560
03:15:23.950 --> 03:15:29.369
Cheryl Davila, Former Councilmember, Founder CEMTF: Hello, is this, public comment after the meeting? On non-agenda items?

1561
03:15:29.660 --> 03:15:30.340
Boardroom: Yes.

1562
03:15:31.910 --> 03:15:33.090

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Cheryl Davila, Former Councilmember, Founder CEMTF: I can't hear you.

1563
03:15:33.090 --> 03:15:33.939
Boardroom: Yes, it is.

1564
03:15:34.640 --> 03:15:37.390
Cheryl Davila, Former Councilmember, Founder CEMTF: Okay, can you start my clock over, please?

1565
03:15:37.670 --> 03:15:43.330
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, so, it's interesting that, you know, the people…

1566
03:15:43.760 --> 03:15:51.659
Cheryl Davila, Former Councilmember, Founder CEMTF: Are against something, or for something, and you'd never vote the way that the people vote.

1567
03:15:52.050 --> 03:15:59.810
Cheryl Davila, Former Councilmember, Founder CEMTF: To me, that sounds like… Collusion, possibly corruption.

1568
03:16:00.100 --> 03:16:03.400
Cheryl Davila, Former Councilmember, Founder CEMTF: Possibly a monetary gain of some sort.

1569
03:16:03.610 --> 03:16:10.419
Cheryl Davila, Former Councilmember, Founder CEMTF: In order to get these developers to achieve the goals that they want to achieve, and not listen to the people.

1570
03:16:10.580 --> 03:16:17.119
Cheryl Davila, Former Councilmember, Founder CEMTF: And the fact that you still don't care about Palestine, Palestinians.

1571
03:16:17.490 --> 03:16:24.159
Cheryl Davila, Former Councilmember, Founder CEMTF: people dying every day, still being martyred. There was no ceasefire. So Free Palestine…

1572
03:16:24.530 --> 03:16:27.600
Cheryl Davila, Former Councilmember, Founder CEMTF: And, you know, how are you preparing for.

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1573
03:16:27.600 --> 03:16:28.200
Boardroom: comments.

1574
03:16:28.810 --> 03:16:35.279
Boardroom: Ms. Thank you. One more. This is the last… the last speaker after the… oh, nope, hand went down.

1575
03:16:35.660 --> 03:16:37.490
Boardroom: Okay, that's it.

1576
03:16:37.870 --> 03:16:49.479
Boardroom: Thank you all for your public comment on non-agenda items. I will now entertain a motion to adjourn. Move to adjourn. Second. Can you take the roll, please, Clerk? Okay, to adjourn, Councilmember Kesarwani.

1577
03:16:49.870 --> 03:16:51.520
Boardroom: Yes. Kaplan.

1578
03:16:53.020 --> 03:16:56.539
Boardroom: Wait. Councilmember Taplin? Councilmember Taplin?

1579
03:16:56.540 --> 03:16:57.420
Terry Taplin: Yes.

1580
03:16:57.710 --> 03:17:05.929
Boardroom: Bartlett? Yes. Tregeb? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humbert?

1581
03:17:06.070 --> 03:17:10.090
Boardroom: Yes. And Mayor Ishii? Yes. Okay. We're adjourned.

1582
03:17:10.460 --> 03:17:12.830
Boardroom: Thank you, everyone. Thank you, staff.

1583
03:17:13.360 --> 03:17:14.520
Boardroom: Thank you, Berkeley Community.

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